

No. 22-506

Title: **Joseph R. Biden, President of the United States, et al., Petitioners
v.
Nebraska, et al.**

Docketed: December 1, 2022

Linked with: 22A444

Lower Ct: United States Court of Appeals for the Eighth Circuit

Case Numbers: (22-3179)

[Questions Presented](#)

Proceedings and Orders

- Nov 18 2022 Application (22A444) to vacate injunction, submitted to Justice Kavanaugh.
[Proof of Service Main Document Lower Court Orders/Opinions](#)
- Nov 18 2022 Petition for a writ of certiorari before judgment filed.
- Nov 18 2022 Response to application (22A444) requested by Justice Kavanaugh, due noon (EST), Wednesday, November 23, 2022.
- Nov 22 2022 Motion for leave to file amicus brief and brief in support of application to vacate injunction filed by Former Representative George Miller.
[Main Document Other Proof of Service](#)
- Nov 22 2022 Motion for leave to file amicus brief and brief filed by Law Professors.
[Main Document Proof of Service Other](#)

Nov 22 2022	Motion for leave to file amicus brief and brief filed by Borrower Advocacy and Legal Aid Organizations in support of applicants. Main Document Other Proof of Service
Nov 23 2022	Response to application from respondents Nebraska, et al. filed. Main Document Proof of Service
Nov 23 2022	Motion for leave to file amicus brief and brief filed by Fenaba Addo, Alan Aja, Dominique Baker, Raphael Charron-Chenier, Mathieu Despard, Darrick Hamilton, Jason Houle, Martha Ross, Stephen Roll, Louise Seamster, and Thomas Shapiro. Main Document Proof of Service
Nov 23 2022	Motion for leave to file amicus brief and brief filed by Hamilton Lincoln Law Institute. Main Document Main Document Main Document
Nov 23 2022	Motion for leave to file amicus brief and brief filed by Americans for Prosperity Foundation. Main Document Main Document Other Proof of Service
Nov 23 2022	Motion for leave to file amicus brief and brief filed by American Federation of Teachers in support of applicants. Main Document Proof of Service Other
Nov 23 2022	Motion for leave to file amicus brief and brief filed by Utah, Ohio, Alabama, Alaska, Arizona, Florida, Georgia, Indiana, Louisiana, Mississippi, Montana, New Hampshire, North Dakota, Oklahoma, Texas, West Virginia, and Wyoming. Main Document Proof of Service Other
Nov 28 2022	Reply of applicant Joseh R. Biden, et al. filed. Reply Proof of Service
Dec 01 2022	Application (22A444) referred to the Court.
Dec 01 2022	Consideration of the application to vacate injunction presented to Justice Kavanaugh and by him referred to the Court is deferred pending oral argument. The application to vacate injunction is also treated as a petition for a writ of certiorari before judgment (22-506), and the petition is GRANTED on the questions presented in the application. The Clerk is directed to establish a briefing schedule that will allow the case to be argued in the February 2023 argument session.
Dec 14 2022	The joint appendix and petitioners' brief on the merits are to be filed on or before Wednesday, January 4, 2023. Respondents' briefs on the merits are to be filed on or before Friday, January 27, 2023. The reply brief is to be filed on or before Wednesday, February 15, 2023.
Dec 14 2022	In lieu of petitioners filing separate opening and reply briefs on the merits in No. 22-506 and No. 22-535, they may file a single consolidated opening brief, limited to 17,000 words, and a single consolidated reply brief, limited to 9,000 words. In addition, a single joint appendix containing the relevant record materials in No. 22-506 and No. 22-535 may be filed. VIDED.
Dec 19 2022	SET FOR ARGUMENT on Tuesday, February 28, 2023.
Dec 20 2022	Record requested from the U.S.C.A. for the Eighth Circuit.

Jan 04 2023	Consolidated brief of petitioners filed (also in 22-535). VIDED. Main Document Certificate of Word Count
Jan 04 2023	Consolidated joint appendix filed (also in 22-535). VIDED. (Statement of cost filed.) Main Document Proof of Service
Jan 05 2023	Record received from the U.S.C.A.-8th Circuit (1 envelope).
Jan 11 2023	Brief amicus curiae of Student Loan Experts filed. Main Document Certificate of Word Count Proof of Service
Jan 11 2023	Brief amicus curiae of ArchCity Defenders and Legal Services of Eastern Missouri filed. Main Document Certificate of Word Count Proof of Service
Jan 11 2023	Brief amicus curiae of National Association for the Advancement of Colored People filed. Main Document Certificate of Word Count Proof of Service
Jan 11 2023	Amicus brief of Borrower Advocacy and Legal Aid Organizations not accepted for filing. (January 11, 2023)
Jan 11 2023	Brief amici curiae of Borrower Advocacy and Legal Aid Organizations filed (also in 22-535). VIDED. (Distributed) Main Document Certificate of Word Count Proof of Service
Jan 11 2023	Brief amici curiae of Six Veterans' Organizations filed (also in 22-535). VIDED. Main Document Certificate of Word Count Proof of Service
Jan 11 2023	Brief amici curiae of Legal Scholars (also in 22-535) filed. VIDED. Main Document Certificate of Word Count Proof of Service
Jan 11 2023	Brief amici curiae of Samuel L. Bray and William Baude (also in 22-535) filed. VIDED. Main Document Certificate of Word Count Proof of Service
Jan 11 2023	Brief amici curiae of American Federation of Teachers, et al. (also in 22-535) filed. VIDED. Main Document Proof of Service Certificate of Word Count
Jan 11 2023	Brief amici curiae of Lawyers' Committee For Civil Rights Under Law, et al. (also in 22-535) filed. VIDED. Main Document Proof of Service Certificate of Word Count
Jan 11 2023	Brief amicus curiae of Former Representative George Miller (also in 22-535) filed. VIDED. Main Document Certificate of Word Count Proof of Service
Jan 11 2023	Brief amicus curiae of National Education Association (also in 22-535) filed. VIDED. Main Document Certificate of Word Count Proof of Service
Jan 11 2023	Brief amici curiae of Local Governments filed (also in 22-535). VIDED. Main Document Certificate of Word Count Proof of Service
Jan 11 2023	Brief amici curiae of Massachusetts, et al. filed (also in 22-535). VIDED. Main Document Certificate of Word Count Proof of Service

Jan 11 2023	Brief amicus curiae of Professor Lawrence A. Stein in support of none of the parties filed (also in 22-535). VIDED. Main Document Proof of Service Proof of Service
Jan 12 2023	Brief amicus curiae of Atlantic Legal Foundation (also in 22-535) filed. VIDED. Main Document Proof of Service Certificate of Word Count
Jan 17 2023	CIRCULATED
Jan 27 2023	Brief of respondents Nebraska, et al. filed. (Distributed) Main Document Certificate of Word Count Proof of Service
Feb 01 2023	Brief amici curiae of Americans for Prosperity Foundation and Advancing Freedom (also in 22-535) filed. VIDED. (Distributed) Main Document Certificate of Word Count Proof of Service
Feb 01 2023	Brief amicus curiae of The Foundation for Government Accountability (also in 22-535) filed. VIDED. (Distributed) Main Document Certificate of Word Count Proof of Service
Feb 02 2023	Brief amici curiae of Former Rep. Howard McKeon, et al. (also in 22-535) filed. VIDED. (Distributed) Main Document Certificate of Word Count Proof of Service
Feb 02 2023	Brief amici curiae of Empire Center and The Government Justice Center, Inc. (also in 535) filed. VIDED. (Distributed) Main Document Certificate of Word Count Proof of Service
Feb 02 2023	Brief amicus curiae of America First Policy Institute (also in 22-535) filed. VIDED. (Distributed) Main Document Certificate of Word Count Proof of Service
Feb 02 2023	Brief amici curiae of Cato Institute and Manhattan Institute filed. VIDED. (Distributed) Main Document Proof of Service Certificate of Word Count
Feb 03 2023	Brief amicus curiae of American Center for Law and Justice (also in 22-535) filed. VIDED. (Distributed) Main Document Certificate of Word Count Proof of Service
Feb 03 2023	Brief amicus curiae of Liberty Justice Center filed. (Distributed) Main Document Certificate of Word Count Proof of Service
Feb 03 2023	Brief amici curiae of States of Utah, Ohio, and 15 Other States filed. (Distributed) Main Document Certificate of Word Count Proof of Service
Feb 03 2023	Brief amicus curiae of Citizens United, Citizens United Foundation, and The Presidential Coalition, LLC filed. (Distributed) Main Document Certificate of Word Count Proof of Service
Feb 03 2023	Brief amicus curiae of The Protect Democracy Project (also in 22-535) filed. VIDED. (Distributed) Main Document Certificate of Word Count Proof of Service
Feb 03 2023	Brief amici curiae of Michael W. McConnell, et al. (also in 22-535) filed. VIDED. (Distributed) Main Document Certificate of Word Count Proof of Service

Feb 03 2023 Brief amicus curiae of The Buckeye Institute (also in 22-535) filed. VIDED. (Distributed)
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Feb 03 2023 Brief amici curiae of Senator Marsha Blackburn and 42 Other Members of the United States Senate (also in 22-535) filed. VIDED. (Distributed)
[Main Document Certificate of Word Count Proof of Service](#)

Feb 03 2023 Brief amicus curiae of New Civil Liberties Alliance (also in 22-535) filed. VIDED. (Distributed)
[Main Document Certificate of Word Count Proof of Service](#)

Feb 03 2023 Brief amici curiae of 128 U.S. Representatives, Including 25 Members of the House Committee on Education and the Workforce (also in 22-535) filed. VIDED. (Distributed)
[Main Document Certificate of Word Count Proof of Service](#)

Feb 03 2023 Brief amici curiae of Hamilton Lincoln Law Institute and Committee for Justice (also in 22-535) filed. VIDED. (Distributed)
[Main Document Certificate of Word Count Proof of Service](#)

Feb 03 2023 Brief amici curiae of Elisabeth Devos, et al. (also in 22-535) filed. VIDED. (Distributed)
[Main Document Certificate of Word Count Proof of Service](#)

Feb 03 2023 Brief amicus curiae of The Chamber of Commerce of the United States of America (also in 22-535) filed. VIDED. (Distributed)
[Main Document Certificate of Word Count Proof of Service](#)

Feb 03 2023 Brief amicus curiae of Jed Handelsman Shugerman (also in 22-535) filed. VIDED. (Distributed)
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Feb 15 2023 Consolidated reply brief of petitioners (also in 22-535) filed. VIDED. (Distributed)
[Main Document Proof of Service](#)

Feb 28 2023 Argued. For petitioners: Elizabeth B. Prelogar, Solicitor General, Department of Justice, Washington, D. C. For respondents: James A. Campbell, Solicitor General, Lincoln, Neb.

Jun 30 2023 Application (22A444) DENIED AS MOOT. Judgment REVERSED and case REMANDED. Roberts, C. J., delivered the [opinion](#) of the Court, in which Thomas, Alito, Gorsuch, Kavanaugh, and Barrett, JJ., joined. Barrett, J., filed a concurring opinion. Kagan, J., filed a dissenting opinion, in which Sotomayor and Jackson, JJ., joined.

Jul 18 2023 Record returned to the U.S.C.A.-8th Circuit (1 envelope).

Aug 01 2023 Judgment issued.
[Main Document](#)

IN THE SUPREME COURT OF THE UNITED STATES

No. 22A_____
 JOSEPH R. BIDEN, JR., PRESIDENT OF THE UNITED STATES,
 ET AL., APPLICANTS
 v.
 STATE OF NEBRASKA, ET AL.

APPLICATION TO VACATE THE INJUNCTION
ENTERED BY THE UNITED STATES COURT OF APPEALS
FOR THE EIGHTH CIRCUIT

Pursuant to Rule 23 of the Rules of this Court and the All Writs Act, 28 U.S.C. 1651, the Solicitor General, on behalf of the applicants, respectfully applies to vacate the injunction pending appeal entered on November 14, 2022, by the United States Court of Appeals for the Eighth Circuit (App., *infra*, 1a-6a).

ARGUMENT

An injunction “is an extraordinary remedy never awarded as of right.” *Winter v. Natural Res. Def. Council, Inc.*, 555 U.S. 7, 24 (2008). A party seeking an injunction must show, among other things, that it is “likely to succeed on the merits.” *Id.* at 20. Here, however, “one searches the opinion[] below in vain for any mention of [respondents’] likelihood of success on the merits.” *Munaf v. Geren*, 553 U.S. 674, 690 (2008). The Eighth Circuit instead granted a universal injunction based on the assertion, unsupported by any further analysis, that the “merits of the appeal before this court involve substantial questions of law which remain to be resolved.” App., *infra*, 5a. That deficiency by itself justifies vacating the injunction. See *Munaf*, 553 U.S. at 690.15 Nor could the Eighth Circuit have granted an injunction had it conducted the proper analysis. In considering interim equitable relief like an injunction pending appeal, this Court considers the “likelihood of success on the merits” and the “equities.” *Alabama Ass’n of Realtors v. HHS*, 141 S. Ct. 2485, 2488-2489 (2021) (*per curiam*). In this case, the government is likely to succeed on the merits and the equities favor vacatur of the injunction.

I. THE GOVERNMENT IS LIKELY TO SUCCEED ON THE MERITS

If the court of appeals finds the plan unlawful, this Court would likely review that decision invalidating a national program affecting millions of Americans. See pp. 38-40, *infra*. And if the Court granted review, it would likely reverse a decision finding the plan unlawful. Contrary to the court of appeals’ decision, respondents lack Article III standing to bring this suit. The plan is in any event lawful. And at a minimum, the Eighth Circuit’s universal relief was overbroad.

The Eighth Circuit’s erroneous injunction leaves millions of economically vulnerable borrowers in limbo, uncertain about the size of their debt and unable to make financial decisions with an accurate understanding of their future repayment obligations. If the Court declines to vacate the injunction, it may wish to construe this application as a petition for a writ of certiorari before judgment, grant the petition, and set the case for expedited briefing and argument this Term to avoid prolonging this uncertainty for the millions of affected borrowers. Cf. *United States v. Texas*, cert. granted, No. 22-58 (oral argument scheduled for Nov. 29, 2022).

III. IN THE ALTERNATIVE, THE COURT MAY WISH TO TREAT THIS APPLICATION AS A PETITION FOR A WRIT OF CERTIORARI BEFORE JUDGMENT

For the foregoing reasons, this Court should vacate the injunction pending appeal entered by the Eighth Circuit. If, however, the Court denies that relief, it may wish to construe this application as a petition for a writ of certiorari before judgment, grant the petition, and set this case for expedited briefing and argument this Term on the questions (1) whether respondents have Article III standing, and (2) whether the plan exceeds the Secre-

tary's statutory authority or is arbitrary and capricious. Cf. *United States v. Texas*, cert. granted, No. 22-58 (oral argument scheduled for Nov. 29, 2022); *Nken v. Mukasey*, 555 U.S. 1042 (2008). The government would be prepared to brief this case on a pinion that omits any discussion of the merits, enjoined the Secretary's plan nationwide. That injunction, so long as it remains in place, thwarts the Secretary's considered judgment in responding to the harmful economic consequences of a devastating pandemic. See pp. 35-38, *supra*. And it leaves borrowers in limbo,

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schedule that would allow argument during the Court's February 2023 sitting.

A writ of certiorari before judgment under 28 U.S.C. 2101(e) is an extraordinary remedy, but the issues presented by the Eighth Circuit's injunction of the Secretary's action are "of such imperative public importance as to justify deviation from normal appellate practice and to require immediate determination in this Court." Sup. Ct. R. 11. Congress expressly contemplated that national emergencies would necessitate student-loan relief for affected borrowers, and Congress specifically authorized the Secretary to grant such relief without delay. See pp. 6-7, 26-29, *supra*. Here, the Secretary determined that relief was necessary to ensure that borrowers do not default on their loans or enter delinquency when payments obligations resume, with potentially irreparable consequences for their credit and financial futures. See pp. 9-11, 20-21, *supra*. Yet the Eighth Circuit, in a six-page Absent certiorari before judgment, however, this Court likely could not hear the case this Term. Based on the briefing schedule set by the Eighth Circuit, the appeal will not be fully briefed uncertain of the scope of their debt obligations. Ibid.

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until February at the earliest, and there is no guarantee when the Eighth Circuit will rule. Postponing review until the Eighth Circuit enters judgment would thus likely delay the Court's resolution of this case until sometime in 2024, extending the uncertainty for vulnerable borrowers for an additional year or more. Certiorari before judgment would allow this Court to "promptly" consider the States' novel standing arguments and the legality of the plan after "full briefing and oral argument." See *Whole Woman's Health v. Jackson*, 141 S. Ct. 2494, 2496 (2021) (Roberts, C.J., dissenting).

CONCLUSION

This Court should vacate, or at minimum narrow, the injunction pending appeal entered by the court of appeals. If, however, the Court declines to vacate the injunction, it may wish to construe this application as a petition for a writ of certiorari before judgment, grant the petition, and set this case for expedited briefing and argument this Term.

Respectfully submitted.

No. 24-1287

Title: **Learning Resources, Inc., et al., Petitioners
v.
Donald J. Trump, President of the United States, et al.**

Docketed: June 17, 2025

Linked with: 25A327

Lower Ct: United States Court of Appeals for the District of Columbia Circuit

Case Numbers: (25-5202)

[Questions Presented](#)

Proceedings and Orders

Jun 17 2025 Petition for a writ of certiorari before judgment filed. (Response due July 17, 2025)
[Petition Appendix Certificate of Word Count Proof of Service](#)

Jun 17 2025 Motion to expedite consideration of the petition for a writ of certiorari before judgment filed by petitioners Learning Resources, Inc., et al.
[Main Document](#)

Jun 18 2025 Response to motion from respondents Donald J. Trump, President of the United States, et al. filed.
[Main Document Proof of Service](#)

Jun 18 2025 Brief amicus curiae of Washington Legal Foundation filed.
[Main Document Proof of Service Certificate of Word Count](#)

Jun 20 2025	Reply of petitioners Learning Resources, Inc., et al. in support of motion to expedite filed. Main Document
Jun 20 2025	Motion of petitioners to expedite consideration of the petition for a writ of certiorari before judgment DENIED.
Jul 17 2025	Brief of respondents Donald J. Trump, President of the United States, et al. in opposition filed. Main Document Proof of Service
Jul 17 2025	Brief amici curiae of George F. Allen, et al. filed. Main Document Proof of Service Certificate of Word Count
Aug 05 2025	Reply of petitioners Learning Resources, Inc., et al. filed. (Distributed) Main Document Other Certificate of Word Count Proof of Service
Aug 06 2025	DISTRIBUTED for Conference of 9/29/2025.
Sep 04 2025	Letter from petitioners Learning Resources, Inc., et al. filed. Main Document Proof of Service
Sep 09 2025	Petition for a writ of certiorari before judgment GRANTED. The motion to expedite and the petition for a writ of certiorari in No. 25-250 are granted. The cases are consolidated, and a total of one hour is allotted for oral argument. Respondents in No. 24-1287 and petitioners in No. 25-250 shall file an opening brief on the merits on or before Friday, September 19, 2025. Any amicus curiae briefs in support or in support of neither party shall be filed on or before Tuesday, September 23, 2025. Petitioners in No. 24-1287 and respondents in No. 25-250 shall file response briefs on the merits on or before Monday, October 20, 2025. Any amicus curiae briefs in support shall be filed on or before Friday, October 24, 2025. A reply brief shall be filed by Thursday, October 30, 2025. The cases will be set for argument in the first week of the November 2025 argument session. VIDED.
Sep 09 2025	Because the Court has consolidated these cases for briefing and oral argument, future filings and activity in the cases will now be reflected on the docket of No. 24-1287. Subsequent filings in these cases must therefore be submitted through the electronic filing system in No. 24-1287. Each document submitted in connection with one or more of these cases must include on its cover the case number and caption for each case in which the filing is intended to be submitted. Where a filing is submitted in fewer than all of the cases, the docket entry will reflect the case number(s) in which the filing is submitted; a document filed in all of the consolidated cases will be noted as "VIDED."
Sep 10 2025	Record requested from the United States Court of Appeals for the District of Columbia Circuit.
Sep 10 2025	Motion to dispense with printing the joint appendix filed by the Solicitor General. VIDED. Main Document Proof of Service
Sep 10 2025	Motion for leave to intervene filed by Susan Webber, et al. VIDED. Main Document Main Document Main Document

Sep 11 2025	Opposition to motion for leave to intervene from respondents Donald J. Trump, President of the United States, et al. filed. VIDED. Main Document Proof of Service
Sep 12 2025	Record received electronically from the United States Court of Appeals for the District of Columbia Circuit and available with the Clerk.
Sep 12 2025	Record received from the United States District Court for the District of Columbia. The record is electronic and is available on PACER.
Sep 17 2025	Motion for leave to intervene DISTRIBUTED for Conference of 10/10/2025.
Sep 17 2025	Any motion pertaining to the oral argument in these cases shall be filed on or before Friday, October 3, 2025.
Sep 18 2025	SET FOR ARGUMENT on Wednesday, November 5, 2025. VIDED.
Sep 19 2025	Application (25A327) for leave to file a reply brief on the merits in excess of the word limit, submitted to The Chief Justice. Main Document Proof of Service
Sep 19 2025	Opening brief on the merits of Donald J. Trump, President of the United States, et al. filed. VIDED. (Distributed) Main Document Proof of Service
Sep 22 2025	Motion to dispense with printing the joint appendix filed by the Solicitor General GRANTED. VIDED.
Sep 23 2025	Brief amicus curiae of Professor Aditya Bamzai in support of neither party filed. VIDED Main Document Proof of Service Certificate of Word Count
Sep 23 2025	Brief amicus curiae of American Center for Law and Justice filed. VIDED. Main Document Certificate of Word Count Proof of Service
Sep 23 2025	Brief amici curiae of U.S. Representative Darrell Issa, et al. filed. VIDED. Main Document Certificate of Word Count Proof of Service
Sep 23 2025	Brief amicus curiae of Professor Chad Squitieri filed. VIDED. Main Document Certificate of Word Count Proof of Service
Sep 23 2025	Brief amicus curiae of America First Policy Institute filed. VIDED. Main Document Certificate of Word Count Proof of Service
Sep 23 2025	Brief amicus curiae of America's Future filed. VIDED. Main Document Certificate of Word Count Proof of Service
Sep 23 2025	Brief amicus curiae of Jill Homan filed. VIDED. Main Document Proof of Service Certificate of Word Count
Sep 24 2025	Application (25A327) granted by The Chief Justice for leave to file a reply brief on the merits in excess of the word limit. The brief shall not exceed 9,000 words.
Sep 29 2025	Motion for leave to participate in oral argument as amici curiae, for divided argument, and for enlargement of time for oral argument filed by Susan Webber, et al. VIDED. Main Document Proof of Service
Sep 30 2025	CIRCULATED
Oct 01 2025	Motion of petitioners in No. 24-1287 and respondents in No. 25-250 for divided argument and for enlargement of time for oral argument filed.

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Oct 08 2025 Brief amicus curiae of Consumer Watchdog filed. VIDED. (Distributed)
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Oct 08 2025 Brief amicus curiae of Corey J. Biazzo, Esq. filed. VIDED. (Distributed)
[Main Document Certificate of Word Count Proof of Service](#)

Oct 14 2025 Motion for leave to intervene filed by Susan Webber, et al. DENIED.
VIDED.

Oct 17 2025 Brief amici curiae of George F. Allen, et al. filed. VIDED. (Distributed)
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Oct 17 2025 Brief amicus curiae of Crutchfield Corporation filed. VIDED. (Distributed)
[Main Document Certificate of Word Count Proof of Service](#)

Oct 20 2025 Brief of petitioners Learning Resources, Inc., et al. filed (as to 24-1287).
(Distributed)
[Main Document Proof of Service Certificate of Word Count](#)

Oct 20 2025 Brief of State Respondents in No. 25-250 filed. VIDED. (Distributed)
[Main Document Proof of Service Certificate of Word Count](#)

Oct 20 2025 Brief of private respondents V.O.S. Selections, Inc., et al. filed (as to 25-250).
(Distributed)
[Main Document Proof of Service Certificate of Word Count](#)

Oct 22 2025 Brief amici curiae of Professors of U.S. Foreign Relations Law filed. VIDED.
(Distributed)
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Oct 22 2025 Brief amici curiae of Vikram David Amar, et al. filed. VIDED. (Distributed)
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Oct 23 2025 Motion of petitioners in No. 24-1287 and respondents in No. 25-250 for
divided argument and for enlargement of time for oral argument is granted in
part. A total of 80 minutes is allotted for oral argument, and the time is
allocated as follows: 40 minutes for the Solicitor General, 20 minutes for one
advocate on behalf of the private parties, and 20 minutes for one advocate on
behalf of the state parties.

Oct 23 2025 Motion of Susan Webber, et al. for leave to participate in oral argument as
amici curiae, for divided argument, and for enlargement of time for oral
argument is denied.

Oct 23 2025 Brief amicus curiae of Institute for Policy Integrity at New York University
School of Law filed. VIDED. (Distributed)
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Oct 23 2025 Brief amicus curiae of BRB Management, LLC filed. VIDED. (Distributed)
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Oct 24 2025 Brief amicus curiae of Economists filed. VIDED. (Distributed)
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Oct 24 2025 Brief amici curiae of Scott Lincicome, et al. filed. VIDED. (Distributed)
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Oct 24 2025 Brief amicus curiae of Brennan Center for Justice filed. VIDED. (Distributed)
[Main Document Proof of Service Certificate of Word Count](#)

Oct 24 2025 Brief amici curiae of National Security Officials filed. VIDED. (Distributed)
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Oct 24 2025 Brief amicus curiae of Washington Legal Foundation filed. VIDED. (Distributed)
[Main Document Proof of Service Certificate of Word Count](#)

Oct 24 2025 Brief amicus curiae of American College of Tax Counsel filed. VIDED. (Distributed)
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Oct 24 2025 Brief amici curiae of Members of the United States Congress filed. VIDED. (Distributed)
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Oct 24 2025 Brief amicus curiae of We Pay the Tariffs filed. VIDED. (Distributed)
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Oct 24 2025 Brief amici curiae of Goldwater Institute, et al. filed. VIDED. (Distributed)
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Oct 24 2025 Brief amici curiae of American Watch Association, et al. filed. VIDED. (Distributed)
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Oct 24 2025 Brief amici curiae of 31 Former Federal Judges filed. VIDED. (Distributed)
[Main Document Proof of Service Certificate of Word Count](#)

Oct 24 2025 Brief amici curiae of Professor Julian Arato, et al. filed. VIDED. (Distributed)
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Oct 24 2025 Brief amici curiae of Former Senior Military, National Security, and Foreign Policy Government Officials filed. VIDED. (Distributed)
[Main Document Proof of Service Certificate of Word Count](#)

Oct 24 2025 Brief amicus curiae of Constitutional Accountability Center filed. VIDED. (Distributed)
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Oct 24 2025 Brief amici curiae of California, et al. filed. VIDED. (Distributed)
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Oct 24 2025 Brief amici curiae of Professors of Administrative Law, et al. filed. VIDED. (Distributed)
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Oct 24 2025 Brief amici curiae of Former Government Officials, et al. filed. VIDED. (Distributed)
[Main Document Certificate of Word Count Proof of Service](#)

Oct 24 2025 Brief amicus curiae of Cato Institute filed. VIDED. (Distributed)
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Oct 24 2025 Brief amici curiae of The Chamber of Commerce of the United States of America, et al. filed (as to 25-250). (Distributed)
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Oct 24 2025 Brief amici curiae of Princess Awesome, LLC, et al. filed (as to 25-250). (Distributed)
[Main Document Proof of Service Certificate of Word Count](#)

Oct 24 2025	Brief amicus curiae of Peter W. Sage filed (as to 25-250). (Distributed) Main Document Proof of Service Certificate of Word Count
Oct 24 2025	Brief amici curiae of Advancing American Freedom, et al. filed. VIDED. (Distributed) Main Document Proof of Service Certificate of Word Count
Oct 24 2025	Brief amici curiae of Tax Law Professors filed. VIDED. (Distributed) Main Document Certificate of Word Count Proof of Service
Oct 24 2025	Brief amicus curiae of National Taxpayers Union Foundation filed. VIDED. (Distributed) Main Document Certificate of Word Count Proof of Service
Oct 24 2025	Brief amici curiae of Emily Ley Paper, Inc., et al. filed. VIDED. (Distributed) Main Document Proof of Service Certificate of Word Count
Oct 24 2025	Brief amici curiae of Scholars of the History of Constitutional Law and the Presidency filed. VIDED. (Distributed) Main Document Certificate of Word Count Proof of Service
Oct 24 2025	Brief amici curiae of Carla Anderson Hills and Alan William Wolff filed (as to 25-250). (Distributed) Main Document Proof of Service Certificate of Word Count
Oct 24 2025	Brief amici curiae of Washington State Amici filed (as to 25-250). (Distributed) Main Document Certificate of Word Count Proof of Service
Oct 24 2025	Brief amicus curiae of Trade Scholars in Economics, Politics, and Law filed (as to 25-250). (Distributed) Main Document Certificate of Word Count Proof of Service
Oct 30 2025	Reply of respondents Donald J. Trump, President of the United States, et al. filed. VIDED. (Distributed) Main Document Proof of Service
Nov 05 2025	Argued. For federal parties: D. John Sauer, Solicitor General, Department of Justice, Washington, D. C. For private parties: Neal K. Katyal, Washington, D. C. For state parties: Benjamin N. Gutman, Solicitor General, Salem, Ore. VIDED.

INTRODUCTION

Asserting authority under the International Emergency Economic Powers Act (“IEEPA”), the President with the stroke of a pen increased the Nation’s effective tariff rate tenfold to the highest it has been in more than a century. No President in IEEPA’s history has relied on that law to issue *any* tariff. Yet the current Administration has used it to impose sweeping tariffs to reshape the national economy and global trade policy, raising taxes on Americans by hundreds of billions of dollars. IEEPA does not give the President such unilateral power. Indeed, it does not give the President any tariffing power whatsoever, as every presidential administration until this one has understood. Both courts to have adjudicated the merits—the federal district court below and a three-

judge panel of the Court of International Trade (“CIT”)—have now declared the IEEPA tariffs unlawful on two different grounds. But as of last week, both lower court injunctions have been stayed pending appeal. Even as these punishing tariffs cause American businesses and consumers to bleed billions of dollars each month, there will be no relief any time soon.

This case indisputably presents a question of paramount importance: whether IEEPA authorizes tariffs. That pure question of law, implicating core separation-of-powers concerns, is in fact the only merits question that the government believes courts have the power to answer. It will inevitably fall to this Court to resolve it definitively.

(1)²

In light of the tariffs’ massive impact on virtually every business and consumer across the Nation, and the unremitting whiplash caused by the unfettered tariffing power the President claims, challenges to the IEEPA tariffs cannot await the normal appellate process (even on an expedited timeline). There is ample reason for this Court to grant certiorari before judgment now so this case can be briefed over the summer and argued as soon as possible.

OPINIONS BELOW

The opinion of the district court, App., *infra*, 3a-43a, is reported at 2025 WL 1525376. The district court’s order staying its injunction, App., *infra*, 44a-45a, is unreported.

JURISDICTION

The order of the district court was entered on May 29, 2025, and was immediately appealable pursuant to 28 U.S.C. § 1292(a)(1). App., *infra*, 1a-2a. Respondents noticed an appeal to the U.S. Court of Appeals for the D.C. Circuit on May 30, 2025, which was docketed the same day. The Court has jurisdiction under 28 U.S.C. §§ 1254(1) and 2101(e).

REASONS FOR GRANTING THE WRIT

This case presents a question of “imperative public importance”: Whether IEEPA authorizes the President to impose tariffs—and thereby unilaterally reshape the national economy and global trade policy. SUP. CT. R. 11. This Court has recently granted certiorari before judgment in cases of similar national importance and “staggering” economic and political significance. *E.g.*, *Biden v. Nebraska*, 600 U.S. 477, 489, 502 (2023).

This Court should grant certiorari to decide that dispositive legal question *now*. It is the sole merits issue that the government contends courts can adjudicate in this litigation, and one that will inevitably fall to this Court to resolve definitively. The IEEPA tariffs are having a massive impact on virtually every business that relies on imports, many of whom (like Petitioners) are now facing an existential crisis. The tariffs are also subjecting¹⁸ Americans to a tax hike in the hundreds of billions of dollars annually. And with IEEPA tariffs added and

subtracted at will, with virtually no notice, they are making it impossible for American businesses to plan amid paralyzing uncertainty throughout the American economy. With the lower courts' injunctions stayed, these harms are only multiplying.

IEEPA does not give the President the vast power he has seized. IEEPA does not mention the word "tariff" or "tax," and no other President in its nearly 50-year history has ever relied on it for tariffing power. Respondents locate the power to tariff in the phrase "regulate *** importation." But the Constitution, this Court, Congress, and every Presidential administration until this one have all treated the power to regulate as categorically distinct from the power to tax or tariff. Our country cannot wait any longer for this Court to res

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country.²⁶ Because the lower courts' injunctions have been stayed, these nationwide harms will mount until this Court finally settles the matter.

The wide-ranging constellation of amici supporting challenges to the IEEPA tariffs underscores their exceptional and pressing nature. Those amici include a group of constitutional scholars and public servants from across the political spectrum, including Steven G. Calabresi, Richard A. Epstein, Harold Hongju Koh, Michael W. McConnell, Michael B. Mukasey, Peter J. Wallison, and Philip Zelikow.²⁷ They also include the CATO Institute;²⁸ the Institute for Policy Integrity at New York University School of
²⁶ Lisa Eadicicco, *Small businesses struggle under Trump's tariff whiplash: 'I'm so angry that my own government has done this to me'*, CNN (June 1, 2025), <https://www.cnn.com/2025/06/01/business/small-businesses-struggle-under-trumps-tariffs>.

²⁷ Amici Brief of Former Senators, Attorney General, Federal Judges, and Scholars, *Learning Resources, Inc. v. Trump*, No. 1:25-cv-01248-RC (D.D.C. May 7, 2025), ECF No. 19-1.

²⁸ Amicus Brief of the CATO Institute, *Emily Ley Paper, Inc. v. Trump*, No. 3:25-cv-00464-TKW-ZCB (N.D. Fla. May 12, 2025), ECF No. 27-1.30

Law;²⁹ the Brennan Center for Justice;³⁰ and many members of the U.S. Senate and House.³¹

According to Respondents, the central question—whether IEEPA authorizes tariffs—is the only question courts have the power to decide. *Compare* App., *infra*, 97a-98a (“[W]e agree with the plaintiffs that the Court can review the threshold statutory question of whether IEEPA authorizes tariffs[.]”), *with* App., *infra*, 98a-99a (arguing political question doctrine precludes courts from reviewing whether the IEEPA tariffs address an “unusual and extraordinary threat” or are an appropriate means to their ends). That question is well ventilated in the district court’s thorough opinion and the ample briefing to date across multiple cases.

Addressing that central question now has the added benefit of simultaneously resolving the principal merits issue and disposing of a jurisdictional question that has split the courts: whether the federal district courts have jurisdiction (because IEEPA does

not provide for tariffs) or whether the CIT has

²⁹ *Amicus* Brief of the Institute for Policy Integrity at New York University School of Law, *V.O.S. Selections, Inc. v. Trump*, No. 1:25-cv-00066-GSK-TMR-JAR (Ct. Int'l Trade May 8, 2025), ECF No. 39-1.

³⁰ *Amicus* Brief of the Brennan Center for Justice, *California v. Trump*, No. 3:25-cv-03372-JSC (N.D. Cal. May 20, 2025), ECF No. 33-1.

³¹ *Amici* Brief of 33 Members of the United States Senate, *V.O.S. Selections, Inc. v. Trump*, No. 25-1812 (Fed. Cir. June 9, 2025), ECF No. 49; *Amici* Brief of 148 Members of Congress, *Oregon v. Trump*, No. 1:25-cv-00077-GSK-TMR-JAR (Ct. Int'l Trade May 16, 2025), ECF No. 40.³¹

jurisdiction (because IEEPA does provide for tariffs). See 28 U.S.C. § 1581(i)(1) (giving the CIT jurisdiction over “any civil action commenced against the United States, its agencies, or its officers, that arises out of any law of the United States providing for *** tariffs”). This case is thus similar to *K Mart Corp. v. Cartier, Inc.*, where the Court granted certiorari in a case arising from the U.S. District Court for the District of Columbia in order to resolve “both the jurisdictional issue” under Section 1581(i) “and the merits,” with this Court ultimately concluding jurisdiction lay in the district court rather than the CIT. 485 U.S. 176, 182 (1988). This Court should not delay clarifying jurisdiction any more than it should delay resolving the merits.

Respondents have in fact already conceded that, at some point, a writ of certiorari before judgment may be necessary. See Resp. Mot. to Govern 5, *Learning Resources, Inc. v. Trump*, No. 25-5202 (D.C. Cir. June 13, 2025). There is no reason to delay. The costs of waiting for full merits opinions from the D.C. Circuit or from the Federal Circuit in the CIT cases (where no appeal brief has yet been filed) far outweigh any benefits. Granting certiorari now will allow the Court to order briefing to be completed in advance of this Court’s first argument session for the October 2025 Term—or even for a special early sitting in September. Finally, the fact that Petitioners prevailed in the district court poses no bar to granting certiorari before judgment, either as a statutory or constitutional matter. This Court may review cases “in the courts of appeals” upon a petition for certiorari before judgment³² by “any party to any civil or criminal case.” 28 U.S.C. § 1254(1) (emphasis added); see also 28 U.S.C.

§ 2101(e) (“An application to the Supreme Court for a writ of certiorari to review a case before judgment has been rendered in the court of appeals may be made at any time before judgment.”). That language “covers petitions brought by litigants who have prevailed, as well as those who have lost, in the court below.”

Camreta v. Greene, 563 U.S. 692, 700 (2011) (citing Eugene Gressman et al., *Supreme Court Practice* 87 (9th ed. 2007)).³² Moreover, it is beyond doubt that this case presents a live case or controversy:

Respondents’ appeal seeking reversal is pending in the D.C. Circuit, and the serious harms the district court found Petitioners are suffering from the IEEPA tariffs remain acute and ongoing (particularly in light of the

stay of the district court's injunction). There is thus no impediment to—and uniquely compelling reasons in favor of—this Court's immediate review.

³² This Court has granted review of petitions filed by prevailing parties on numerous occasions. *See, e.g., Mistretta v. United States*, 488 U.S. 361, 371 (1989) (granting petitions of both Mistretta and United States where district court ruled in favor of United States on constitutionality of federal sentencing guidelines); *United States v. Nixon*, 418 U.S. 683, 689-690 (1974) (granting petition of United States where district court denied President Nixon's motions regarding subpoena issued by United States); *see also, e.g., Wilson v. Girard*, 354 U.S. 524, 526 (1957); *Youngstown Sheet & Tube Co. v. Sawyer*, 343 U.S. 937, 937 (1952) (per curiam); *United States v. United Mine Workers of Am.*, 330 U.S. 258, 269 (1947).³³

CONCLUSION

The petition for a writ of certiorari before judgment should be granted.

Respectfully submitted.

Pratik A. Shah

Counsel of Record

James E. Tysse

Matthew R. Nicely

Daniel M. Witkowski

Kristen E. Loveland

AKIN GUMP STRAUSS

HAUER & FELD LLP

Counsel for Petitioners

June 17, 2025

Notes: Jurisdiction section included. Cites :

Joseph R. Biden, President of the United States, et al., Petitioners

v.

Nebraska, et al.

Yet, decision was denied as moot, judgement reversed and remanded.

Jun 30 2023 Application (22A444) DENIED AS MOOT. Judgment REVERSED and case REMANDED. Roberts, C. J., delivered the [opinion](#) of the Court, in which Thomas, Alito, Gorsuch, Kavanaugh, and Barrett, JJ., joined. Barrett, J., filed a concurring opinion. Kagan, J., filed a dissenting opinion, in which Sotomayor and Jackson, JJ., joined.

Jul 18 2023 Record returned to the U.S.C.A.-8th Circuit (1 envelope).

Aug 01 2023 Judgment issued.

[Main Document](#)

No. 25A561

Title: **Chamber of Commerce of the United States, et al., Applicants
v.
Lauren Sanchez, et al.**

Docketed: November 14, 2025

Lower Ct: United States Court of Appeals for the Ninth Circuit

Case Numbers: (25-5327)

Proceedings and Orders

Nov 10 2025 Application (25A561) for Injunction Pending Appeal, submitted to Justice Kagan.

[Main Document](#) [Lower Court Orders/Opinions](#) [Proof of Service](#)

EMERGENCY APPLICATION
FOR INJUNCTION PENDING APPEAL
TO THE UNITED STATES COURT OF APPEALS
FOR THE NINTH CIRCUIT

Pursuant to Rule 22 of this Court and the All Writs Act, 28 U.S.C. § 1651(a),
Applicants Chamber of Commerce of the United States of America et al. respectfully

JURISDICTION

The district court denied Applicants' motion for a preliminary injunction on August 13, 2025. App. 6a. Applicants timely appealed that order to the United States Court of Appeals for the Ninth Circuit under 28 U.S.C. § 1292(a)(1). The court of appeals has not yet issued a decision in the appeal. The jurisdiction of this Court over a petition for a writ of certiorari to review a decision in that appeal would be invoked under 28 U.S.C. § 1254(1), and the Court's jurisdiction to grant a writ of certiorari before judgment may be invoked under 28 U.S.C. § 2101(e). The Court's jurisdiction to issue an injunction pending appeal is invoked under 28 U.S.C. § 1651(a). For all of these reasons, the Court should grant an injunction of SB 261 and SB 253 as to Applicants' members pending appeal of the denial of a preliminary injunction to the Ninth Circuit and, if that court affirms denial of an injunction, pending the filing and disposition of a petition for a writ of certiorari and any further proceedings in this Court. If the Court deems it appropriate, it could set the application for oral argument. See, e.g., Order, *Trump v. New Jersey*, No. 24A886 (Apr. 17, 2025) (deferring consideration of stay applications pending oral argument); see also, e.g., *Ohio v. EPA*, 144 S. Ct. 538 (2023) (same); *NFIB v. Department of Labor, OSHA*, 142 S. Ct. 736 (2021) (same). Alternatively, the Court should construe this application as a petition for a writ of certiorari before judgment to review the denial of a preliminary injunction, grant the petition, and issue an injunction pending its plenary review. See, e.g., *Moyle v. United States*, 144 S. Ct. 540 (2024) (granting stay and certiorari before judgment); *Ardoyn v. Robinson*, 142 S. Ct. 2892 (2022) (same). Either way, the Court should not allow California to conscript thousands of companies across the country to speak against their will even before Applicants' entitlement to a preliminary injunction is fully adjudicated.

Notes: Cites controlling authority in jurisdiction statement

No. 25A478

Title:	Todd Blanche, et al., Applicants v. Shira Perlmutter
Docketed:	October 27, 2025
Lower Ct:	United States Court of Appeals for the District of Columbia Circuit
Case Numbers:	(25-5285)

Proceedings and Orders

- Oct 27 2025 Application (25A478) for a stay, submitted to The Chief Justice.
[Main Document Proof of Service](#)
- Oct 27 2025 Response to application (25A478) requested by The Chief Justice, due by 4 p.m.(EST) on November 10, 2025.
- Nov 10 2025 Response to application from respondent Shira Perlmutter filed.
[Main Document Proof of Service](#)
- Nov 12 2025 Reply of Todd Blanche, et al. in support of application submitted.
[Reply Proof of Service](#)

C. The Government Is Likely To Succeed In Showing That Respondent Is Not Entitled To Equitable Relief Restoring Her To Office

The government also is likely to succeed on the independent ground that the court of appeals' interlocutory injunction reinstating respondent exceeded its remedial authority. The traditional remedy for the unlawful removal of an executive officer is back pay, not a preliminary injunction granting interim reinstatement. See *Bessent v. Dellinger*, 145 S. Ct. 515, 516-518 (2025) (Gorsuch, J., dissenting); Appl. at 20-31, *Wilcox*, *supra* (No. 24A966). Even assuming that respondent could obtain some form of reinstatement remedy at the end of the litigation—an issue the Court need not decide now—the interim relief granted here is plainly unlawful.

a. Courts of appeals derive their powers to issue interim orders from the All Writs Act, 28 U.S.C. 1651(a), which Congress originally enacted as Section 14 of the Judiciary Act of 1789, ch. 20, 1 Stat. 80-81. Like injunctions issued by district courts, interim injunctions issued by courts of appeals must comport with “traditional principles of equity jurisdiction,” *Grupo Mexicano de Desarrollo S.A. v. Alliance Bond Fund, Inc.*, 527 U.S. 308, 318 (1999), as understood “at the time of the adoption of the Constitution and the enactment of the original Judiciary Act,” *Trump v. CASA, Inc.*, 606 U.S. 831, 841-842 (2025). Indeed, the All Writs Act specifically requires that orders be “agreeable to the usages and principles of law.” 28 U.S.C. 1651(a). One of the most well-established principles of equity jurisprudence is that a court may not enjoin the removal of an executive officer. This Court has recognized that principle time and again. For instance, the Court has explained:

• “[T]o sustain a bill in equity to restrain * * * the removal of public officers, is to invade the domain of the courts of common law, or of the executive and administrative department.” *In re Sawyer*, 124 U.S. 200, 210 (1888).

• “[A] court of equity will not, by injunction, restrain an executive officer from making a wrongful removal of a subordinate appointee, nor restrain the appointment of another.” *White v. Berry*, 171 U.S. 366, 377 (1898).²²

• “[T]he general rule, both in England and in this country, is that courts of equity have no jurisdiction * * * over the appointment and removal of public officers.” *Harkrader v. Wadley*, 172 U.S. 148, 165 (1898).

• “A court of equity has no jurisdiction over the appointment and removal of public officers.” *Walton v. House of Representatives*, 265 U.S. 487, 490 (1924).

• A “traditional limit upon equity jurisdiction” precludes “federal equity from staying removal of a federal officer.” *Baker v. Carr*, 369 U.S. 186, 231 (1962) (emphasis omitted).

That principle is longstanding

Notes: No Jurisdiction section; uses language “Courts derive their power from...”

No. 25A443

Title:	Donald J. Trump, President of the United States, et al., Applicants v. Illinois, et al.
Docketed:	October 17, 2025
Lower Ct:	United States Court of Appeals for the Seventh Circuit
Case Numbers:	(25-2798)

Proceedings and Orders

Oct 17 2025	Application (25A443) for a stay, submitted to Justice Barrett. Main Document Lower Court Orders/Opinions Proof of Service
Oct 17 2025	Response to application (25A443) requested by Justice Barrett, due by 5 p.m. (EDT) on October 20, 2025.

Pursuant to Rule 23 of the Rules of this Court and the All Writs Act, 28 U.S.C. 1651, the Solicitor General—on behalf of Donald J. Trump, President of the United States, et al.—respectfully applies for a stay of the order of October 9, 2025, issued by the U.S. District Court for the Northern District of Illinois (App., *infra*, 1a-2a), pending the consideration and disposition of the government’s appeal to the U.S. Court of Appeals for the Seventh Circuit and, if the court of appeals affirms the order, pending the timely filing and disposition of a petition for a writ of certiorari and any further proceedings in this Court. In addition, the Solicitor General respectfully requests an immediate administrative stay to prevent ongoing and intolerable risks to the lives and safety of federal personnel while this Court considers this application.

ARGUMENT

Under Rule 23 of the Rules of this Court and the All Writs Act, 28 U.S.C. 1651, to obtain a stay of an interlocutory order pending review in the court of appeals and in this Court, an applicant must show a likelihood of success on the merits, a reasonable probability of obtaining certiorari, and a likelihood of irreparable harm. See *Hollingsworth v. Perry*, 558 U.S. 183, 190 (2010) (per curiam). In “close cases,” the Court will balance the equities and weigh the relative harms. *Ibid*. Those factors overwhelmingly support a stay here.³

3 As in *Department of Education v. California*, 604 U.S. 650 (2025) (per curiam), “several factors counsel in favor of construing the District Court’s order as an appealable preliminary injunction.” *Id.* at 651. Among others, the order “carries * * * the hallmark[] of a preliminary injunction” in that it was supported by lengthy oral and written opinions issued after full briefing and an adversary hearing; the court’s “basis for issuing the order is strongly challenged” on the grounds set forth below; and the order threatens to inflict irreparable harm by exposing ICE agents and other federal personnel to intolerable risks of violence in Illinois and usurping the President’s statutory and constitutional powers. *Ibid.* (quoting *Sampson v. Murray*, 415 U.S. 61, 87 (1974)) (brackets omitted); see *Abbott v. Perez*, 585 U.S. 579, 594–595 (2018). The order’s “TRO” label thus presents no impediment to inte

II. THE OTHER FACTORS SUPPORT RELIEF FROM THE DISTRICT COURT’S ORDER

In deciding whether to grant emergency relief, this Court also considers whether the underlying issues warrant its review; whether the applicant likely faces irreparable harm; and, in close cases, the balance of equities. See *Hollingsworth*, 558 U.S. at 190. Those factors all support relief here.

A. The Issues Raised By The Order Warrant Certiorari

The issues raised by the district court’s order would plainly warrant further review by this Court if that order were ultimately affirmed by the Seventh Circuit. Whether a district court may second-guess the President’s decision to call up the National Guard in the face of widespread violent resistance to the enforcement of federal law under his express authority in Section 12406 is a question of tremendous national importance—both in general and in the particular circumstances here, where the President has invoked Section 12406 to protect federal personnel and property from35 violent riots in a major American city. This Court regularly grants review to address injunctions that frustrate important Presidential orders and undermine national security. See *Egan*, 484 U.S. at 520 (explaining that the Court granted certiorari to address interference with Executive Branch determinations of “importance * * * to national security concerns”); see also, *e.g.*, *Trump v. V.O.S. Selections, Inc.*, cert. granted, No. 25-250 (oral argument scheduled for Nov. 5, 2025); *Hawaii*, 585 U.S. at 710-711; *Winter v. NRDC, Inc.*, 555 U.S. 7, 20 (2008).

In addition, as discussed above, the Seventh Circu

Notes: No Jurisdiction section (word “Jurisdiction” absent) insufficient case law scattered throughout and in footnotes.

No. 25A312	
Title:	Donald J. Trump, President of the United States, et al., Applicants v. Lisa D. Cook, Member of the Board of Governors of the Federal Reserve System
Docketed:	September 18, 2025

Lower Ct: United States Court of Appeals for the District of Columbia Circuit

Case Numbers: (25-5326)

Proceedings and Orders

Sep 18 2025 Application (25A312) for a stay, submitted to The Chief Justice.

[Main Document](#) [Lower Court Orders/Opinions](#) [Proof of Service](#)

ARGUMENT

Under Rule 23 of the Rules of this Court and the All Writs Act, 28 U.S.C. 1651, to obtain a stay of a preliminary injunction pending review in the court of appeals and in this Court, an applicant must show a likelihood of success on the merits, a reasonable probability of obtaining certiorari, and a likelihood of irreparable harm. See *Hollingsworth v. Perry*, 558 U.S. 183, 190 (2010) (per curiam). In “close cases,” the Court balances the equities and weighs the relative harms. *Ibid*.

Here, the government is likely to succeed on the merits of Cook’s procedural and substantive challenges. It is also likely to succeed on the independent ground that the district court’s preliminary injunction reinstating Cook exceeds its remedial authority. The equities, too, support allowing the removal to take effect while this litigation proceeds. This Court should accordingly stay the district court’s injunction pending further review and should grant an administrative stay.

C. The Government Is Likely To Succeed In Showing That Cook Is Not Entitled To Equitable Relief Restoring Her To Office

The government also is likely to succeed on the independent ground that the district court’s preliminary injunction reinstating Cook exceeded its remedial authority. The traditional remedy for the unlawful removal of an executive officer is back pay, not a preliminary injunction granting interim reinstatement. See *Bessent v. Dellinger*, 145 S. Ct. 515, 516-518 (2025) (Gorsuch, J., dissenting); Appl. at 20-31, *Wilcox*, *supra* (No. 24A966). Even assuming that Cook could obtain some form of reinstatement remedy at the end of the litigation—an issue the Court need not decide now—the preliminary relief granted here is plainly unlawful.

a. Federal courts derive their equitable powers from the Judiciary Act of 1789, ch. 20, 1 Stat. 73. See *Trump v. CASA, Inc.*, 606 U.S. 831, 841 (2025); *Grupo Mexicano de Desarrollo S.A. v. Alliance Bond Fund, Inc.*, 527 U.S. 308, 318 (1999). They must exercise those powers in accordance with “traditional principles of equity jurisdiction,” *Grupo*, 527 U.S. at 319, as understood “at the time of the adoption of the Constitution and the enactment of the original Judiciary Act,” *CASA*, 606 U.S. at 841-842. Federal courts may not “devise novel remedies that have no background in traditional equitable practice.” *Id.* at 846 n.9.

One of the most well-established principles of equity jurisprudence is that a court may not enjoin the removal of an executive officer. This Court has recognized that principle time and again. For instance, the Court has explained:

- “[T]o sustain a bill in equity to restrain * * * the removal of public officers, is to invade the domain of the courts of common law, or of the executive and administrative department.” *In re Sawyer*, 124 U.S. 200, 210 (1888).
- “[A] court of equity will not, by injunction, restrain an executive officer from making a wrongful removal of a subordinate appointee, nor restrain the

appointment of another.” *White v. Berry*, 171 U.S. 366, 377 (1898).

- “[T]he general rule, both in England and in this country, is that courts of equity have no jurisdiction * * * over the appointment and removal of public officers.” *Harkrader v. Wadley*, 172 U.S. 148, 165 (1898).
- “A court of equity has no jurisdiction over the appointment and removal of public officers.” *Walton v. House of Representatives*, 265 U.S. 487, 490 (1924).
- A “traditional limit upon equity jurisdiction” precludes “federal equity from staying removal of a fed

This Court Should Issue An Administrative Stay While It Considers This Application

The Chief Justice granted administrative stays of the district court’s orders reinstating removed executive officers in both *Trump v. Wilcox*, No. 24A966, 2025 WL 103917 (Apr. 9, 2025), and *Trump v. Slaughter*, No. 25A264, 2025 WL 2582814 (Sept. 8, 2025). An administrative stay is likewise warranted here.

Notes: No jurisdiction section. appears to use template equity and derivative power arguments

No. 25A515	
Title:	Jose Duran, Individually and as Representative of a Class of Judgment Creditors of the Estate of Donald Trump, Jr., et al. v. United States, et al.
Docketed:	November 4, 2025
Lower Ct:	United States Court of Appeals for the Second Circuit
Case Numbers:	(24-185)

Proceedings and Orders

Oct 30 2025 Application (25A515) for a stay, submitted to Justice Sotomayor.

[Main Document](#) [Proof of Service](#)

Nov 05 2025 Ordered entered by Justice Sotomayor: Upon consideration of the application of counsel for the applicant, it is ordered that the mandate of the United States Court of Appeals for the Second Circuit, case Nos. 24-185 and 25-186, is hereby recalled and stayed pending further order of the undersigned or of the Court. It is further ordered that a response to the applications be filed on or before Wednesday, November 12, 2025, by 4 p.m. (EST).

Nov 12 2025 Response to application from respondent United States filed.
[Main Document Proof of Service](#)

Nov 14 2025 Order entered by Justice Sotomayor: Upon further consideration of the application of counsel for the applicant and response filed thereto, it is ordered that stay heretofore issued by Justice Sotomayor on November 5, 2025, is hereby vacated. Give the Government's representation that it will not transfer the funds outside of the United States before the disposition of any petition for a writ of certiorari, the application for stay is denied.

**Application to Stay the Judgment to Allow the Filing of a Petition for
Certiorari to the United States Court of Appeals for the Second Circuit**

To the Honorable Sonia Sotomayor:

Jose Duran moves pursuant to 28 U.S.C. 2101(f) and Rule 22 of the Rules of the United States Supreme Court for an Order staying the Judgment in this case to allow his counsel time to file a Petition for Certiorari and for this Court to rule thereon. In support of this Application, Duran asserts:

Jose Duran Moves Pursuant to 28 U.S.C. 2101(f) and Rule 22 of the Rules of the United States Supreme Court for an Order staying the judgement in this case to allow his counsel time to file a petition for Cetiorari...

Notes: No Jurisdiction section.

No. 25A539

Title: **Brooke Rollins, Secretary of Agriculture, et al., Applicants
v.
Rhode Island State Council of Churches, et al.**

Docketed: November 7, 2025

Lower Ct: United States Court of Appeals for the First Circuit

Case Numbers: (25-2089)

Proceedings and Orders

- Nov 07 2025 Application (25A539) for a stay, submitted to Justice Jackson.
[Main Document](#) [Lower Court Orders/Opinions](#) [Proof of Service](#)
- Nov 07 2025 Letter of applicant Brooke Rollins, Secretary of Agriculture, et al. filed.
[Main Document](#)
- Nov 07 2025 Order entered by Justice Jackson: The applicants are seeking a stay of two orders of the United States District Court for the District of Rhode Island, case No. 1:25-cv-569. See D. Ct. Minute Entry (Oct. 31, 2025) and Docket Number 34 (Nov. 6, 2025). These orders require the applicants to fully fund benefits for the Supplemental Nutritional Assistance Program (“SNAP”) for the month of November, and to distribute that funding by the end of the day on November 7, 2025 (today). Earlier today, the applicants asked the U.S. Court of Appeals for the First Circuit to stay the District Court’s orders pending appeal, and to issue an administrative stay to facilitate its consideration of that stay motion. At 6:08 p.m., the First Circuit denied the applicants’ request for an administrative stay, but stated that it “intend[s] to issue a decision on [the stay pending appeal] motion as quickly as possible.” *Rhode Island State Council of Churches v. Rollins*, No. 25-2089 (CA1 Nov. 7, 2025). The applicants filed an application in this Court this evening, requesting a stay of the two District Court orders “pending the disposition of the government’s appeal to the United States Court of Appeals for the First Circuit and, if the court of appeals affirms those orders, pending the timely filing and disposition of a petition for a writ of certiorari in this Court.” Application at 1. The applicants assert that, without intervention from this Court, they will have to “transfer an estimated \$4 billion by tonight” to fund SNAP benefits through November. *Ibid.* Given the First Circuit’s representations, an administrative stay is required to facilitate the First Circuit’s expeditious resolution of the pending stay motion. It is ordered that the District Court’s orders are hereby administratively stayed pending disposition of the motion for a stay pending appeal in the United States Court of Appeals for the First Circuit in case No. 25-2089 or further order of Justice Jackson or of the Court. This administrative stay will terminate forty-eight hours after the First Circuit’s resolution of the pending motion, which the First Circuit is expected to issue with dispatch.
- Nov 10 2025 Order entered by Justice Jackson: In light of the First Circuit’s order partially denying the motion for a stay and given the exigencies involved in this matter, it is ordered that, by 11:00 a.m. (EST) on November 10, 2025, the applicants shall provide the Court with notice of their intention to continue to pursue a stay of the District Court’s orders from this Court via the pending

stay application. If the applicants do intend to seek a stay, it is further ordered, that (1) applicants shall submit any supplemental brief under Rule 15.8 in support of the stay application by 4:00 p.m. (EST) on November 10, 2025; and (2) respondents shall file a response to the application and any of the supplemental arguments by 8:00 a.m. (EST) on November 11, 2025.

Nov 10 2025 Letter of applicant Brooke Rollins, Secretary of Agriculture, et al. filed.
[Main Document](#)

Nov 10 2025 Supplemental brief of applicant Brooke Rollins, Secretary of Agriculture, et al. filed.
[Main Document](#) [Other Proof of Service](#)

Nov 10 2025 Brief amici curiae of Bipartisan Former Governors filed.
[Main Document](#) [Proof of Service](#)

Nov 11 2025 Response to application from respondent Rhode Island State Council of Churches, et al. filed.
[Main Document](#) [Main Document](#) [Proof of Service](#)

Nov 11 2025 Application (25A539) referred to the Court.

Nov 11 2025 The application for stay presented to Justice Jackson is referred to the Court. The administrative stay entered on November 7, 2025, is hereby extended until 11:59 p.m. (EST) on November 13, 2025. Justice Jackson would deny the request for extension of the administrative stay and would deny the application.

Nov 11 2025 Amicus brief of Amici States submitted.
[Main Document](#) [Proof of Service](#)

Nov 11 2025 Amicus brief of Local Governments and Local Government Leaders submitted.
[Main Document](#) [Proof of Service](#)

Nov 13 2025 Letter withdrawing the application filed.
[Main Document](#)

Nov 13 2025 Application (25A539) withdrawn.

Pursuant to Rule 23 of the Rules of this Court and the All Writs Act, 28 U.S.C. 1651, the Solicitor General, on behalf of Brooke Rollins, Secretary of Agriculture, et al., respectfully files this application to stay the orders issued by the United States District Court for the District of Rhode Island

ARGUMENT

To obtain a stay pending appellate proceedings, an applicant must show a likelihood of success on the merits, a reasonable probability of obtaining certiorari, and a likelihood of irreparable harm. See *Hollingsworth v. Perry*, 558 U.S. 183, 190 (2010) (per curiam). In “close cases,” “the Court will balance the equities and weigh the relative harms.” *Ibid.* Those factors overwhelmingly support a stay in this matter.

I. THE GOVERNMENT IS LIKELY TO SUCCEED ON THE MERITS

1. a. The district courts’ orders are plainly appealable. See 28 U.S.C. 1292(a); see also 28 U.S.C. 1252(1). Similar to prior orders reviewed by this Court, the orders below carry all of the “hallmarks of a preliminary injunction.” *Department of Education v. California*, 604 U.S. 650, 651 (2025). Far from maintaining the status quo, the district court commanded the government to transfer billions of dollars from one federal program to another and then immediately expend them, all in an effort to change the consequences of the current shutdown gripping the government. Once those funds are disbursed to the States and spent, the government has no available

means for getting them back. By every measure, that has the “practical effect” of an injunction, conferring “appellate jurisdiction.” *Abbott v. Perez*, 585 U.S. 579, 594 (2018). That is especially true here, where “an adversary proceeding has been held, and the court’s basis for issuing the order [is] strongly challenged.” *Sampson v. Murray*, 415 U.S. 61, 87 (1974).

Put simply, the district courts’ orders are not short-term emergency measures keeping existing affairs in place. They are a single judge’s attempt to commandeer billions of dollars in federal funds to address the consequences of the government shutdown as he sees fit, and to do so in a way that would force the transfer and expenditure of billions of dollars that would otherwise go towards other worthy ends,¹¹ on a timetable guaranteed thwart meaningful appellate review. Such judicial edicts are appealable. *E.g.*, *California*, 604 U.S. at 651.

Notes: No Jurisdiction section. Jackson does not declare that the application would be treated as a cert. Stay terminates 48 hours after appellate decision (not immediately) Orders supplemental brief according to rule 15.8 (plausibility of writ treatment without declaration or courts commitment thereto)

No. 25A376

Title:	Samantha Estefania Franc Castro, Applicant v. Jose Leonardo Brito Guevara
Docketed:	October 2, 2025
Lower Ct:	United States Court of Appeals for the Fifth Circuit
Case Numbers:	(24-10520)

Proceedings and Orders

Oct 01 2025	Application (25A376) for a stay, submitted to Justice Alito. Main Document Proof of Service
Oct 02 2025	Order entered by Justice Alito: Upon consideration of the application of counsel for the applicant, it is ordered that the mandate of the United States Court of Appeals for the Fifth Circuit, case No. 24-10520, is hereby stayed

pending further order of the undersigned or of the Court. It is further ordered that a response to the application be filed on or before Thursday, October 16, 2025, by 4 p.m. (EDT).

Oct 16 2025 Response of Jose Leonardo Brito Guevara to application not accepted for filing. (October 16, 2025) (corrected version submitted)

Oct 16 2025 Response to application from respondent Jose Leonardo Brito Guevara and motion to file a supplemental appendix under seal filed. [at 4:07 p.m.]
[Main Document](#) [Proof of Service](#) [Main Document](#)

Oct 20 2025 Reply of applicant Samantha Estefania Francisco Castro filed.
[Reply](#) [Proof of Service](#)

Nov 13 2025 Application (25A376) referred to the Court.

Nov 13 2025 Application (25A376) for stay presented to Justice Alito and by him referred to the Court is denied. The motion of respondent for leave to file a supplemental appendix under seal is granted. The order heretofore entered by Justice Alito is vacated. Justice Sotomayor and Justice Jackson would grant the application.

JURISDICTION

This Court has jurisdiction to resolve this application under 28 U.S.C. §§ 1331 and 2101(f).

REASONS FOR GRANTING THE STAY

This Court should stay the issuance of the Fifth Circuit’s mandate pending Castro’s filing of a petition for a writ of certiorari. Such a stay is appropriate when the applicant shows “(1) a reasonable probability that four Justices will consider the issue sufficiently meritorious to grant certiorari; (2) a fair prospect that a majority of the Court will vote to reverse the judgment below; and (3) a likelihood that irreparable harm will result from the denial of a stay.” *Hollingsworth v. Perry*, 558 U.S. 183, 190 (2010). Those criteria are satisfied here.

I. There Is a Reasonable Probability That the Court Will Grant Certiorari

In denying Castro’s motion for a stay, Judge Willett did not dispute that Castro’s forthcoming petition for certiorari “will raise a substantial question worthy of Supreme Court review.” App.49a. The panel expressly acknowledged that it was splitting with multiple other circuits on the question of whether to apply *de novo* or clear-error review to a district court’s “well settled” determination under the Hague Convention, noting the need for “clearer direction from the Supreme Court.” App.10a. Such a circuit split on an important issue of federal law requires this Court’s resolution. What’s more, the panel decision below cannot be squared with this Court’s recent precedent regarding the standard of review for mixed questions of fact and law. That includes, most notably, this Court’s decision in *Monasky*, which addressed an issue under the Hague Convention (the “habitual residence” requirement) that is virtually indistinguishable from the one here (the “well settled” defense). And the question of whether to review “well settled” determinations *de novo* or for clear error is a recurrent issue with profound consequences for children subject to Hague Convention litigation. There is therefore a reasonable probability that this Court will grant certiorari here.

Notes: Jurisdiction section present and cites 2101

Title:	Donald J. Trump, President of the United States, et al., Applicants v. Ashton Orr, et al.
Docketed:	September 19, 2025
Lower Ct:	United States Court of Appeals for the First Circuit
Case Numbers:	(25-1579)

Proceedings and Orders

Sep 19 2025	Application (25A319) for a stay, submitted to Justice Jackson. Lower Court Orders/Opinions Main Document Proof of Service
Sep 22 2025	Response to application (25A319) requested by Justice Jackson, due by 4 p.m. (EDT) on October 6, 2025.
Oct 03 2025	Brief amici curiae of Indiana, et al. filed. Main Document Proof of Service
Oct 06 2025	Response to application from respondent Ashton Orr, et al. filed. Main Document Main Document Proof of Service
Oct 07 2025	Reply of applicant Donald J. Trump, President of the United States, et al. filed. Reply Proof of Service
Nov 06 2025	Application (25A319) referred to the Court.
Nov 06 2025	[See detached opinion for additional order language.] The application for stay presented to Justice Jackson and by her referred to the Court is granted. The June 17, 2025 order of the United States District Court for the District of Massachusetts, case No. 1:25-cv-10313, is stayed pending the disposition of the appeal in the United States Court of Appeals for the First Circuit and disposition of a petition for a writ of certiorari, if such a writ is timely sought. Should certiorari be denied, this stay shall terminate automatically. In the event certiorari is granted, the stay shall terminate upon the sending down of the judgment of this Court. Justice Jackson, joined by Justice Kagan and Justice Sotomayor, dissents. (Detached Opinion).

Pursuant to Rule 23 of the Rules of this Court and the All Writs Act, 28 U.S.C. 1651, the Solicitor General—on behalf of applicants Donald J. Trump, President of

the United States, et al.—respectfully files this application for a stay of the injunction issued

ARGUMENT

Under Rule 23 of the Rules of this Court and the All Writs Act, 28 U.S.C. 1651, to obtain a stay of a preliminary injunction pending review in the court of appeals and in this Court, an applicant must show a likelihood of success on the merits, a reasonable probability of obtaining certiorari, and a likelihood of irreparable harm. See *Hollingsworth v. Perry*, 558 U.S. 183, 190 (2010) (per curiam). In “close cases,” the Court will balance the equities and weigh the relative harms. *Ibid.* All of those factors decisively favor a stay of the district court’s classwide injunction in this case.

I. THE GOVERNMENT IS LIKELY TO SUCCEED ON THE MERITS

In issuing its classwide preliminary injunction, the district court concluded that respondents were likely to succeed on their claims (1) that the Passport Policy violates equal protection because it discriminates based on sex and is motivated by animus; (2) that the Passport Policy violates the APA because it is arbitrary and capricious; and (3) that the Department’s use of passport application forms that offer a sex marker of only “M” or “F” violates the PRA because the forms lacked the OMB Director’s approval. App., *infra*, 30a-60a, 100a-101a. After the district court entered the classwide injunction, however, this Court issued its decision in *United States v. Skrmetti*, 145 S. Ct. 1816 (2025), making clear that respondents’ sex-discrimination claim lacks merit, and the OMB Director approved use of the forms, rendering respondents’ PRA claim moot. That leaves respondents’ animus-based and arbitrary-or-capricious challenges, which also fail.

II. THE OTHER FACTORS SUPPORT STAYING THE DISTRICT COURT’S INJUNCTION

The remaining factors—*i.e.*, whether the underlying issues warrant review, whether the applicant likely faces irreparable harm, and, in close cases, the balance of equities, see *Hollingsworth*, 558 U.S. at 190—likewise support relief here.

A. The Issues Raised By The District Court’s Injunction Warrant This Court’s Review

If the court of appeals were to uphold the district court’s classwide injunction, certiorari would plainly be warranted. Respondents challenge the Executive Order (and the Department’s implementation of it) on constitutional and APA grounds. Those challenges concern a matter of imperative public importance: the authority of “the President” to “prescribe for and on behalf of the United States” “rules” governing the issuance of passports under the Passport Act. 22 U.S.C. 211a. Exercising that statutory authority supplementing his own constitutional authority, the President determined that the sex designation on U.S. passports should reflect “immutable biological reality,” rather than “self-assessed gender identity.” App., *infra*, 1a. And in so doing, he restored this Nation’s policy since 1977, except during the last Administration, of not permitting passport applicants to self-select their preferred sex designation. See p. 5, *supra*.³³

The district court’s classwide injunction countermands that presidential decision and commandeers the contents of a “political document” “addressed to foreign powers.” *Agee*, 453 U.S. at 292 (quoting *Urtetiqui v. D’Arcy*, 34 U.S. (9 Pet.) 692, 698 (1835)). If the court of appeals were to affirm the injunction, a judicial intrusion of that significance into an area “generally accepted” to be “the province and responsibility of the Executive” would unquestionably warrant this Court’s review. *Id.* at 293-294. Indeed, this Court frequently grants plenary review of lower-court decisions blocking significant federal policies or programs. See, *e.g.*, *Trump v. V.O.S. Selections, Inc.*, No. 25-250, 2025 WL 2601020 (Sept. 9, 2025); *Becerra v. Braidwood Mgmt., Inc.*, 145 S. Ct. 1038 (2025); *Garland v. VanDerStok*, 144 S. Ct. 1390 (2023). And the Court has previously granted certiorari to address disputes over the contents of U.S. passports. See, *e.g.*, *Zivotofsky v. Kerry*, 572 U.S. 1059 (2014).

Notes: No jurisdiction section nor is the word “jurisdiction” used in the document.

No. 25A476

Title:	59 Murray Enterprises, Inc., et al., Applicants v. City of New York, New York, et al.
Docketed:	October 24, 2025
Lower Ct:	United States Court of Appeals for the Second Circuit
Case Numbers:	(24-621)

Proceedings and Orders

Oct 22 2025 Application (25A476) injunction pending the filing and disposition of a petition for a writ of certiorari, submitted to Justice Sotomayor.
[Main Document](#) [Proof of Service](#)

Oct 31 2025 Application (25A476) denied by Justice Sotomayor.

Preliminary Statement

Applicants move pursuant to the All Writs Act, 28 U.S.C. § 1651, for an injunction pending the filing of their petition for a writ of certiorari to review the Summary Order of the U.S. Court of Appeals issued July 8, 2025, affirming the February 9, 2024 Judgment of the U.S. District Court for the Southern District of New York (Lewis Liman, D.J.), dismissing Applicants' constitutional challenges to the 2001 Amendments to the New York City Zoning Resolution.

As developed below, without emergency relief the City of New York could bring actions to close businesses offering constitutionally protected adult expression, based on controversial amendments to the City's Zoning Resolution that were enacted back in 2001, which have never been enforced. This could result in Petitioners and other businesses suffering irreparable and substantial injury. It also serves the public's interest to maintain the status quo of no enforcement that has existed for a generation during the relatively short time it will take this Court to consider the merits of the constitutional issues presented. This case raises a critically important question of federal law and First Amendment jurisprudence: Whether the substantial governmental interest required to justify an ordinance that impacts free expression under a municipality's police power must exist when it is enforced, or merely when it is enacted, where there have been significant changed circumstances and the facts

that justified the original ordinance no longer exist. Specifically, Applicants seek to enjoin enforcement of the challenged—and never enforced—municipal ordinance provisions from 2001, which radically change the definition of “adult establishment” in New York City’s Zoning Resolution to severely limit the public’s access to constitutionally protected expression. The asserted factual predicate for these changes—namely, the negative secondary effects allegedly caused by adult establishments—date back to 1994. And there have been significant changes in the last 30 years such that any adverse secondary effects which justified the City’s adult zoning restrictions when amended, have long-since ceased to exist -- rendering them subject to constitutional challenge at this time under *United States v. Carolene Products Co.*, 304 U.S. 144, 155 (1938) (the “constitutionality of a statute predicated upon the existence of a particular set of facts may be challenged by showing to the court that those facts have ceased to exist”). Moreover, in adjudicating a contemporaneous State constitutional challenge, New York Courts expressly found that the form of businesses targeted by the 2001 Amendments, which minimize their adult concentration to less than 40% of the business, does not cause negative secondary effects, see *For The People Theatres of NY, Inc. v. City of New York*, 38 Misc.3d 663 (Sup. Ct. N.Y. Co. 2012), *aff’d*, 131 A.D.3d 279 (1st Dept. 2015), *rev’d on oth. gnnds.*, 29 N.Y.3d 340 (2019), *ipso facto* rendering the 2001 Amendments unconstitutional for Federal constitutional purposes under *City of Renton v. Playtime Theatres, Inc.*, 475 U.S. 41 (1986) and *City of Los Angeles v. Alameda Books, Inc.*, 535 U.S. 425 (2002). Furthermore, the City did not establish “how speech will fare” if the 2001 Amendments are enforced, as required under Justice Kennedy’s controlling decision in *City of Los Angeles v. Alameda Books, Inc.*, *supra*, 535 U.S. at 440 (Kennedy, J., concurring in the Judgment).

The challenged provisions also: (1) “substantially burden[] more speech than necessary” and are therefore unconstitutional under the First Amendment in light of *Free Speech Coalition v. Paxton*, No. 23-1122 (June 27, 2025), and *Turner Broadcasting System, Inc. v. FCC*, 520 U.S. 180 (1997); (2) unconstitutionally permit a “sensitive use veto” in conflict with *Young v. Simi Valley*, 216 F.3d 807 (9th Cir. 2000); and (3) fail to provide adequate procedural safeguards for businesses featuring protected expression and thereby conflict with the standards of *FW/PBS v. City of Dallas*, 493 U.S. 215 (1990).

In addition to violating First Amendment rights -- in and of itself causing irreparable injury as a matter of law, see, *Elrod v Burns*, 427 U.S. 347 (1976); *Mahmoud v. Taylor*, 606 U.S. ----, 145 S.Ct. 2332 (2025) (violation of First Amendment rights “unquestionably constitutes irreparable injury”) -- enforcement of the challenged zoning will require Applicants to close or materially change the nature of their businesses, or face nuisance abatement (or criminal) penalties for violation of the ordinance, and will jeopardize the livelihood of hundreds of performers and employees.

For all of these reasons, “the record as a whole” shows that the challenged provisions “constitute a forbidden intrusion on the field of free expression” and therefore should have been declared unconstitutional under *Bose Corp. v. Consumers Union of U.S., Inc.*, 466 U.S. 485 (1984), and Applicants satisfy every element of even the most rigorous test for an injunction pending certiorari, including a reasonable probability that certiorari will be granted. See Note, *The Role of Certiorari in Emergency Relief*, 137 Harv. L. Rev. 1951 (2024).

Notes: No jurisdiction section. Argument section contains no precedents to support jurisdiction. Preliminary statement cites statutory authority movants utilize along with factual basis of lower court case

No. 25A402

Title: **Andrew Hess, Applicant**
v.
Oakland County, Michigan, et al.

Docketed: October 7, 2025

Lower Ct: United States Court of Appeals for the Sixth Circuit

Case Numbers: (25-1784)

Proceedings and Orders

- Oct 03 2025 Application (25A402) for writ of injunction, submitted to Justice Kavanaugh.
[Main Document](#) [Proof of Service](#)
- Oct 10 2025 Response to application (25A402) requested by Justice Kavanaugh, due by 4 p.m. (EDT), on October 17, 2025.
- Oct 17 2025 Response to application from respondent Oakland County, MI, et al. filed.
[Main Document](#) [Proof of Service](#)
- Oct 20 2025 Reply of applicant Andrew Hess filed.
[Reply](#) [Proof of Service](#)
- Oct 20 2025 Application (25A402) denied by Justice Kavanaugh.

Pursuant to Rule 22 of this Court and the All Writs Act, 28 U.S.C. § 1651(a), Applicant Andrew Hess respectfully seeks an emergency injunction prohibiting enforcement of Michigan Compiled Laws § 750.543m against him pending the appeal, and the filing and disposition of a petition for certiorari seeking review, of his First Amendment challenge to § 750.543m, facially and as applied to his political speech. The County Prosecutor is seeking to reinstate a criminal prosecution of Applicant under this 20-year felony statute, which prohibits the “serious expression of intent to commit an act of terrorism.” The Sixth Circuit denied Applicant’s motion for an injunction pending appeal on October 1, 2025. This request arises from the Sixth Circuit’s decisi

JURISDICTION

The district court denied Applicant’s motion for a preliminary injunction on August 29, 2025. App.005-027. Consistent with Rule 23.3, Applicant sought an injunction pending appeal from the Sixth Circuit. The Sixth Circuit denied the motion for an injunction pending appeal on October 1, 2025. App.001-004. This Court has jurisdiction under 28 U.S.C. §§ 1254(1) & 1651, and it may grant the requested relief under 28 U.S.C. § 1651(a).

REASONS FOR GRANTING THE APPLICATION

The All Writs Act, 28 U.S.C. § 1651(a), authorizes a Circuit Justice or the Court to issue an injunction pending appeal. In the context of constitutional claims, an injunction is appropriate when an applicant faces irreparable harm, when he is likely to obtain certiorari review and succeed on the merits of his claims, and when the public interest would not be harmed. *See Tandon v. Newsom*, 593 U.S. 61, 63-64 (2021) (per curiam) (citing *Roman Cath. Diocese of Brooklyn v. Cuomo*, 592 U.S. 14 (2020)); *Lucas v. Townsend*, 486 U.S. 1301, 1305 (1988) (Kennedy, J., in chambers) (citing same factors and considering whether there is a likelihood of granting certiorari and “fair prospect” of reversal). The Court also has discretion to issue an injunction “based on all the circumstances of the case,” without the injunction “be[ing] construed as an expression of the Court’s views on the merits” of the case. *Little Sisters of the Poor Home for the Aged v. Sebelius*, 571 U.S. 1171 (2014).

IV. ALTERNATIVELY, THIS COURT SHOULD TREAT THIS APPLICATION AS A PETITION FOR WRIT OF CERTIORARI BEFORE JUDGMENT, GRANT CERTIORARI, AND ISSUE AN INJUNCTION PENDING REVIEW.

In the alternative, this Court should treat this application as a petition for writ of certiorari before judgment, grant certiorari, and issue an injunction pending review. *See* S. Ct. R. 11 (citing 28 U.S.C. § 2101(e)). All the ordinary factors favor certiorari review. The Sixth Circuit’s decision conflicts with this Court’s precedents. In addition, this case implicates issues of imperative public importance regarding the application of the First Amendment, and it provides a clean vehicle for addressing these issues as the record is sufficiently developed through witness testimony, and there are no material disputes of fact. Immediate determination in this Court is needed because the Cou

Notes: Initial movant statement AND Jurisdiction section present. Clearly cites all relevant statutory authority unambiguously.

No. 25A322	
Title:	We The Patriots USA, Inc., et al, Applicants v. Ventura Unified School District, et al.

Docketed:	September 19, 2025
Lower Ct:	United States Court of Appeals for the Ninth Circuit
Case Numbers:	(25-5239)

Proceedings and Orders

Sep 11 2025	Application (25A322) for writ of injunction, submitted to Justice Kagan. Main Document Lower Court Orders/Opinions Proof of Service
Sep 22 2025	Response to application (25A322) requested by Justice Kagan, due by 4 p.m. (EDT) on October 1, 2025.
Sep 30 2025	Response to application from respondent Ventura Unified School District filed. Main Document Main Document Proof of Service
Oct 01 2025	Response to application from respondent Dr. Erica Pan, Director of the California Department of Public Health filed. Main Document Proof of Service
Oct 17 2025	Application (25A322) referred to the Court.
Oct 17 2025	Application (25A322) for a writ of injunction presented to Justice Kagan and by her referred to the Court is denied.

JURISDICTION AND TIMING

The district court had federal question jurisdiction under 28 U.S.C. § 1331.

The United States Court of Appeals for the Ninth Circuit had appellate jurisdiction over the district court's denial of the Applicants' motion for a preliminary injunction under 28 U.S.C. 1292(a)(1). The Respondents challenged the Ninth Circuit's appellate jurisdiction on the basis that the district court only denied a non-appealable temporary restraining order and that the Applicants failed to properly notice a motion for a preliminary injunction. That is incorrect. The district court explicitly denied the Applicants' application for a preliminary injunction. App.6. Even if it did not, the district court converted the denial of the temporary restraining order into a preliminary injunction denial by staying the case, which denied the Applicants the chance to seek a noticed preliminary injunction. App.11-16.

This Court has jurisdiction over this application and petition under 28 U.S.C. § 1254(1) and 28 U.S.C. § 1651.

The Applicants have acted diligently to protect their rights. They filed their complaint on May 22, 2025. The district court denied their request for a temporary restraining order on June 17, 2025. The Applicants renewed their application for emergency and preliminary injunctive relief on August 12, 2025, and the district court denied it on August 15, 2025. The Applicants appealed on August 18, 2025. Doeiv then sought an injunction pending appeal from the district court, which the district court denied on August 29, 2025. The same day, the district court stayed the underlying action pending the Ninth Circuit's decisions in *Royce v. Pan*, No. 25-2504

(C.A.9); and *Doescher v. Aragon*, No. 25-4531 (C.A.9), thus effectively eliminating any possibility of pursuing injunctive relief in the district court. The Ninth Circuit denied the Applicants' Emergency Motion for An Injunction Pending Appeal on September 9, 2025. The Applicants filed this Emergency Application less than 48 hours later.

To the Honorable Elena Kagan, Associate Justice of the Supreme Court of the United States:

Pursuant to Rules 22 and 23 of this Court and 28 U.S.C. § 1651(a), the Applicants respectfully request an injunction preventing enforcement of Cal. Health & Safety Code § 120335's

Notes: Movant statement and Jurisdiction section

No. 25A411	
Title:	Alex Emric Jones, et al., Applicants v. Erica Lafferty, et al.
Docketed:	
Linked with:	25-268
Lower Ct:	Appellate Court of Connecticut
Case Numbers:	(AC 46131, AC 46132, AC 46133)

Proceedings and Orders

Oct 07 2025 Application (25A411) for a stay, submitted to Justice Sotomayor.
[Main Document](#) [Proof of Service](#)

Oct 14 2025 Application (25A411) denied by Justice Sotomayor.

Notes: No jurisdiction section, no statutory authority cited.

No. 25A354

Title: **Google LLC, et al., Applicants
v.
Epic Games, Inc.**

Docketed: September 26, 2025

Lower Ct: United States Court of Appeals for the Ninth Circuit

Case Numbers: (24-6256 24-6274 25-303)

Proceedings and Orders

Sep 24 2025 Application (25A354) for a partial stay, submitted to Justice Kagan.
[Main Document](#) [Lower Court Orders/Opinions](#) [Proof of Service](#)

Sep 26 2025 Response to application (25A354) requested by Justice Kagan, due by 4 p.m. (EDT), on October 3, 2025.

Oct 01 2025 Brief amici curiae of Former National Security Officials and Scholars filed.
[Main Document](#) [Proof of Service](#)

Oct 01 2025 Brief amicus curiae of ACT | The App Association filed.
[Main Document](#) [Main Document](#)

Oct 02 2025 Brief amicus curiae of Committee for Justice filed.
[Main Document](#) [Proof of Service](#)

Oct 03 2025 Response to application from respondent Epic Games, Inc. filed.
[Main Document](#) [Proof of Service](#)

Oct 03 2025 Brief amicus curiae of The International Center for Law & Economics filed.
[Main Document](#) [Proof of Service](#)

Oct 06 2025 Application (25A354) referred to the Court.

Oct 06 2025 Application (25A354) for partial stay presented to Justice Kagan and by her referred to the Court is denied.

STANDARD OF REVIEW

Under Rule 23 of the Rules of this Court and the All Writs Act, 28 U.S.C.

§ 1651, this Court may stay a permanent injunction entered by a federal district court. See, e.g., *Trump v. Wilcox*, 145 S. Ct. 1415, 1415 (2025); *Merrill v. People First*⁴ In the same order, the panel modified the injunction’s compliance deadlines, giving Google ten months from the date of the mandate to comply with paragraphs 11 and 12 of the injunction, and 30 days from the date of the mandate to comply with paragraphs 4-7 and 9-10. App. 121a-122a. 16of Alabama, 141 S. Ct. 25, 25 (2020) (mem.). A stay is appropriate when the applicant shows a “reasonable probability that four Justices will consider the issue sufficiently meritorious to grant certiorari”; a “fair prospect” that this Court will reverse the judgment below; and a “likelihood that irreparable harm will result from the denial of a stay.” *Hollingsworth v. Perry*, 558 U.S. 183, 190 (2010) (per curiam). In “close cases,” the Court will “balance the equities and weigh the relative harms.” *Id.*

ARGUMENT

I. THIS COURT IS LIKELY TO GRANT CERTIORARI AND REVERSE.

A. The Ninth Circuit’s Approach To The Rule Of Reason Conflicts With This Court’s Precedents And Exacerbates An Existing Circuit Split.

There is a reasonable probability that this Court will grant certiorari and reverse the jury’s verdict. The Ninth Circuit allows Sherman Act liability even when the plaintiff does not meet its Rule-of-Reason burden to show a less restrictive alternative was available to the defendant, conflicting with this Court’s clear guidance on the Rule of Reason and taking the wrong side of a pronounced circuit split.

1. The Rule of Reason seeks to distinguish between conduct “with anticompetitive effect[s] that are harmful to the consumer” and conduct “stimulating competition that [is] in the consumer’s best interest.” *Alston*, 594 U.S. at 81 (quoting *Amex*, 585 U.S. at 541).⁵ As explained *supra* at 7-8, the third step of this framework

⁵ The parties agreed in this case that the Rule of Reason governed both the monopolization claim under Section 2 and the restraint-of-trade claim under Section 1. See *FTC v. Qualcomm Inc.*, 969 F.3d 17requires the plaintiff “to demonstrate that the procompetitive efficiencies could be reasonably achieved through less anticompetitive means.” *Amex*, 585 U.S. at 542; accord *Alston*, 594 U.S. at 96-97.

Notes: “Standard of Review” section, no Jurisdiction section.

No. 25A326

Title: **Kristi Noem, Secretary, Department of Homeland Security, et al., Applicants v. National TPS Alliance, et al.**

Docketed: September 19, 2025

Lower Ct: United States Court of Appeals for the Ninth Circuit

Case Numbers: (25-5724)

Proceedings and Orders

- Sep 19 2025 Application (25A326) for a stay, submitted to Justice Kagan.
[Main Document](#) [Lower Court Orders/Opinions](#) [Proof of Service](#)
- Sep 19 2025 Opposition to Request for Immediate Administrative Stay filed.
[Main Document](#) [Other](#) [Proof of Service](#)
- Sep 22 2025 Response to application (25A326) requested by Justice Kagan, due by 4 p.m. (EDT), on September 29, 2025.
- Sep 26 2025 Brief amicus curiae of Immigration Law Scholars filed.
[Main Document](#) [Proof of Service](#)
- Sep 29 2025 Response to application from respondent National TPS Alliance, et al. filed.
[Main Document](#) [Proof of Service](#)
- Sep 29 2025 Brief amicus curiae of Members of Congress filed.
[Main Document](#) [Proof of Service](#)
- Sep 29 2025 Brief amicus curiae of Haitian TPS Holders filed.
[Main Document](#) [Proof of Service](#)
- Sep 29 2025 Brief amicus curiae of Economists filed.
[Main Document](#) [Proof of Service](#)
- Sep 30 2025 Reply of applicant Kristi Noem, et al. filed.
[Reply](#) [Proof of Service](#)
- Oct 03 2025 Supplemental brief of respondent National TPS Alliance, et al. filed.
[Main Document](#) [Proof of Service](#)
- Oct 03 2025 Application (25A326) referred to the Court.
- Oct 03 2025 In March of this year, the United States District Court for the Northern District of California entered a preliminary order postponing the effective date of the Secretary of Homeland Security’s decision to remove “temporary protected status” (TPS) from Venezuelan nationals living in the United States. See 8 U. S. C. §1254a; 5 U. S. C. §705. In May, this Court stayed that order while the Government appealed. The United States Court of Appeals for the Ninth Circuit ultimately affirmed the District Court’s preliminary order. Last month, the District Court entered final judgment in respondents’ favor, holding unlawful and setting aside the Secretary’s actions effectuating her decision—namely, her vacatur of a pending extension of TPS for Venezuelan nationals, and her termination of that status itself. See 5 U. S. C. §706(2). (The District Court also concluded that the Secretary unlawfully vacated a TPS extension for Haitian nationals. The Government now seeks to stay the portions of the District Court’s judgment pertaining to Venezuela, but not Haiti. See Application 7, n. 6.) The application for stay presented to Justice Kagan and by her referred to the Court is granted. Although the posture of the

case has changed, the parties’ legal arguments and relative harms generally have not. The same result that we reached in May is appropriate here. The September 5, 2025 order entered by the United States District Court for the Northern District of California, case No. 25–cv–1766, is stayed as to the Venezuela vacatur and Venezuela termination, pending the disposition of the Government’s appeal in the United States Court of Appeals for the Ninth Circuit and disposition of a petition for a writ of certiorari, if such writ is timely sought. Should the petition for a writ of certiorari be denied, this stay shall terminate automatically. In the event certiorari is granted, the stay shall terminate upon the sending down of the judgment of this Court. Justice Sotomayor and Justice Kagan would deny the application. Justice Jackson dissents. (Detached [Opinion](#))

Pursuant to Rule 23 of the Rules of this Court and the All Writs Act, 28 U.S.C. 1651, the Solicitor General—on behalf of applicants Kristi Noem, et al.—respectfully files this application to stay the order granting summary judgment

ARGUMENT

Under Rule 23 of the Rules of this Court and the All Writs Act, 28 U.S.C. 1651, the Court may stay a district court’s judgment pending review in the court of appeals and in this Court. See, e.g., *McHenry v. Texas Top Cop Shop, Inc.*, 145 S. Ct. 1 (2025). To obtain such relief, an applicant must show a likelihood of success on the merits, a reasonable probability of obtaining certiorari, and a likelihood of irreparable harm. See *Hollingsworth v. Perry*, 558 U.S. 183, 190 (2010) (per curiam). In “close cases,” “the Court will balance the equities and weigh the relative harms.” *Ibid.* Here, the government’s success on all scores should be self-evident. This Court has already concluded that the Secretary’s actions with respect to Venezuela’s TPS designation should be in effect while litigation in this case unfolds. 145 S. Ct. 2728. That decision reflected this Court’s assessment that the merits and the equitable factors favor the government. See *Trump v. Boyle*, 145 S. Ct. 2653, 2654 (2025). None of those factors has changed, so this Court should restore a stay pending resolution on the merits.

A. The Government Is Likely To Succeed On The Merits

For the reasons the government previously advanced—and that this Court evidently accepted in finding a likelihood of success on the merits before—the district court’s merits analysis is fatally flawed. First, the TPS statute plainly precludes judicial review of the claims that the Secretary acted arbitrarily and capriciously in vacating the noticed extension and then terminating the 2023 Designation. See 24A1059 Gov’t Appl. 16-20; 24A1059 Gov’t Reply 3-6. Second, the Secretary had inherent authority to reconsider the Mayorkas extension before it took effect. See 24A1059 Gov’t Appl. 20-23; 24A1059 Gov’t Reply 6-8. This Court’s prior analysis of those dispositive legal questions should govern here.

Notes: No Jurisdiction section nor is the word “jurisdiction” found.

Title:	Jacob Matthew Medina, Applicant v. United States
Docketed:	September 23, 2025
Lower Ct:	United States Court of Appeals for the Ninth Circuit
Case Numbers:	(25-1963)

Proceedings and Orders

Sep 16 2025 Application (25A331) for a certificate of appealability, submitted to Justice Kagan.

[Main Document](#) [Lower Court Orders/Opinions](#) [Proof of Service](#)

Sep 29 2025 Application (25A331) denied by Justice Kagan.

TO THE HONORABLE ELENA KAGAN, ASSOCIATE JUSTICE OF THE
SUPREME COURT OF THE UNITED STATES AND CIRCUIT JUSTICE OF THE
U.S. COURT OF APPEALS FOR THE NINTH CIRCUIT

Pursuant to Supreme Court Rule 22.1, Applicant Jacob Matthew Medina respectfully requests a Certificate of Appealability. The United States District Court for the District of Arizona issued an opinion denying habeas relief on March 4, 2025. A copy of that memorandum and order attached as Exhibit A. The United States Court of Appeals for the Ninth Circuit denied a certificate of appealability and dismissed the appeal on June 20, 2025.

A copy of that order is attached as Exhibit B. The Ninth Circuit denied a timely Motion for Reconsideration or Reconsideration En Banc on August 15, 2025. A copy of that order is attached as Exhibit C. The applicant filed his motion to vacate, set aside, or correct his sentence on January 12, 2023. A copy of that petition is attached as Exhibit D.

Jurisdiction is founded on 28 U.S.C. § 2253(c)(1) which authorizes each justice of this Court to issue a certificate of appealability. A certificate of appealability should issue if “reasonable jurists could debate whether (or, for that matter, agree that) the [habeas] petition should have been resolved in a different manner or that the issues presented were adequate to deserve encouragement to proceed further.” *Slack v. McDaniel*, 529 U.S. 473, 483-84 (2000) (internal quotation marks omitted); see *Autry v. Estelle*, 464 U.S. 1301, 1302 (1983) (White, J., in chambers) (concluding that a habeas petitioner had raised a “substantial question” that did not “lack[] substance,” and thus “I am compelled to issue a certificate of probable cause to appeal, as I am authorized to do under § 2253.”); *Davis v. Jacobs*, 454 U.S. 911, 918 (1981) (Rehnquist, J., dissenting) (certificate should issue if “any Member of this Court believes [the case] to be deserving of a certificate of probable cause”).

Notes: Jurisdiction statement: Jurisdiction is founded on 28 U.S.C. § 2253(c)(1) which authorizes each justice of this

Court to issue a certificate of appealability.

No. 25A269

Title:	Department of State, et al., Applicants v. AIDS Vaccine Advocacy Coalition, et al.
Docketed:	September 8, 2025
Lower Ct:	United States Court of Appeals for the District of Columbia Circuit
Case Numbers:	(25-5319, 25-5317)

Proceedings and Orders

Sep 08 2025	Application (25A269) for a stay, submitted to The Chief Justice. Main Document Lower Court Orders/Opinions Proof of Service
Sep 08 2025	Opposition to Request for Immediate Administrative Stay filed. Main Document Proof of Service
Sep 09 2025	Order entered by The Chief Justice: Upon consideration of the application of counsel for the applicants, it is ordered that the September 3, 2025 order of the United States District Court for the District of Columbia, case Nos. 1:25-cv-400 and 1:25-cv-402, is hereby partially stayed for funds that are subject to the President's August 28, 2025 rescission proposal currently pending before Congress pending further order of The Chief Justice or of the Court. It is further ordered that a response to the application be filed on or before Friday, September 12th, 2025, by 4 p.m. (EDT).
Sep 11 2025	Brief amicus curiae of Alan B. Morrison filed. Main Document Proof of Service

Sep 12 2025 Response to application from respondent Global Health Council, et al. filed.
[Main Document Proof of Service](#)

Sep 12 2025 Brief amicus curiae of Representative Rosa L. DeLauro filed.
[Main Document Proof of Service](#)

Sep 15 2025 Reply of applicant Department of State, et al. filed.
[Reply Proof of Service](#)

Sep 26 2025 Application (25A269) referred to the Court.

Sep 26 2025 On September 3, the United States District Court for the District of Columbia entered a preliminary injunction directing the Executive to obligate roughly \$10.5 billion of appropriated aid funding set to expire on September 30. Of that \$10.5 billion, \$4 billion was proposed to be rescinded in a “special message” transmitted pursuant to the Impoundment Control Act. See 2 U. S. C. §681 *et seq.* After the District Court and the United States Court of Appeals for the District of Columbia Circuit denied stays of that order, the Government filed this application to stay the District Court’s injunction. The application for stay presented to The Chief Justice and by him referred to the Court is granted. The Government, at this early stage, has made a sufficient showing that the Impoundment Control Act precludes respondents’ suit, brought pursuant to the Administrative Procedure Act, to enforce the appropriations at issue here. The Government has also made a sufficient showing that mandamus relief is unavailable to respondents. And, on the record before the Court, the asserted harms to the Executive’s conduct of foreign affairs appear to outweigh the potential harm faced by respondents. This order should not be read as a final determination on the merits. The relief granted by the Court today reflects our preliminary view, consistent with the standards for interim relief. The District Court’s September 3, 2025 order granting a preliminary injunction in case Nos. 1:25–cv–400 and 1:25–cv–402 is stayed as to the funding subject to the President’s August 28 special message, pending the disposition of the Government’s appeal in the United States Court of Appeals for the District of Columbia Circuit and disposition of a petition for a writ of certiorari, if such writ is timely sought. Should the petition for a writ of certiorari be denied, this stay shall terminate automatically. In the event certiorari is granted, the stay shall terminate upon the sending down of the judgment of this Court. Justice Kagan, joined by Justice Sotomayor and Justice Jackson, dissent. (Detached [Opinion](#))

Pursuant to Rule 23 of the Rules of this Court and the All Writs Act, 28 U.S.C. 1651, the Solicitor General—on behalf of applicants President Donald J. Trump, et al.—respectfully files this application for a partial stay of the injunction issued by t

ARGUMENT

Under Rule 23 of the Rules of this Court and the All Writs Act, 28 U.S.C. 1651, the Court may stay a preliminary injunction entered by a federal district court. See, e.g., *Trump v. International Refugee Assistance Project*, 582 U.S. 571 (2017) (per curiam); *Brewer v. Landrigan*, 562 U.S. 996 (2010); *Brunner v. Ohio Republican Party*, 555 U.S. 5 (2008) (per curiam). To obtain such relief, an applicant must show a likelihood of success on the merits, a reasonable probability of obtaining certiorari, and

a likelihood of irreparable harm. See *Hollingsworth v. Perry*, 558 U.S. 183, 190 (2010) (per curiam). In “close cases,” “the Court will balance the equities and weigh the relative harms.” *Ibid.* Those factors strongly support a stay here.

A. The Government Is Likely To Succeed On The Merits

On August 13, the D.C. Circuit correctly held that respondents lacked a cause¹⁷ of action under the APA to challenge alleged withholding of foreign-assistance funds as putative impoundments that supposedly violate the ICA’s procedures, because the ICA is a statute that “precludes judicial review” of such claims under the APA. App., *infra*, 82a; see 5 U.S.C. 701(a)(1). Once the mandate issued and that injunction was no longer in force, the President followed the ICA’s procedures and transmitted a “special message” proposing rescissions of \$4 billion of the approximately \$10.5 billion funds expiring September 30. See App., *infra*, 153a-174a. The district court has now reissued essentially the same injunction as to these funds, again requiring the government to obligate them all by September 30. That injunction rests on the perverse theory that, now that the President has invoked the ICA, the ICA is essentially irrelevant; respondents can purportedly bring APA claims to force the Executive Branch to obligate all the funds proposed for rescission because the underlying appropriations statutes are purportedly mandatory directives rather than mere authorizations. *Id.* at 189a-195a, 220a-221a. That new theory would gut the ICA and vitiate black-letter doctrine on preclusion of APA claims. Even worse, it would allow a single district court, unchastened by recent appellate reversal, to

Notes: consistent templating without jurisdiction statement. “Jurisdiction” not found.

No. 25A264

Title:	Donald J. Trump, President of the United States, et al., Applicants v. Rebecca Kelly Slaughter, et al.
Docketed:	September 4, 2025
Linked with:	25-332
Lower Ct:	United States Court of Appeals for the District of Columbia Circuit
Case Numbers:	(25-5261)

Proceedings and Orders

Sep 04 2025 Application (25A264) for a stay, submitted to The Chief Justice.
[Main Document](#) [Lower Court Orders/Opinions](#) [Proof of Service](#)

Sep 05 2025 Response to request for administrative stay from respondents Rebecca Kelly Slaughter, et al. filed.
[Main Document](#) [Proof of Service](#)

Sep 08 2025 Order entered by The Chief Justice: Upon consideration of the application of counsel for the applicants, it is ordered that the July 17, 2025 order of the United States District Court for the District of Columbia, case No. 1:25-cv-909, is hereby stayed pending further order of The Chief Justice or of the Court. It is further ordered that a response to the application be filed on or before Monday, September 15th, 2025, by 4 p.m. (EDT).

Sep 10 2025 Brief amici curiae of Florida, et al. filed.
[Main Document](#) [Certificate of Word Count](#) [Proof of Service](#)

Sep 11 2025 Brief amicus curiae of Christian Employers Alliance filed.
[Main Document](#) [Proof of Service](#)

Sep 15 2025 Response to application from respondent Rebecca Kelly Slaughter, et al. filed.
[Main Document](#) [Proof of Service](#)

Sep 15 2025 Brief amicus curiae of TechFreedom filed.
[Main Document](#) [Proof of Service](#)

Sep 15 2025 Brief amici curiae of America's Future, et al. filed.
[Main Document](#) [Proof of Service](#)

Sep 15 2025 Letter from counsel for petitioner Gwynne A. Wilcox in case No. 25-319 filed.
[Main Document](#) [Proof of Service](#)

Sep 15 2025 Letter of Cathy Harris filed.
[Main Document](#) [Proof of Service](#)

Sep 16 2025 Reply of applicant Donald J. Trump, et al. filed.
[Reply](#) [Proof of Service](#)

Sep 22 2025 Application (25A264) referred to the Court.

Sep 22 2025 Application (25A264) for stay presented to The Chief Justice and by him referred to the Court is granted. The July 17, 2025 order of the United States District Court for the District of Columbia, No. 25–cv–909, ECF Doc. 52, is stayed. The application is also treated as a petition for a writ of certiorari before judgment, and the petition is granted (case No. 25-332). The parties are directed to brief and argue the following questions: (1) Whether the statutory removal protections for members of the Federal Trade Commission violate the separation of powers and, if so, whether *Humphrey’s Executor v. United States*, 295 U. S. 602 (1935), should be overruled. (2) Whether a federal court may prevent a person’s removal from public office, either through relief at equity or at law. The Clerk is directed to establish a briefing schedule that will allow the case to be argued in the December 2025 argument session. The stay shall terminate upon the sending down of the judgment of this Court. Justice Kagan, joined by Justice Sotomayor, and Justice Jackson, dissents.
(Detached [Opinion](#))

Pursuant to Rule 23 of the Rules of this Court and the All Writs Act, 28 U.S.C. 1651, the Solicitor General—on behalf of applicants Donald J. Trump, President of the United States, et al.—respectfully requests that this Court stay the judgment issued by the U.S. District Court for the District of Columbia

ARGUMENT

Under Rule 23 of the Rules of this Court and the All Writs Act, 28 U.S.C. 1651, the Court may stay a district court’s judgment pending review in the court of appeals and in this Court. See, e.g., *McHenry v. Texas Top Cop Shop, Inc.*, 145 S. Ct. 1 (2025). To obtain such relief, an applicant must show a likelihood of success on the merits, a reasonable probability of obtaining certiorari, and a likelihood of irreparable harm. See *Hollingsworth v. Perry*, 558 U.S. 183, 190 (2010) (per curiam). In “close cases,” the Court balances the equities and weighs the relative harms. *Ibid.*

In *Trump v. Wilcox*, 145 S. Ct. 1415 (2025), this Court determined that those factors justified staying a district court’s judgments countermanding the President’s removal of members of the NLRB and MSPB. In *Trump v. Boyle*, 145 S. Ct. 2653 (2025), it determined that *Wilcox* “squarely controlled” its decision and required it to stay a district court’s judgment countermanding the President’s removal of members of the CPSC. *Id.* at 2654. This latest instance of lower-court resistance to this Court’s orders should fare no differently. It is a “basic tenet of our judicial system” that, “[w]hatever their own views,” lower-court judges are “duty-bound to respect” this Court’s decisions. *NIH v. APHA*, No. 25A103, slip op. 4 (Aug. 21, 2025) (Gorsuch, J., concurring in part and dissenting in part).

A. The Government Is Likely To S

They have made clear that, regardless of “recent developments on [this] Court’s emergency docket,” they will adhere to their expansive and incorrect interpretation of *Humphrey’s Executor*. App., *infra*, 3a. And they have explained that they will persist in that adherence “unless and until” this Court grants certiorari and overrules that decision. *Id.* at 12a; see *id.* at 34a-35a n.3 (“If the Supreme Court determines that [*Wilcox*’s] logic applies to an FTC Commissioner * * * it must say so itself.”). Thus, “further percolation in the lower court

Notes: No jurisdiction section. “Jurisdiction” used only in relation to case subject matter. Jurisdiction precedents scattered throughout.

No. 25A287

Title: **New Jersey Transit Corporation, et al., Applicants
v.
Jeffrey Colt, et al.**

Docketed:

Linked with:	24-1113
Lower Ct:	Court of Appeals of New York
Case Numbers:	(72)

Proceedings and Orders

- Sep 11 2025 Application (25A287) for a stay, submitted to Justice Sotomayor.
[Main Document](#) [Lower Court Orders/Opinions](#) [Proof of Service](#)
- Sep 12 2025 Order entered by Justice Sotomayor: Upon consideration of the application of counsel for the applicants, it is ordered that the trial in the Supreme Court of the State of New York, New York County, Index No. 158309/2017, is hereby stayed pending further order of Justice Sotomayor or of the Court.
- Sep 12 2025 Response to application from respondent Jeffrey Colt and Betsy Tsai filed.
[Main Document](#) [Proof of Service](#)
- Sep 12 2025 Reply of applicant New Jersey Transit Corporation, NJ Transit Bus Operations, Inc., and Ana Hernandez filed.
[Reply](#) [Proof of Service](#)
- Sep 19 2025 Application (25A287) referred to the Court.
- Sep 19 2025 Application (25A287) for stay presented to Justice Sotomayor and by her referred to the Court is granted. The Court has already granted certiorari on the sovereign immunity issue decided below, and the pending damages trial before the Supreme Court of the State of New York would be barred if New Jersey Transit Corporation were entitled to sovereign immunity from suit. Respondents, on the other hand, identify no tangible irreparable harm they would face if the trial were delayed until after this Court decides the pending case. The trial scheduled for September 15, 2025, in the Supreme Court of the State of New York, New York County, is therefore stayed pending the issuance of the mandate of this Court in *NJ Transit Corp., et al. v. Colt, Jeffrey, et al.*, case No. 24-1113, and *Galette, Cedric v. NJ Transit Corp.*, case No. 24-1021.

This is the rare case in which emergency relief is needed even after this Court has granted certiorari, to prevent a state trial court from imposing irreparable harm on one of the parties and thereby undermining this Court's review. Thus, pursuant to Rule 23 of the Rules of this Court and the All Writs Act, 28 U.S.C. §1651, this Court should grant an administrative stay of the September 15 trial, and ultimately stay the state-court trial pending this Court's decision in *Colt* and *Galette*. The New York trial court may not subject NJ Transit to a coercive trial before this Court can decide this very Term whether NJ Transit is immune from this very suit.

RGUMENT

In assessing a stay application, this Court considers “(1) whether the applicant is likely to succeed on the merits, (2) whether it will suffer irreparable injury without

a stay, (3) whether the stay will substantially injure the other parties interested in the proceedings, and (4) where the public interest lies.” *Ohio v. EPA*, 603 U.S. 279, 291 (2024); see, e.g., *Hollingsworth v. Perry*, 558 U.S. 183, 190 (2010) (per curiam); *Merrill v. Milligan*, 142 S. Ct. 879, 880 (2022) (Kavanaugh, J., concurring); *Nken v. Holder*, 556 U.S. 418, 434 (2009). This application easily fits the bill. This Court need not worry about whether this is a case that would merit certiorari, as it must often consider, because it *already* found that this case justified certiorari—granting this case on July 3. As a result, the sole question is whether NJ Transit can justify a stay of the state-court trial date while the *Colt* case remains pending. It easily can. Most obviously, the risk of irreparable harm and broad

Notes: No jurisdiction section.

No. 25A276	
Title:	Melvin Martinez-Guardado, Applicant v. Hiromichi Kobayashi, Warden, et al.
Docketed:	September 9, 2025
Lower Ct:	United States Court of Appeals for the Fifth Circuit
Case Numbers:	(25-20355)

Proceedings and Orders

- Sep 05 2025 Application (25A276) for a stay of extradition pending appeal, submitted to Justice Alito.
[Main Document](#) [Proof of Service](#) [Lower Court Orders/Opinions](#)
- Sep 10 2025 Application (25A276) denied by Justice Alito.

Pursuant to Rule 23 of the Rules of this Court and 28 U.S.C. §§ 1651, 2101(f), Applicant Melvin Martinez-Guardado respectfully applies for a stay of his

extradition/surrender to Honduras, following the Fifth Circuit’s August 30, 2025 unpublished order (App.1)

JURISDICTION

Mr. Martinez-Guardado filed a notice of appeal with the Fifth Circuit on August 19, 2025. He then filed motions both for a stay of his pending surrender to Honduras and for a

¹ The same and similar issues are presented by the petition filed in *Kapoor v. Demarco*, No. 24-1288, which is currently pending before this Court.

2temporary administrative stay, the latter of which was granted by the Fifth Circuit on August 26, 2025. On August 30, 2025, the Fifth Circuit issued an “Unpublished Order” denying a temporary stay pending appeal. Mr. Martinez-Guardado did not move for a rehearing *en banc*. This Court has authority to stay Mr. Martinez-Guardado’s surrender to Honduras pending the Fifth Circuit’s determination of the merits of the appeal, and this Court’s consideration of a subse

No. 25A234

Title: **South Carolina, et al., Applicants**
v.
John Doe, By His Next Friends and Parents, Jim Doe and Jane Doe

Docketed: August 28, 2025

Lower Ct: United States Court of Appeals for the Fourth Circuit

Case Numbers: (25-1787)

Proceedings and Orders

Aug 26 2025 Application (25A234) for a stay and application for leave to file the application and appendix under seal with redacted copies for the public record, submitted to The Chief Justice.

[Main Document](#) [Proof of Service](#) [Other](#)

Aug 29 2025 Response to application (25A234) requested by The Chief Justice, due by 4 p.m. (EDT) on September 5, 2025.

Aug 29 2025 Brief amici curiae of Indiana, et al. filed.

[Main Document](#) [Proof of Service](#)

Sep 05 2025 Response to application from respondent John Doe filed.
[Main Document](#) [Main Document](#) [Proof of Service](#)

Sep 10 2025 Application (25A234) referred to the Court.

Sep 10 2025 Application (25A234) for a stay of injunction pending appeal presented to The Chief Justice and by him referred to the Court is denied. The denial of the application is not a ruling on the merits of the legal issues presented in the litigation. Rather, it is based on the standards applicable for obtaining emergency relief from this Court. The motion for leave to file under seal with redacted copies for the public record is granted. Justice Thomas, Justice Alito, and Justice Gorsuch would grant the application.

INTRODUCTION

Pursuant to Rule 23 of the Rules of this Court and the All Writs Act, 28 U.S.C. § 1651, the Applicants respectfully apply to stay the injunction pending appeal entered on August 12, 2025, by a panel of the United States Court of Appeals for the Fourth Circuit, see App. 32a–33a, and explained more fully in its order of August 15, 2025, see App. 3a–31a.

On July 3, 2025, the Supreme Court granted certiorari in *West Virginia v. B.P.J.*, No. 24-43, 2025 WL 1829164 (U.S. July 3, 2025), which had held that a state statute designating participation in public school sports by biological sex violated the rights of transgender students under the Equal Protection Clause and Title IX. See *B.P.J. v. West Virginia*, 98 F.4th 542 (4th Cir. 2024).

IV. This Court is likely to grant review.

A stay is also warranted to the extent the Court considers whether there is “a reasonable probability” that it would grant certiorari if the lower court’s judgment were affirmed on appeal. *Merrill v. Milligan*, 142 S. Ct. 879, 880 (2022) (Kavanaugh, J., concurring, joined by Alito, J.). In the past four years, this Court has twice declined to grant certiorari in challenges to school policies designating restroom use by biological sex. *Gloucester Cnty. Sch. Bd. v. Grimm*, 141 S. Ct. 2878 (2021); see also *Metro. Sch. Dist. of Martinsville v. A. C.*, 144 S. Ct. 683 (2024). But in *Grimm*, Justices Thomas and Alito would have granted cert. *Grimm*, 141 S. Ct. at 2878. And Justice Barrett’s recent concurrence in *Skrmetti* (joined by Justice Thomas) voiced the belief that transgender “access to restrooms” is an area of “legitimate regulatory policy” that should be subject to rational basis review. *Skrmetti*, 145 S. Ct. at 1852–53. More fundamentally, the logic of the majority opinion in *Skrmetti* is irreconcilable with 38 *Grimm*, making this Court’s review of the Fourth Circuit’s holding in *Grimm* timely. Certiorari will ultimately grant clarity to school districts that refuse to comply with

Notes: No jurisdiction section

No. 25A169

Title: Kristi Noem, Secretary, Department of Homeland Security, et al., Applicants
v.
Pedro Vasquez Perdomo, et al.

Docketed:	August 7, 2025
Lower Ct:	United States Court of Appeals for the Ninth Circuit
Case Numbers:	(25-4312)

Proceedings and Orders

- Aug 07 2025 Application (25A169) for a stay, submitted to Justice Kagan.
[Main Document Proof of Service](#)
- Aug 08 2025 Response to application (25A169) requested by Justice Kagan, due by 5 p.m. (EDT) on August 12, 2025.
- Aug 12 2025 Response to application from respondent Pedro Vasquez Perdomo, et al. filed.
[Main Document Proof of Service](#)
- Aug 12 2025 Brief amici curiae of Los Angeles, California, et al. filed.
[Main Document Proof of Service](#)
- Aug 13 2025 Reply of applicant Kristi Noem, Secretary of Homeland Security, et al. filed.
[Reply Proof of Service](#)
- Aug 22 2025 Brief amicus curiae of Federation for American Immigration Reform filed.
[Main Document Proof of Service](#)
- Sep 08 2025 Application (25A169) referred to the Court.
- Sep 08 2025 Application (25A169) for stay presented to Justice Kagan and by her referred to the Court is granted. The July 11, 2025 order entered by the United States District Court for the Central District of California, case No. 2:25-cv-5605, is stayed pending the disposition of the appeal in the Ninth Circuit and disposition of a petition for a writ of certiorari, if such a writ is timely sought. Should certiorari be denied, this stay shall terminate automatically. In the event certiorari is granted, the stay shall terminate upon the sending down of the judgment of this Court. Justice Kavanaugh, concurs (Detached [Opinion](#)). Justice Sotomayor, joined by Justice Kagan and Justice Jackson, dissent. (Detached [Opinion](#))

Pursuant to Rule 23 of the Rules of this Court and the All Writs Act, 28 U.S.C. 1651, the Solicitor General—on behalf of applicants Kristi Noem, Secretary of Homeland Security, et al.—respectfully files this application to stay the July 11, 2025 order issued by the United States District Court for the Central District of California (App.,

infra, 62a-113a). In addition, the Solicitor General respectfully requests an administrative stay of the district court’s order.

ARGUMENT

Under Rule 23 of the Rules of this Court and the All Writs Act, 28 U.S.C. 1651, this Court may stay a preliminary injunction entered by a federal district court. See, e.g., *Brewer v. Landrigan*, 562 U.S. 996 (2010); *Brunner v. Ohio Republican Party*, 555 U.S. 5 (2008) (per curiam). To obtain such relief, an applicant must show a likelihood of success on the merits, a reasonable probability of obtaining certiorari, and a likelihood of irreparable harm. See *Hollingsworth v. Perry*, 558 U.S. 183, 190 (2010) (per curiam). In “close cases,” “the Court will balance the equities and weigh the relative harms.” *Ibid.* Those factors strongly support a stay here.

A. The Government Is Likely To Succeed On The Merits

The district court upended immigration-enforcement efforts throughout the entire Central District of California—a vast area encompassing some 20 million people and an estimated 2 million illegal aliens—by categorically enjoining immigration officers from conducting investigative stops that rest solely on any combination of four factors (i.e., a suspect’s apparent race or ethnicity; whether he speaks Spanish or accented English; whether he is at a location where illegal aliens are known to gather; and whether his job is prevalent among illegal aliens because of the lack of documentation required). That legally flawed injunction warrants this Court’s review on several grounds. First, respondents—five individuals and four organizations—lack Article III standing to obtain an injunction barring investigative stops based on the prohibited factors, because no respondent faces any immediate risk of being subjected to such a stop. Second, the district court’s order contravenes bedrock Fourth Amendment principles by imposing categorical rules that artificially limit inferences of reasonable suspicion, and by wrongly holding that the four factors—even in combination—can never amount to reasonable suspicion. Finally, the scope of this16 injunction is plainly unlawful. By issuing an injunction encompassing anyone within the Central District of California—an injunction encompassing potentially millions of nonparties—the court defied *Trump v. CASA, Inc.*, 145 S. Ct. 2540 (2025).

Notes: No jurisdiction section. “jurisdiction” only employed with case subject matter. Non-concise statement using case law as jurisdictional statement.

No. 25A231

Title: **Avon Capital, LLC, a Wyoming Limited Liability Company, Applicant
v.
Universitas Education, LLC**

Docketed:

Linked with: 24-1126

Lower Ct:	United States Court of Appeals for the Tenth Circuit
Case Numbers:	(23-6125, 23-6167, 23-6126, 23-6168, 24-6066, 24-6033, 24-6006)

Proceedings and Orders

Aug 25 2025	Application (25A231) for a stay, submitted to Justice Gorsuch. Main Document Proof of Service
Aug 29 2025	Application (25A231) denied by Justice Gorsuch.

IV. Emergency Application for a Stay of the August 5, 2025 Order (Doc. 797)

Because oral argument on September 10, 2025 is fast approaching and the District Court made it unnecessarily more difficult to obtain a supersedeas bond, Avon-WY requests a stay of the District Court's Order to preserve this Court's jurisdiction regarding the subject of the Petition for Writ of Certiorari and also preserve the status quo – the receivership and the appointed manager, along with the third-party servicer, already prevent the removal of the funds by SDM-CT, the true owner.

V. Applicable Law – Stay Pending Appeal

“In any case in which the final judgment or decree of any court is subject to review by the Supreme Court on writ of certiorari, the execution and enforcement of such judgment or decree may be stayed for a reasonable time to enable the party aggrieved to obtain a writ of certiorari from the Supreme Court.” 28 U.S.C. § 2101(f).

Notes: Not jurisdiction section but Applicable law includes SCOTUS jurisdiction preservation statement under §2101(f)

No. 25A227	
Title:	Donald J. Trump, President of the United States, et al., Applicants v. Global Health Council, et al.
Docketed:	August 27, 2025

Lower Ct:	United States Court of Appeals for the District of Columbia Circuit
Case Numbers:	(25-5097; 25-5098)

Proceedings and Orders

- Aug 26 2025 Application (25A227) for a stay, submitted to The Chief Justice.
[Main Document](#) [Lower Court Orders/Opinions](#) [Proof of Service](#)
- Aug 29 2025 Letter withdrawing application filed by applicant Donald J. Trump, President of the United States, et al.
[Main Document](#)
- Aug 29 2025 Application (25A227) withdrawn.

APPLICATION TO STAY THE INJUNCTION ISSUED BY THE UNITED STATES DISTRICT COURT FOR THE DISTRICT OF COLUMBIA AND REQUEST FOR AN IMMEDIATE ADMINISTRATIVE STAY

Pursuant to Rule 23 of the Rules of this Court and the All Writs Act, 28 U.S.C. 1651, the Solicitor General—on behalf of applicants President Donald J. Trump, et al.—respectfully files this application for a stay of the injunction issued by the United States District Court for the District of Columbia (App., *infra*, 1a-48a), pending the consideration and disposition of any en banc proceedings in the United States Court

ARGUMENT

Under Rule 23 of the Rules of this Court and the All Writs Act, 28 U.S.C. 1651, the Court may stay a preliminary injunction entered by a federal district court. See, e.g., *Trump v. International Refugee Assistance Project*, 582 U.S. 571 (2017) (per curiam); *Brewer v. Landrigan*, 562 U.S. 996 (2010); *Brunner v. Ohio Republican Party*, 555 U.S. 5 (2008) (per curiam). To obtain such relief, an applicant must show a likelihood of success on the merits, a reasonable probability of obtaining certiorari, and a likelihood of irreparable harm. See *Hollingsworth v. Perry*, 558 U.S. 183, 190 (2010) (per curiam). In “close cases,” “the Court will balance the equities and weigh the relative harms.” *Ibid.* Those factors strongly support a stay here.

A. The Government Is Likely To Succeed On The Merits

The district court ordered the government to “make available for obligation the full amount of funds that Congress appropriated for foreign assistance programs” in the 2024 Appropriations Act. App., *infra*, 48a. In imposing that order, the district court upended the carefully calibrated process that the ICA sets out for the political branches to resolve disputes over the obligation and expenditure of appropriations and to seek judicial intervention only after exhausting the alternatives. In its place, the court would authorize countless private parties to bypass the ICA’s processes and intrude to assert Congress’s putative interests. After the government began to limit foreign-assistance spending but failed to propose rescissions soon enough for the district court’s liking, the court issued a preliminary injunction that effectively appoints itself as judicial superintendent of all spending decisions for the relevant appropriations.

That order defies the ICA’s framework and this Court’s precedents. The ICA

does not contemplate a judicial role in the interbranch engagement unless and until the Comptroller General has both (1) determined that the Executive Branch has violated the ICA; and (2) provided Congress with time to consider the appropriate response. Plaintiffs have asserted that they may bypass the ICA’s structural limits by advancing a freestanding constitutional claim premised on the government’s asserted failure to comply with statutory obligations. But, as the panel of the court of appeals recognized, this Court’s precedent forecloses plaintiffs from repackaging statutory violations into constitutional claims. Nor can respondents’ claim be pursued under the APA or through an *ultra vires* action. Given the vast sums involved and the significance of the case to the separation of powers and U.S. foreign policy, the district court’s holdings, if allowed to stand, would clearly warrant this Court’s attention, and those holdings would not survive review. The district court’s reasoning would open the floodgates to suits by private parties who compete for appropriated funds and who seek to impose judicial oversight o

And as in *Sierra Club*, the government has made a strong showing “that the plaintiffs have no cause of action to obtain review” of the government’s compliance with the relevant statutes. 140 S. Ct. at 1; see also *ibid.* (Breyer, J., concurring in part and dissenting in part) (“This case raises novel and important questions about the ability of private parties to enforce Congress’ appropriation power.”). Indeed, as the court of appeals noted, the Ninth Circuit in *Sierra Club* embraced the same incorrect understanding of *Dalton* that respondents assert here. App., *infra*, 72a n.15. This Court granted review of the Ninth Circuit’s holding that the plaintiffs there could assert “both a constitutional and an *ultra vires* cause of action” to obtain judicial³² review of the use of appropriated funds. *Sierra Club v. Trump*, 963 F.3d 874, 887 (9th Cir. 2020); see *Trump v. Sierra Club*, 141 S. Ct. 618 (2020) (granting certiorari). After a change in administration, the Court eventually vacated the Ninth Circuit’s judgment and remanded the case without resolving the question. *Biden v. Sierra Club*, 142 S. Ct. 46 (2021). If the en banc court of appeals were to repeat the Ninth Circuit’s error, that decision would warrant this Court’s review, just as it did in *Sierra Club*.

Notes: No jurisdiction statement. “Jurisdiction” only used in relation to case subject matter.

No. 25A103	
Title:	National Institutes of Health, et al., Applicants v. American Public Health Association, et al.
Docketed:	July 24, 2025
Lower Ct:	United States Court of Appeals for the First Circuit

Case Numbers: (25-1611, 25-1612)

Proceedings and Orders

Jul 24 2025 Application (25A103) for a stay, submitted to Justice Jackson.
[Main Document](#) [Lower Court Orders/Opinions](#) [Proof of Service](#)

Jul 25 2025 Response to application (25A103) requested by Justice Jackson, due by 4p.m. (EDT) on August 1, 2025.

Aug 01 2025 Response to application from respondents Massachusetts, et al. filed.
[Main Document](#) [Main Document](#) [Proof of Service](#)

Aug 01 2025 Response to application from respondents American Public Health Association, et al. filed.
[Main Document](#) [Proof of Service](#) [Proof of Service](#)

Aug 01 2025 Brief amicus curiae of The Association of American Medical Colleges, et al. filed.
[Main Document](#) [Proof of Service](#)

Aug 01 2025 Brief amicus curiae of American Society for Biochemistry and Molecular Biology, Federation of American Societies for Experimental Biology, American Society for Microbiology, American Society for Cell Biology filed.
[Main Document](#) [Proof of Service](#)

Aug 04 2025 Reply of applicant National Institutes of Health, et al. filed.
[Reply](#) [Proof of Service](#)

Aug 21 2025 Application (25A103) referred to the Court.

Aug 21 2025 Application (25A103) for stay presented to Justice Jackson and by her referred to the Court is granted in part and denied in part. The application is granted as to the District Court's judgments vacating the Government's termination of various research-related grants. See *Department of Ed. v. California*, 604 U. S. ____ (2025) (*per curiam*). [See Detached [Opinion](#) for full order language] The application is otherwise denied. The Chief Justice, Justice Sotomayor, Justice Kagan, and Justice Jackson would deny the application in full. Justice Thomas, Justice Alito, Justice Gorsuch, and Justice Kavanaugh would grant the application in full. (Detached [Opinion](#)) Justice Barrett concurs. (Detached [Opinion](#)) The Chief Justice, with whom Justice Sotomayor, Justice Kagan, and Justice Jackson join, concurs in parts and dissents in part. (Detached [Opinion](#)) Justice Gorsuch, with whom Justice Kavanaugh joins, concurs in part and dissents in part. (Detached [Opinion](#)) Justice Kavanaugh concurs in part and dissents in part. (Detached [Opinion](#)) Justice Jackson concurs in part and dissents in part. (Detached Opinion)

Pursuant to Rule 23 of the Rules of this Court and the All Writs Act, 28 U.S.C. 1651, the Solicitor General—on behalf of National Institutes of Health, et al., and Robert F. Kennedy, Jr., Secretary of Health and Human Services, et al.—respectfully files this application to stay the judgments of the United States District Court for the District of Massachusetts (App., *infra*, 148a-150a, 151a-152a), pending the consideration and disposition of the government’s appeal to the United States Court of Appeals for the First Circuit and, if the court of appeals affirms the judgments, pending the timely filing and disposition of a petition for a writ of certiorari and any further proceedings in this Court. In addition, the Solicitor General respectfully requests an (1)2 immediate administrative stay pending the Court’s consideration of this application.

ARGUMENT

Under Rule 23 of the Rules of this Court and the All Writs Act, 28 U.S.C. 1651, the Court may stay a final judgment entered by a federal district court. See, e.g., *Trump v. Wilcox*, 145 S. Ct. 1415 (2025); *Merrill v. Alabama*, 141 S. Ct. 25 (2020). To obtain a stay, an applicant must show a likelihood of success on the merits, a reasonable probability of certiorari, and a likelihood of irreparable harm. See *Hollingsworth v. Perry*, 558 U.S. 183, 190 (2010) (per curiam). In “close cases,” “the Court will balance the equities and weigh the relative harms.” *Ibid*. Those factors overwhelmingly support a stay here, not least because the lower courts are systematically ignoring a recent, controlling ruling of this Court that resolves those factors in the government’s favor.

A. The Government Is Likely To Succeed On The Merits

The same district that produced the *California* order has again asserted jurisdiction to order the government to continue paying unrecoverable grants contrary to the current Administration’s priorities. That order is, if anything, even more legally flawed than the order that this Court stayed in *California*. First, as this Court held in *California*, the Tucker Act likely precludes district-court jurisdiction over suits challenging grant terminations. The district court flouted that decision, declaring “[t]he views of the dissenters” more “persuasive.” App., *infra*, 232a. But under our system of vertical *stare decisis*, the majority’s opinion controls. Second, NIH grant decisions are committed to agency discretion by law and not reviewable under the APA. Given limited research funding, Congress has appropriated lump sums for the NIH to award as it sees fit. Third, the challenged decisions were not arbitrary or capricious. Following the change in Administration, the NIH identified, explained, and pursued new funding priorities. That is democracy at work, not, as the district court thought, proof of inappropriate “partisan[ship]”—let alone a permissible basis for setting agency action aside under the APA. *Id.* at 127a.

1. The district court lacked subject-matter j

Notes: No jurisdiction section. “jurisdiction” only employed with case subject matter. Non-concise statement using case law as jurisdictional statement.

No. 25A97

Title:	NetChoice, LLC, Applicant v. Lynn Fitch, Attorney General of Mississippi
Docketed:	July 23, 2025
Lower Ct:	United States Court of Appeals for the Fifth Circuit
Case Numbers:	(25-60348)

Proceedings and Orders

- Jul 21 2025 Application (25A97) to vacate stay, submitted to Justice Alito.
[Main Document Proof of Service](#)
- Jul 23 2025 Response to application (25A97) requested by Justice Alito, due by 4pm (EDT), on July 30, 2025.
- Jul 24 2025 Brief amicus curiae of TechFreedom filed.
[Main Document Proof of Service](#)
- Jul 25 2025 Brief amici curiae of Foundation for Individual Rights and Expression, et al. filed.
[Main Document Proof of Service](#)
- Jul 25 2025 Brief amici curiae of LGBT Technology Institute, et al. filed.
[Main Document Proof of Service Certificate of Word Count](#)
- Jul 28 2025 Brief amicus curiae of Stop Child Predators filed.
[Main Document Proof of Service](#)
- Jul 28 2025 Brief amici curiae of TechNet, et al. filed.
[Main Document Proof of Service](#)
- Jul 29 2025 Brief amici curiae of American Booksellers for Free Expression, et al. filed.
[Main Document Proof of Service](#)
- Jul 29 2025 Brief amicus curiae of Center for Individual Rights filed.
[Main Document Proof of Service](#)
- Jul 30 2025 Response to application from respondent Lynn Fitch, Attorney General of Mississippi, filed.
[Main Document Proof of Service](#)
- Jul 30 2025 Brief amicus curiae of Taxpayers Protection Alliance filed.
[Main Document Proof of Service](#)
- Jul 31 2025 Reply of applicant NetChoice, LLC filed.
[Reply Proof of Service](#)

Aug 14 2025 Application (25A97) referred to the Court.
Aug 14 2025 Application (25A97) to vacate stay presented to Justice Alito and by him referred to the Court is denied. Justice Kavanaugh, concurring in the denial of the application to vacate stay. (Detached [Opinion](#))

JURISDICTION

This Court has jurisdiction under 28 U.S.C. §§ 1254(1), 1651, and 2101(f), and Supreme Court Rule 23.

No. 25A62

Title: **Turtle Mountain Band of Chippewa Indians, et al., Applicants
v.
Michael Howe, Secretary of State of North Dakota**

Docketed: July 15, 2025

Lower Ct: United States Court of Appeals for the Eighth Circuit

Case Numbers: (23-3655)

Proceedings and Orders

Jul 15 2025 Application (25A62) for a stay, submitted to Justice Kavanaugh.
[Main Document](#) [Lower Court Orders/Opinions](#) [Proof of Service](#)

Jul 15 2025 Response to application (25A62) requested by Justice Kavanaugh, due by 5 p.m. (EDT) on July 22, 2025.

Jul 16 2025 Order entered by Justice Kavanaugh: Upon consideration of the application of counsel for the applications, it is ordered that the mandate of the United States Court of Appeals for the Eighth Circuit, case No. 23-3655, is hereby stayed pending further order of Justice Kavanaugh or of the Court.

Jul 21 2025 Brief amicus curiae of NAACP Legal Defense & Educational Fund, Inc. filed.
[Main Document](#) [Proof of Service](#)

Jul 22 2025 Response to application from respondent Michael Howe filed.
[Main Document](#) [Proof of Service](#)

Jul 22 2025 Brief amici curiae of Alabama, et al. filed.
[Main Document](#) [Proof of Service](#)

Jul 23 2025 Reply of applicant Turtle Mountain Band of Chippewa Indians, et al. filed.
[Main Document](#) [Proof of Service](#)

Jul 24 2025 Application (25A62) referred to the Court.

Jul 24 2025 Application (25A62) for stay presented to Justice Kavanaugh and by him referred to the Court is granted. The issuance of the mandate of the United States Court of Appeals for the Eighth Circuit, case No. 23-3655, is stayed pending the filing and disposition of the petition for a writ of certiorari, if such writ is timely sought. Should the petition for a writ of certiorari be denied, this stay shall terminate automatically. In the event the petition for a writ of certiorari is granted, the stay shall terminate upon the sending down of the judgment of this Court. Justice Thomas, Justice Alito, and Justice Gorsuch would deny the application.

**EMERGENCY APPLICATION TO STAY THE EIGHTH CIRCUIT'S
MANDATE PENDING PETITION FOR CERTIORARI**

TO: The Honorable Brett M. Kavanaugh, Circuit Justice for the Eighth Circuit
Pursuant to Supreme Court Rules 22 and 23, Applicants respectfully request a stay of the Eighth Circuit's mandate pending this Court's disposition of Applicants' forthcoming petition for certiorari.

JURISDICTION

The district court had jurisdiction over Plaintiffs' suit pursuant to 28 U.S.C. §§ 1331 and 1343(a)(3) & (4). The Eighth Circuit had jurisdiction pursuant to 28 U.S.C. § 1291. This Court has jurisdiction to grant a stay pursuant to 28 U.S.C. § 2101(f).

18REASONS FOR GRANTING A STAY OF THE MANDATE

This Court may stay a lower court's issuance of the mandate in order "to enable the party aggrieved to obtain a writ of certiorari." 28 U.S.C. § 2101(f). "To obtain a stay pending the filing and disposition of a petition for a writ of certiorari, an applicant must show (1) a reasonable probability that four Justices will consider the issue sufficiently meritorious to grant certiorari; (2) a fair prospect that a majority of the Court will vote to reverse the judgment below; and (3) a likelihood that irreparable harm will result from the denial of a stay." *Hollingsworth v. Perry*, 558 U.S. 183, 190 (2010) (per curiam); *see id.* ("In close cases the Circuit Justice or the Court will balance the equities and weigh the relative harms to the applicant and to the respondent."). Each requirement is readily met here.

No. 25A11

Title:	Donald J. Trump, President of the United States, et al., Applicants v. Mary Boyle, et al.
Docketed:	July 2, 2025
Lower Ct:	United States Court of Appeals for the Fourth Circuit
Case Numbers:	(25-1687)

Proceedings and Orders

- Jul 02 2025 Application (25A11) for a stay, submitted to The Chief Justice.
[Main Document](#) [Lower Court Orders/Opinions](#) [Proof of Service](#)
- Jul 02 2025 Response to request for administrative stay from respondent Mary Boyle, et al. filed.
[Main Document](#)
- Jul 02 2025 Response to application (25A11) requested by The Chief Justice, due by 4p.m. (EDT) on July 11, 2025.
- Jul 11 2025 Response to application from respondent Mary Boyle, et al. filed.
[Main Document](#) [Proof of Service](#)
- Jul 14 2025 Reply of applicant Donald J. Trump, President of the United States, et al. filed.
[Reply](#) [Proof of Service](#)
- Jul 18 2025 Letter of applicant Donald J. Trump, President of the United States, et al. filed.
[Main Document](#)
- Jul 23 2025 Letter of applicant Donald J. Trump, President of the United States, et al. filed.
[Main Document](#)
- Jul 23 2025 Application (25A11) referred to the Court.
- Jul 23 2025 Application (25A11) for stay presented to The Chief Justice and by him referred to the Court is granted. The application is squarely controlled by *Trump v. Wilcox*, 605 U. S. ____ (2025). Although our interim orders are not conclusive as to the merits, they inform how a court should exercise its equitable discretion in like cases. The stay we issued in *Wilcox* reflected “our judgment that the Government faces greater risk of harm from an order allowing a removed officer to continue exercising the executive power than a wrongfully removed officer faces from being unable to perform her statutory

duty.” *Ibid.* (slip op., at 1). The same is true on the facts presented here, where the Consumer Product Safety Commission exercises executive power in a similar manner as the National Labor Relations Board, and the case does not otherwise differ from *Wilcox* in any pertinent respect. The June 13, 2025, order of the United States District Court for the District of Maryland, No. 8:25–cv–01628, ECF Doc. 25, is stayed pending the disposition of the appeal in the United States Court of Appeals for the Fourth Circuit and disposition of a petition for a writ of certiorari, if such a writ is timely sought. Should certiorari be denied, this stay shall terminate automatically. In the event certiorari is granted, the stay shall terminate upon the sending down of the judgment of the Court. Justice Kavanaugh concurs. (Detached [Opinion](#)). Justice Kagan, joined by Justice Sotomayor and Justice Jackson, dissents. (Detached [Opinion](#))

Pursuant to Rule 23 of the Rules of this Court and the All Writs Act, 28 U.S.C. 1651, the Solicitor General—on behalf of applicants Donald J. Trump, President of the United States, et al.—respectfully requests that this Court stay the judgment issued by the U.S. District Court for the District of Maryland (App., *infra*, 32a-33a) pending appeal to the U.S. Court of Appeals for the Fourth Circuit and any further proceedings in this Court. The Solicitor General also respectfully requests an immediate administrative stay of the judgment to prevent ongoing irreparable injury. On May 22, 2025, in *Trump v. Wilcox*, 145 S. Ct. 1415, this Court stayed in-

ARGUMENT

Under Rule 23 of the Rules of this Court and the All Writs Act, 28 U.S.C. 1651, the Court may stay a district court’s judgment pending review in the court of appeals and in this Court. See, e.g., *McHenry v. Texas Top Cop Shop, Inc.*, 145 S. Ct. 1 (2025).10 To obtain such relief, an applicant must show a likelihood of success on the merits, a reasonable probability of obtaining certiorari, and a likelihood of irreparable harm. See *Hollingsworth v. Perry*, 558 U.S. 183, 190 (2010) (per curiam). In “close cases,” “the Court will balance the equities and weigh the relative harms.” *Ibid.* In *Trump v. Wilcox*, 145 S. Ct. 1415 (2025), this Court determined that those factors justified staying a district court’s final judgments countermanding the President’s removal of members of the NLRB and MSPB. Although that order does not control this Court’s ultimate resolution of the merits, it does constitute a precedent on the application of the stay factors. See *Trump v. CASA, Inc.*, No. 24A884 (June 27, 2025) (Kavanaugh, J., concurring), slip op. 6-7; C.A. Order at 4, *United States Institute of Peace v. Jackson*, No. 25-5185 (D.C. Cir. June 27, 2025). As a result, “the issue now is not whether [*Wilcox*] was correct. The question is whether that case is distinguishable from this one. And it is not.” See *Collins v. Yellen*, 591 U.S. 220, 272 (2021) (Kagan, J., concurring in part and concurring in the judgment).

Notes: No Jurisdiction section. “Jurisdiction” only used 1x in relation to case subject matter. Case law scattered throughout alluding to court jurisdiction (non-statutory).

Title:	Donald J. Trump, Applicant v. United States
Docketed:	February 12, 2024
Linked with:	23-939
Lower Ct:	United States Court of Appeals for the District of Columbia Circuit
Case Numbers:	(23-3228)

Proceedings and Orders

- Feb 12 2024 Application (23A745) for a stay, submitted to The Chief Justice.
[Main Document](#) [Proof of Service](#)
- Feb 13 2024 Response to application (23A745) requested by The Chief Justice, due February 20, 2024, by 4pm (EST).
- Feb 13 2024 Brief amicus curiae of John Danforth, J. Michael Luttig, Carter Phillips, Peter Keisler, Larry Thompson, Stuart Gerson, et al. filed.
[Main Document](#) [Proof of Service](#)
- Feb 13 2024 Brief amicus curiae of Constitutional Law Scholars filed.
[Main Document](#) [Certificate of Word Count](#) [Proof of Service](#)
- Feb 14 2024 Response to application from respondent United States filed.
[Main Document](#) [Proof of Service](#)
- Feb 14 2024 Brief amicus curiae of Protect Democracy Project filed.
[Main Document](#) [Proof of Service](#)
- Feb 15 2024 Reply of applicant Donald J. Trump filed.
[Reply](#) [Proof of Service](#)
- Feb 15 2024 Brief amicus curiae of David Boyle filed.
[Main Document](#) [Certificate of Word Count](#) [Proof of Service](#)
- Feb 16 2024 Brief amicus curiae of Alabama and 21 Other States filed.
[Main Document](#) [Proof of Service](#)
- Feb 19 2024 Brief amicus curiae of Christian Family Coalition filed.
[Main Document](#) [Certificate of Word Count](#) [Proof of Service](#)

Feb 19 2024 Brief amicus curiae of Jeremy Bates filed.
[Main Document](#) [Proof of Service](#)

Feb 20 2024 Brief amicus curiae of Former Attorney General Edwin Meese III, Law Professors Steven Calabresi and Gary Lawson, and Citizens United filed.
[Main Document](#) [Certificate of Word Count](#) [Proof of Service](#)

Feb 28 2024 Application (23A745) referred to the Court.

Feb 28 2024 The application for a stay presented to The Chief Justice is referred by him to the Court. The Special Counsel's request to treat the stay application as a petition for a writ of certiorari is granted (23-939), and that petition is granted limited to the following question: Whether and if so to what extent does a former President enjoy presidential immunity from criminal prosecution for conduct alleged to involve official acts during his tenure in office. Without expressing a view on the merits, this Court directs the Court of Appeals to continue withholding issuance of the mandate until the sending down of the judgment of this Court. The application for stay is dismissed as moot. The case will be set for oral argument during the week of April 22, 2024. Petitioner's brief on the merits, and any amicus curiae briefs in support or in support of neither party, are to be filed on or before Tuesday, March 19, 2024. Respondent's brief on the merits, and any amicus curiae briefs in support, are to be filed on or before Monday, April 8, 2024. The reply brief, if any, is to be filed on or before 5 p.m., Monday, April 15, 2024.

No. 24A666

Title: **Donald J. Trump, Applicant**
v.
New York, et al.

Docketed: January 8, 2025

Lower Ct: Appellate Division, Supreme Court of New York, First Judicial Department

Case Numbers: (2025-00118)

Proceedings and Orders

Jan 08 2025	Application (24A666) for a stay, submitted to Justice Sotomayor. Main Document Lower Court Orders/Opinions Proof of Service
Jan 08 2025	Response to application (24A666) requested by Justice Sotomayor, due by 10 a.m. (EST), on January 9, 2025.
Jan 09 2025	Brief amici curiae of Former Attorney General Edwin Meese III, et al. filed. Main Document Proof of Service
Jan 09 2025	Amicus brief of Former Public Officials and Legal Scholars not accepted for filing. (Printed copies not received by Clerk. See Rule 37.4.)
Jan 09 2025	Response to application from respondent New York, et al. filed. Proof of Service Main Document Main Document
Jan 09 2025	Reply of applicant Donald J. Trump filed. Reply Proof of Service
Jan 09 2025	Application (24A666) referred to the Court.
Jan 09 2025	Application (24A666) for stay presented to Justice Sotomayor and by her referred to the Court is denied for, <i>inter alia</i> , the following reasons. First, the alleged evidentiary violations at President-Elect Trump's state-court trial can be addressed in the ordinary course on appeal. Second, the burden that sentencing will impose on the President-Elect's responsibilities is relatively insubstantial in light of the trial court's stated intent to impose a sentence of "unconditional discharge" after a brief virtual hearing. Justice Thomas, Justice Alito, Justice Gorsuch, and Justice Kavanaugh would grant the application.

No. 24A884

Title:	Donald J. Trump, President of the United States, et al., Applicants v. CASA, Inc., et al.
Docketed:	March 13, 2025
Lower Ct:	United States Court of Appeals for the Fourth Circuit

Case Numbers: (25-1153)

Proceedings and Orders

Mar 13 2025 Application (24A884) for a partial stay, submitted to The Chief Justice.
[Main Document](#) [Proof of Service](#)

Mar 14 2025 Response to application (24A884) requested by The Chief Justice, due by 4 p.m. (EDT), on April 4, 2025.

Mar 14 2025 Brief amici curiae of Members of Congress filed. VIDED.
[Main Document](#) [Proof of Service](#)

Mar 14 2025 Brief amicus curiae of Former National Security Official Joshua Steinman filed. VIDED.
[Main Document](#) [Proof of Service](#)

Mar 17 2025 Brief amicus curiae of David Boyle supporting neither party filed. VIDED.
[Main Document](#) [Proof of Service](#) [Certificate of Word Count](#)

Mar 19 2025 Brief amicus curiae of Immigration Reform Law Institute filed. VIDED.
[Main Document](#) [Proof of Service](#)

Mar 21 2025 Brief amicus curiae of Tennessee filed. VIDED.
[Main Document](#) [Proof of Service](#)

Mar 24 2025 Brief amicus curiae of Former United States Attorney General Edwin Meese III filed. VIDED.
[Main Document](#) [Proof of Service](#)

Mar 25 2025 Brief amicus curiae of William T. Dickson filed. VIDED.
[Main Document](#) [Proof of Service](#)

Mar 28 2025 Brief amici curiae of Iowa, et al. filed. VIDED.
[Main Document](#) [Proof of Service](#)

Mar 28 2025 Brief amici curiae of America's Future, et al. filed. VIDED.
[Main Document](#) [Proof of Service](#)

Apr 02 2025 Brief amici curiae of Student Political Research Initiative for New Governance, et al. filed. VIDED.
[Main Document](#) [Proof of Service](#) [Certificate of Word Count](#)

Apr 04 2025 Response to application from respondents CASA, Inc., et al. filed.
[Main Document](#) [Main Document](#) [Proof of Service](#)

Apr 07 2025 Reply of applicants Donald J. Trump, President of the United States, et al. filed.
[Reply](#) [Proof of Service](#)

Apr 07 2025 Brief amicus curiae of Professor Mila Sohoni filed. VIDED.
[Main Document](#) [Proof of Service](#)

Apr 17 2025 Application (24A884) referred to the Court.

Apr 17 2025 Consideration of the application (24A884) for partial stay presented to The Chief Justice and by him referred to the Court is deferred pending oral

argument. Consideration of the application (24A885) for partial stay presented to Justice Kagan and by her referred to the Court is deferred pending oral argument. Consideration of the application (24A886) for partial stay presented to Justice Jackson and by her referred to the Court is deferred pending oral argument. The applications are consolidated, and a total of one hour is allotted for oral argument. The applications are set for oral argument at 10 a.m. on Thursday, May 15, 2025.

Apr 17 2025 SET FOR ARGUMENT at 10 a.m. on Thursday, May 15, 2025. VIDED.

Apr 17 2025 Amicus brief of Corey J. Biazzo, Esq. submitted.

[Main Document Proof of Service](#)

Apr 22 2025 Brief amici curiae of Scholars of Constitutional Law and Immigration filed. VIDED.

[Main Document Proof of Service](#)

Apr 22 2025 Any brief of an amicus curiae must be filed on or before Tuesday, April 29, 2025.

Apr 22 2025 Any motion pertaining to the oral argument in 24A884, 24A885 and 24A886 shall be filed on or before Tuesday, April 29, 2025.

Apr 23 2025 Brief amicus curiae of Chamber of Commerce of the United States of America supporting neither party filed. (as to 24A884)

[Main Document Proof of Service](#)

Apr 25 2025 Brief amicus curiae of Alan B. Morrison filed. VIDED.

[Main Document Proof of Service](#)

Apr 28 2025 Motion for divided argument filed by respondents in 24A884, 24A885 and 24A886. VIDED.

[Main Document Proof of Service](#)

Apr 29 2025 Brief amici curiae of Professor Gabriel J. Chin, et al. filed. VIDED.

[Main Document Proof of Service](#)

Apr 29 2025 Brief amicus curiae of West Virginia filed. VIDED.

[Main Document Proof of Service](#)

Apr 29 2025 Brief amicus curiae of Common Cause filed. VIDED.

[Main Document Proof of Service](#)

Apr 29 2025 Brief amicus curiae of Professor James E. Pfander supporting neither party filed. VIDED.

[Main Document Proof of Service](#)

Apr 29 2025 Brief amici curiae of Restaurant Law Center, et al. filed. VIDED.

[Main Document Proof of Service](#)

Apr 29 2025 Brief amicus curiae of B.A.M.N. (The Coalition to Defend Affirmative Action, Integration and Immigrant Rights and Fight for Equality By Any Means Necessary) filed. VIDED.

[Main Document Proof of Service](#)

Apr 29 2025 Brief amici curiae of Legal Historians filed. (as to 24A884)

[Main Document Proof of Service](#)

Apr 29 2025 Brief amici curiae of Members of the United States Congress filed. VIDED.

[Main Document Proof of Service](#)

Apr 29 2025	Brief amici curiae of Professor Suzette Malveaux, et al. filed. VIDED. Main Document Proof of Service
Apr 29 2025	Brief amicus curiae of National Immigrant Justice Center filed. VIDED. Main Document Proof of Service
Apr 29 2025	Brief amici curiae of Local Governments and Local Government Officials filed. VIDED. Main Document Proof of Service
Apr 29 2025	Brief amicus curiae of G. Antaeus B. Edelson filed. VIDED. Main Document Proof of Service
Apr 29 2025	Brief amicus curiae of Claremont Institute's Center for Constitutional Jurisprudence filed. VIDED. Main Document Proof of Service
Apr 30 2025	Record requested from the United States Court of Appeals for the Fourth Circuit.
Apr 30 2025	Record received from the United States Court of Appeals for the Fourth Circuit. The record is electronic and is available on PACER.
May 05 2025	Motion for divided argument filed by respondents GRANTED. VIDED.
May 15 2025	Argued. For applicants: D. John Sauer, Solicitor General, Department of Justice, Washington, D. C. For state and city respondents: Jeremy M. Feigenbaum, Solicitor General, Trenton, N. J. For private respondents: Kelsi B. Corkran, Washington, D. C. VIDED.
Jun 27 2025	Applications for partial stays (24A884, 24A885, and 24A886) granted by the Court. Barrett, J., delivered the opinion of the Court, in which Roberts, C. J., and Thomas, Alito, Gorsuch, and Kavanaugh, JJ., joined. Thomas, J., filed a concurring opinion, in which Gorsuch, J., joined. Alito, J., filed a concurring opinion, in which Thomas, J., joined. Kavanaugh, J., filed a concurring opinion. Sotomayor, J., filed a dissenting opinion, in which Kagan and Jackson, JJ., joined. Jackson, J., filed a dissenting opinion. VIDED.

No. 24A885

Title: **Donald J. Trump, President of the United States, et al., Applicants
v.
Washington, et al.**

Docketed: March 13, 2025

Lower Ct: United States Court of Appeals for the Ninth Circuit

Case Numbers: (25-807)

Proceedings and Orders

Mar 13 2025 Application (24A885) for a partial stay, submitted to Justice Kagan.
[Main Document](#) [Proof of Service](#)

Mar 14 2025 Response to application (24A885) requested by Justice Kagan, due by 4 p.m. (EDT), on April 4, 2025.

Mar 14 2025 Brief amicus curiae of Former National Security Official Joshua Steinman filed. VIDED.
[Main Document](#) [Proof of Service](#)

Mar 14 2025 Brief amici curiae of Members of Congress filed. VIDED.
[Main Document](#) [Proof of Service](#)

Mar 17 2025 Brief amicus curiae of David Boyle supporting neither party filed. VIDED.
[Main Document](#) [Proof of Service](#) [Certificate of Word Count](#)

Mar 19 2025 Brief amicus curiae of Immigration Reform Law Institute filed. VIDED.
[Main Document](#) [Proof of Service](#)

Mar 21 2025 Brief amicus curiae of Tennessee filed. VIDED.
[Main Document](#) [Proof of Service](#)

Mar 24 2025 Brief amicus curiae of Former United States Attorney General Edwin Meese III filed. VIDED.
[Main Document](#) [Proof of Service](#)

Mar 25 2025 Brief amicus curiae of William T. Dickson filed. VIDED.
[Main Document](#) [Main Document](#)

Mar 28 2025 Brief amici curiae of America's Future, et al. filed. VIDED.
[Main Document](#) [Proof of Service](#)

Mar 28 2025 Brief amici curiae of Iowa, et al. filed. VIDED.
[Main Document](#) [Proof of Service](#)

Apr 02 2025 Brief amici curiae of Student Political Research Initiative for New Governance, et al. filed. VIDED.
[Main Document](#) [Proof of Service](#) [Certificate of Word Count](#)

Apr 04 2025 Response to application from respondents Washington, et al. filed.
[Main Document](#) [Main Document](#) [Proof of Service](#)

Apr 04 2025 Response to application from respondents Cherly Norales Castillo and Alicia Chavarria Lopez filed.
[Main Document](#) [Proof of Service](#)

Apr 07 2025 Reply of applicants Donald J. Trump, President of the United States, et al. filed.
[Reply Proof of Service](#)

Apr 07 2025 Brief amicus curiae of Professor Mila Sohoni filed. VIDED.
[Main Document Proof of Service](#)

Apr 17 2025 Application (24A885) referred to the Court.

Apr 17 2025 Consideration of the application (24A884) for partial stay presented to The Chief Justice and by him referred to the Court is deferred pending oral argument. Consideration of the application (24A885) for partial stay presented to Justice Kagan and by her referred to the Court is deferred pending oral argument. Consideration of the application (24A886) for partial stay presented to Justice Jackson and by her referred to the Court is deferred pending oral argument. The applications are consolidated, and a total of one hour is allotted for oral argument. The applications are set for oral argument at 10 a.m. on Thursday, May 15, 2025.

Apr 17 2025 SET FOR ARGUMENT at 10 a.m. on Thursday, May 15, 2025. VIDED.

Apr 17 2025 Amicus brief of Corey J. Biazzo, Esq. submitted.
[Main Document Proof of Service](#)

Apr 22 2025 Any brief of an amicus curiae must be filed on or before Tuesday, April 29, 2025.

Apr 22 2025 Any motion pertaining to the oral argument in 24A884, 24A885 and 24A886 shall be filed on or before Tuesday, April 29, 2025.

Apr 22 2025 Brief amici curiae of Scholars of Constitutional Law and Immigration filed. VIDED.
[Main Document Proof of Service](#)

Apr 25 2025 Brief amicus curiae of Alan B. Morrison filed. VIDED.
[Main Document Proof of Service](#)

Apr 28 2025 Motion for divided argument filed by respondents in 24A884, 24A885 and 24A886. VIDED.
[Main Document Proof of Service](#)

Apr 29 2025 Brief amici curiae of Professor Gabriel J. Chin, et al. filed. VIDED.
[Main Document Proof of Service](#)

Apr 29 2025 Brief amicus curiae of West Virginia filed. VIDED.
[Main Document Proof of Service](#)

Apr 29 2025 Brief amicus curiae of Common Cause filed. VIDED.
[Main Document Proof of Service](#)

Apr 29 2025 Brief amicus curiae of Professor James E. Pfander supporting neither party filed. VIDED.
[Main Document Proof of Service](#)

Apr 29 2025 Brief amici curiae of Restaurant Law Center, et al. filed. VIDED.
[Main Document Proof of Service](#)

Apr 29 2025 Brief amicus curiae of B.A.M.N. (The Coalition to Defend Affirmative Action, Integration and Immigrant Rights and Fight for Equality By Any Means Necessary) filed. VIDED.
[Main Document Proof of Service](#)

Apr 29 2025	Brief amici curiae of Members of the United States Congress filed. VIDED. Main Document Proof of Service
Apr 29 2025	Brief amici curiae of Professor Suzette Malveaux, et al. filed. VIDED. Main Document Proof of Service
Apr 29 2025	Brief amicus curiae of National Immigrant Justice Center filed. VIDED. Main Document Proof of Service
Apr 29 2025	Brief amici curiae of Local Governments and Local Government Officials filed. VIDED. Main Document Proof of Service
Apr 29 2025	Brief amicus curiae of G. Antaeus B. Edelsohn filed. VIDED. Main Document Proof of Service
Apr 29 2025	Brief amicus curiae of Claremont Institute's Center for Constitutional Jurisprudence filed. VIDED. Main Document Proof of Service
Apr 30 2025	Record requested from the United States Court of Appeals for the Ninth Circuit.
May 02 2025	Record received from the United States Court of Appeals for the Ninth Circuit. The record is electronic and is available on PACER.
May 05 2025	Motion for divided argument filed by respondents GRANTED. VIDED.
May 15 2025	Argued. For applicants: D. John Sauer, Solicitor General, Department of Justice, Washington, D. C. For state and city respondents: Jeremy M. Feigenbaum, Solicitor General, Trenton, N. J. For private respondents: Kelsi B. Corkran, Washington, D. C. VIDED.
Jun 27 2025	Applications for partial stays (24A884, 24A885, and 24A886) granted by the Court. Barrett, J., delivered the opinion of the Court, in which Roberts, C. J., and Thomas, Alito, Gorsuch, and Kavanaugh, JJ., joined. Thomas, J., filed a concurring opinion, in which Gorsuch, J., joined. Alito, J., filed a concurring opinion, in which Thomas, J., joined. Kavanaugh, J., filed a concurring opinion. Sotomayor, J., filed a dissenting opinion, in which Kagan and Jackson, JJ., joined. Jackson, J., filed a dissenting opinion. VIDED.

No. 24A886

Title:	Donald J. Trump, President of the United States, et al., Applicants v. New Jersey, et al.
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Docketed:	March 13, 2025
Lower Ct:	United States Court of Appeals for the First Circuit
Case Numbers:	(25-1170)

Proceedings and Orders

- Mar 13 2025 Application (24A886) for a partial stay, submitted to Justice Jackson.
[Main Document](#) [Proof of Service](#)
- Mar 14 2025 Response to application (24A886) requested by Justice Jackson, due by 4 p.m. (EDT), on April 4, 2025.
- Mar 14 2025 Brief amicus curiae of Former National Security Official Joshua Steinman filed. VIDED.
[Main Document](#) [Proof of Service](#)
- Mar 14 2025 Brief amici curiae of Members of Congress filed. VIDED.
[Main Document](#) [Proof of Service](#)
- Mar 17 2025 Brief amicus curiae of David Boyle supporting neither party filed. VIDED.
[Main Document](#) [Proof of Service](#) [Certificate of Word Count](#)
- Mar 19 2025 Brief amicus curiae of Immigration Reform Law Institute filed. VIDED.
[Main Document](#) [Proof of Service](#)
- Mar 21 2025 Brief amicus curiae of Tennessee filed. VIDED.
[Main Document](#) [Proof of Service](#)
- Mar 24 2025 Brief amicus curiae of Former United States Attorney General Edwin Meese III filed. VIDED.
[Main Document](#) [Proof of Service](#)
- Mar 25 2025 Brief amicus curiae of William T. Dickson filed. VIDED.
[Main Document](#) [Proof of Service](#)
- Mar 28 2025 Brief amici curiae of America's Future, et al. filed. VIDED.
[Main Document](#) [Proof of Service](#)
- Mar 28 2025 Brief amici curiae of Iowa, et al. filed. VIDED.
[Main Document](#) [Proof of Service](#)
- Apr 02 2025 Brief amici curiae of Student Political Research Initiative for New Governance, et al. filed. VIDED.
[Main Document](#) [Proof of Service](#) [Certificate of Word Count](#)
- Apr 04 2025 Response to application from respondents New Jersey, et al. filed.
[Main Document](#) [Main Document](#) [Proof of Service](#)

Apr 07 2025 Reply of applicants Donald J. Trump, President of the United States, et al. filed.
[Reply Proof of Service](#)

Apr 07 2025 Brief amicus curiae of Professor Mila Sohoni filed. VIDED.
[Main Document Proof of Service](#)

Apr 17 2025 Application (24A886) referred to the Court.

Apr 17 2025 Consideration of the application (24A884) for partial stay presented to The Chief Justice and by him referred to the Court is deferred pending oral argument. Consideration of the application (24A885) for partial stay presented to Justice Kagan and by her referred to the Court is deferred pending oral argument. Consideration of the application (24A886) for partial stay presented to Justice Jackson and by her referred to the Court is deferred pending oral argument. The applications are consolidated, and a total of one hour is allotted for oral argument. The applications are set for oral argument at 10 a.m. on Thursday, May 15, 2025.

Apr 17 2025 SET FOR ARGUMENT at 10 a.m. on Thursday, May 15, 2025. VIDED.

Apr 17 2025 Amicus brief of Corey J. Biazzo submitted.
[Main Document Main Document](#)

Apr 22 2025 Any brief of an amicus curiae must be filed on or before Tuesday, April 29, 2025.

Apr 22 2025 Any motion pertaining to the oral argument in 24A884, 24A885 and 24A886 shall be filed on or before Tuesday, April 29, 2025.

Apr 22 2025 Brief amici curiae of Scholars of Constitutional Law and Immigration filed. VIDED.
[Main Document Proof of Service](#)

Apr 25 2025 Brief amicus curiae of Alan B. Morrison filed. VIDED.
[Main Document Proof of Service](#)

Apr 28 2025 Motion for divided argument filed by respondents in 24A884, 24A885 and 24A886. VIDED.
[Main Document Proof of Service](#)

Apr 29 2025 Brief amici curiae of Professor Gabriel J. Chin, et al. filed. VIDED.
[Main Document Proof of Service](#)

Apr 29 2025 Brief amicus curiae of West Virginia filed. VIDED.
[Main Document Proof of Service](#)

Apr 29 2025 Brief amicus curiae of Common Cause filed. VIDED.
[Main Document Proof of Service](#)

Apr 29 2025 Brief amicus curiae of Professor James E. Pfander supporting neither party filed. VIDED.
[Main Document Proof of Service](#)

Apr 29 2025 Brief amici curiae of Restaurant Law Center, et al. filed. VIDED.
[Main Document Proof of Service](#)

Apr 29 2025 Brief amicus curiae of B.A.M.N. (The Coalition to Defend Affirmative Action, Integration and Immigrant Rights and Fight for Equality By Any Means Necessary) filed. VIDED.
[Main Document Proof of Service](#)

Apr 29 2025	Brief amici curiae of Members of the United States Congress filed. VIDED. Main Document Proof of Service
Apr 29 2025	Brief amici curiae of Professor Suzette Malveaux, et al. filed. VIDED. Main Document Proof of Service
Apr 29 2025	Brief amicus curiae of National Immigrant Justice Center filed. VIDED. Main Document Proof of Service
Apr 29 2025	Brief amici curiae of Local Governments and Local Government Officials filed. VIDED. Main Document Proof of Service
Apr 29 2025	Brief amicus curiae of G. Antaeus B. Edelsohn filed. VIDED. Main Document Proof of Service
Apr 29 2025	Brief amicus curiae of Claremont Institute's Center for Constitutional Jurisprudence filed. VIDED. Main Document Proof of Service
Apr 30 2025	Record requested from the United States Court of Appeals for the First Circuit.
Apr 30 2025	Record received from the United States Court of Appeals for the First Circuit. The record is electronic and is available on PACER.
May 05 2025	Motion for divided argument filed by respondents GRANTED. VIDED.
May 15 2025	Argued. For applicants: D. John Sauer, Solicitor General, Department of Justice, Washington, D. C. For state and city respondents: Jeremy M. Feigenbaum, Solicitor General, Trenton, N. J. For private respondents: Kelsi B. Corkran, Washington, D. C. VIDED.
Jun 27 2025	Applications for partial stays (24A884, 24A885, and 24A886) granted by the Court. Barrett, J., delivered the opinion of the Court, in which Roberts, C. J., and Thomas, Alito, Gorsuch, and Kavanaugh, JJ., joined. Thomas, J., filed a concurring opinion, in which Gorsuch, J., joined. Alito, J., filed a concurring opinion, in which Thomas, J., joined. Kavanaugh, J., filed a concurring opinion. Sotomayor, J., filed a dissenting opinion, in which Kagan and Jackson, JJ., joined. Jackson, J., filed a dissenting opinion. VIDED.

No. 24A931

Title:	Donald J. Trump, President of the United States, et al v. J.G.G., et al.
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Docketed:	March 28, 2025
Lower Ct:	United States Court of Appeals for the District of Columbia Circuit
Case Numbers:	(25-5067)

Proceedings and Orders

- Mar 28 2025 Application (24A931) to vacate the orders issued by the United States District Court for the District of Columbia, submitted to The Chief Justice.
[Main Document](#) [Proof of Service](#)
- Mar 28 2025 Response to application (24A931) requested by The Chief Justice, due by 10 a.m. (EDT), on April 1, 2025.
- Mar 31 2025 Amicus brief of American Rights Alliance not accepted for filing. (To be corrected and resubmitted - April 1, 2025)
- Mar 31 2025 Brief amicus curiae of APA Watch filed.
[Main Document](#)
- Mar 31 2025 Brief amicus curiae of South Carolina, et al. filed.
[Main Document](#) [Proof of Service](#)
- Apr 01 2025 Motion for Leave to File Amicus Curiae Brief in Support of Appellants-Defendants by the American Rights Alliance not accepted for filing. (April 1, 2025)
- Apr 01 2025 Response to application from respondents J.G.G., et al. filed.
[Main Document](#) [Main Document](#) [Main Document](#) [Proof of Service](#)
- Apr 01 2025 Amicus brief of Representative Brandon Gill not accepted for filing. (April 01, 2025) (corrected brief to be submitted)
- Apr 01 2025 Brief amicus curiae of American Rights Alliance filed.
[Main Document](#) [Proof of Service](#)
- Apr 01 2025 Brief amicus curiae of Democracy Defenders Fund and Conservatives filed.
[Main Document](#) [Proof of Service](#)
- Apr 01 2025 Brief amicus curiae of Representative Brandon Gill filed.
[Main Document](#)
- Apr 02 2025 Reply of applicants Donald J. Trump, et al. filed.
[Reply](#) [Proof of Service](#)
- Apr 07 2025 Application (24A931) referred to the Court.
- Apr 07 2025 Application (24A931) to vacate the orders of the United States District Court for the District of Columbia presented to The Chief Justice and by him referred to the Court is granted. The March 15, 2025 minute orders granting a temporary restraining order and March 28, 2025 extension of the United States District Court for the District of Columbia, case No. 1:25-cv-766, are vacated. Justice Kavanaugh concurring (Detached [Opinion](#)). Justice Sotomayor, with whom Justice Kagan and Justice Jackson join, and with

whom Justice Barrett joins as to Parts II and III-B dissenting
(Detached [Opinion](#)), and Justice Jackson dissenting.
(Detached [Opinion](#)). [Opinion](#) per curiam. (Detached [Opinion](#))

No. 24A1007

Title:	A.A.R.P., et al., Applicants v. Donald J. Trump, President of the United States, et al.
Docketed:	April 18, 2025
Linked with:	24-1177
Lower Ct:	United States Court of Appeals for the Fifth Circuit
Case Numbers:	(25-10534)

Proceedings and Orders

Apr 18 2025	Application (24A1007) for injunction, submitted to Justice Alito. Main Document Lower Court Orders/Opinions Proof of Service Other
Apr 18 2025	Application (24A1007) referred to the Court.
Apr 19 2025	There is before the Court an application on behalf of a putative class of detainees seeking an injunction against their removal under the Alien Enemies Act. The matter is currently pending before the Fifth Circuit. Upon action by the Fifth Circuit, the Solicitor General is invited to file a response to the application before this Court as soon as possible. The Government is directed not to remove any member of the putative class of detainees from the United States until further order of this Court. See 28 U. S. C. §1651(a). Justice Thomas and Justice Alito dissent from the Court's order. Statement from Justice Alito to follow.
Apr 19 2025	Justice Alito, with whom Justice Thomas joins, dissenting. (Detached Opinion)

Apr 19 2025	Response to application from respondents Donald J. Trump, et al. filed. Main Document Other Proof of Service
Apr 21 2025	Reply of applicants A.A.R.P., et al. filed. Reply Reply Proof of Service
Apr 23 2025	Motion for Leave to File Supplemental Appendix Under Seal filed by applicant A.A.R.P., et al. Main Document
May 11 2025	Letter from applicants A.A.R.P., et al. notifying the Court of the District Court decision filed. Main Document Other
May 12 2025	Supplemental brief of respondents Donald J. Trump, et al. filed. Main Document Proof of Service
May 14 2025	Supplemental brief of applicants A.A.R.P., et al. filed. Main Document Proof of Service
May 16 2025	Motion for Leave to File Supplemental Appendix Under Seal GRANTED.
May 16 2025	The application for an injunction pending further proceedings is granted. Additionally, applicants suggested this Court treat the application as a petition for a writ of certiorari; doing so, the petition is granted (case No. 24-1177). The judgment of the Fifth Circuit is vacated, and the case is remanded to the Fifth Circuit. In resolving the detainees' appeal, the Fifth Circuit should address (1) all the normal preliminary injunction factors, including likelihood of success on the merits, as to the named plaintiffs' underlying habeas claims that the AEA does not authorize their removal pursuant to the President's March 14, 2025, Proclamation, and (2) the issue of what notice

is due, as to the putative class's due process claims against summary removal. The Government is enjoined from removing the named plaintiffs or putative class members in this action under the AEA pending order by the Fifth Circuit and disposition of the petition for a writ of certiorari, if such writ is timely sought. Should the petition for a writ of certiorari be denied, this order shall terminate automatically. In the event the petition for a writ of certiorari is granted, the order shall terminate upon the sending down of the judgment of this Court. Justice Kavanaugh, concurring (detached [opinion](#)). Justice Alito, with whom Justice Thomas joins, dissenting (detached [opinion](#)). (Detached [Opinion](#))

Title:

**Donald J. Trump, President of the United States, et al.,
Applicants
v.
American Federation of Government Employees, et al.**

Docketed:

May 16, 2025

Lower Ct:	United States Court of Appeals for the Ninth Circuit
Case Numbers:	(25-3030)

Proceedings and Orders

May 16 2025	Application (24A1106) for a stay, submitted to Justice Kagan. Main Document Proof of Service
May 20 2025	Brief amicus curiae of Former Government Officials and Advisors filed. Main Document Proof of Service
May 23 2025	Letter withdrawing the application filed. Main Document
May 27 2025	Application (24A1106) withdrawn.

No. 25A11	
Title:	Donald J. Trump, President of the United States, et al., Applicants v. Mary Boyle, et al.
Docketed:	July 2, 2025
Lower Ct:	United States Court of Appeals for the Fourth Circuit
Case Numbers:	(25-1687)

Proceedings and Orders

Jul 02 2025	Application (25A11) for a stay, submitted to The Chief Justice. Main Document Lower Court Orders/Opinions Proof of Service
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Jul 02 2025	Response to request for administrative stay from respondent Mary Boyle, et al. filed. Main Document
Jul 02 2025	Response to application (25A11) requested by The Chief Justice, due by 4p.m. (EDT) on July 11, 2025.
Jul 11 2025	Response to application from respondent Mary Boyle, et al. filed. Main Document Proof of Service
Jul 14 2025	Reply of applicant Donald J. Trump, President of the United States, et al. filed. Reply Proof of Service
Jul 18 2025	Letter of applicant Donald J. Trump, President of the United States, et al. filed. Main Document
Jul 23 2025	Letter of applicant Donald J. Trump, President of the United States, et al. filed. Main Document
Jul 23 2025	Application (25A11) referred to the Court.
Jul 23 2025	Application (25A11) for stay presented to The Chief Justice and by him referred to the Court is granted. The application is squarely controlled by <i>Trump v. Wilcox</i> , 605 U. S. ____ (2025). Although our interim orders are not conclusive as to the merits, they inform how a court should exercise its equitable discretion in like cases. The stay we issued in <i>Wilcox</i> reflected “our judgment that the Government faces greater risk of harm from an order allowing a removed officer to continue exercising the executive power than a wrongfully removed officer faces from being unable to perform her statutory duty.” <i>Ibid.</i> (slip op., at 1). The same is true on the facts presented here, where the Consumer Product Safety Commission exercises executive power in a similar manner as the National Labor Relations Board, and the case does not otherwise differ from <i>Wilcox</i> in any pertinent respect. The June 13, 2025, order of the United States District Court for the District of Maryland, No. 8:25-cv-01628, ECF Doc. 25, is stayed pending the disposition of the appeal in the United States Court of Appeals for the Fourth Circuit and disposition of a petition for a writ of certiorari, if such a writ is timely sought. Should certiorari be denied, this stay shall terminate automatically. In the event certiorari is granted, the stay shall terminate upon the sending down of the judgment of the Court. Justice Kavanaugh concurs. (Detached Opinion). Justice Kagan, joined by Justice Sotomayor and Justice Jackson, dissents. (Detached Opinion)

No. 25A319

Title:	Donald J. Trump, President of the United States, et al., Applicants v. Ashton Orr, et al.
Docketed:	September 19, 2025
Lower Ct:	United States Court of Appeals for the First Circuit
Case Numbers:	(25-1579)

Proceedings and Orders

Sep 19 2025	Application (25A319) for a stay, submitted to Justice Jackson. Lower Court Orders/Opinions Main Document Proof of Service
Sep 22 2025	Response to application (25A319) requested by Justice Jackson, due by 4 p.m. (EDT) on October 6, 2025.
Oct 03 2025	Brief amici curiae of Indiana, et al. filed. Main Document Proof of Service
Oct 06 2025	Response to application from respondent Ashton Orr, et al. filed. Main Document Main Document Proof of Service
Oct 07 2025	Reply of applicant Donald J. Trump, President of the United States, et al. filed. Reply Proof of Service
Nov 06 2025	Application (25A319) referred to the Court.
Nov 06 2025	[See detached opinion for additional order language.] The application for stay presented to Justice Jackson and by her referred to the Court is granted. The June 17, 2025 order of the United States District Court for the District of Massachusetts, case No. 1:25–cv–10313, is stayed pending the disposition of the appeal in the United States Court of Appeals for the First Circuit and disposition of a petition for a writ of certiorari, if such a writ is timely sought. Should certiorari be denied, this stay shall terminate automatically. In the event certiorari is granted, the stay shall terminate upon the sending down of the judgment of this Court. Justice Jackson, joined by Justice Kagan and Justice Sotomayor, dissents. (Detached Opinion).

Title:	Donald J. Trump, President of the United States, et al., Applicants v. J.G.G., et al.
Docketed:	March 28, 2025
Lower Ct:	United States Court of Appeals for the District of Columbia Circuit
Case Numbers:	(25-5067)

Proceedings and Orders

Mar 28 2025	Application (24A931) to vacate the orders issued by the United States District Court for the District of Columbia, submitted to The Chief Justice. Main Document Proof of Service
Mar 28 2025	Response to application (24A931) requested by The Chief Justice, due by 10 a.m. (EDT), on April 1, 2025.
Mar 31 2025	Amicus brief of American Rights Alliance not accepted for filing. (To be corrected and resubmitted - April 1, 2025)
Mar 31 2025	Brief amicus curiae of APA Watch filed. Main Document
Mar 31 2025	Brief amicus curiae of South Carolina, et al. filed. Main Document Proof of Service
Apr 01 2025	Motion for Leave to File Amicus Curiae Brief in Support of Appellants-Defendants by the American Rights Alliance not accepted for filing. (April 1, 2025)
Apr 01 2025	Response to application from respondents J.G.G., et al. filed. Main Document Main Document Main Document Proof of Service
Apr 01 2025	Amicus brief of Representative Brandon Gill not accepted for filing. (April 01, 2025) (corrected brief to be submitted)
Apr 01 2025	Brief amicus curiae of American Rights Alliance filed. Main Document Proof of Service
Apr 01 2025	Brief amicus curiae of Democracy Defenders Fund and Conservatives filed. Main Document Proof of Service
Apr 01 2025	Brief amicus curiae of Representative Brandon Gill filed. Main Document
Apr 02 2025	Reply of applicants Donald J. Trump, et al. filed. Reply Proof of Service
Apr 07 2025	Application (24A931) referred to the Court.

Apr 07 2025 Application (24A931) to vacate the orders of the United States District Court for the District of Columbia presented to The Chief Justice and by him referred to the Court is granted. The March 15, 2025 minute orders granting a temporary restraining order and March 28, 2025 extension of the United States District Court for the District of Columbia, case No. 1:25-cv-766, are vacated. Justice Kavanaugh concurring (Detached [Opinion](#)). Justice Sotomayor, with whom Justice Kagan and Justice Jackson join, and with whom Justice Barrett joins as to Parts II and III-B dissenting (Detached [Opinion](#)), and Justice Jackson dissenting. (Detached [Opinion](#)). [Opinion](#) per curiam. (Detached [Opinion](#))

No. 24A884

Title: **Donald J. Trump, President of the United States, et al., Applicants
v.
CASA, Inc., et al.**

Docketed: March 13, 2025

Lower Ct: United States Court of Appeals for the Fourth Circuit

Case Numbers: (25-1153)

Proceedings and Orders

Mar 13 2025 Application (24A884) for a partial stay, submitted to The Chief Justice.
[Main Document Proof of Service](#)

Mar 14 2025 Response to application (24A884) requested by The Chief Justice, due by 4
p.m. (EDT), on April 4, 2025.

Mar 14 2025 Brief amici curiae of Members of Congress filed. VIDED.
[Main Document Proof of Service](#)

Mar 14 2025 Brief amicus curiae of Former National Security Official Joshua Steinman
filed. VIDED.
[Main Document Proof of Service](#)

Mar 17 2025	Brief amicus curiae of David Boyle supporting neither party filed. VIDED. Main Document Proof of Service Certificate of Word Count
Mar 19 2025	Brief amicus curiae of Immigration Reform Law Institute filed. VIDED. Main Document Proof of Service
Mar 21 2025	Brief amicus curiae of Tennessee filed. VIDED. Main Document Proof of Service
Mar 24 2025	Brief amicus curiae of Former United States Attorney General Edwin Meese III filed. VIDED. Main Document Proof of Service
Mar 25 2025	Brief amicus curiae of William T. Dickson filed. VIDED. Main Document Proof of Service
Mar 28 2025	Brief amici curiae of Iowa, et al. filed. VIDED. Main Document Proof of Service
Mar 28 2025	Brief amici curiae of America's Future, et al. filed. VIDED. Main Document Proof of Service
Apr 02 2025	Brief amici curiae of Student Political Research Initiative for New Governance, et al. filed. VIDED. Main Document Proof of Service Certificate of Word Count
Apr 04 2025	Response to application from respondents CASA, Inc., et al. filed. Main Document Main Document Proof of Service
Apr 07 2025	Reply of applicants Donald J. Trump, President of the United States, et al. filed. Reply Proof of Service
Apr 07 2025	Brief amicus curiae of Professor Mila Sohoni filed. VIDED. Main Document Proof of Service
Apr 17 2025	Application (24A884) referred to the Court.
Apr 17 2025	Consideration of the application (24A884) for partial stay presented to The Chief Justice and by him referred to the Court is deferred pending oral argument. Consideration of the application (24A885) for partial stay presented to Justice Kagan and by her referred to the Court is deferred pending oral argument. Consideration of the application (24A886) for partial stay presented to Justice Jackson and by her referred to the Court is deferred pending oral argument. The applications are consolidated, and a total of one hour is allotted for oral argument. The applications are set for oral argument at 10 a.m. on Thursday, May 15, 2025.
Apr 17 2025	SET FOR ARGUMENT at 10 a.m. on Thursday, May 15, 2025. VIDED.
Apr 17 2025	Amicus brief of Corey J. Biazzo, Esq. submitted. Main Document Proof of Service
Apr 22 2025	Brief amici curiae of Scholars of Constitutional Law and Immigration filed. VIDED. Main Document Proof of Service
Apr 22 2025	Any brief of an amicus curiae must be filed on or before Tuesday, April 29, 2025.
Apr 22 2025	Any motion pertaining to the oral argument in 24A884, 24A885 and 24A886 shall be filed on or before Tuesday, April 29, 2025.

Apr 23 2025 Brief amicus curiae of Chamber of Commerce of the United States of America supporting neither party filed. (as to 24A884)
[Main Document Proof of Service](#)

Apr 25 2025 Brief amicus curiae of Alan B. Morrison filed. VIDED.
[Main Document Proof of Service](#)

Apr 28 2025 Motion for divided argument filed by respondents in 24A884, 24A885 and 24A886. VIDED.
[Main Document Proof of Service](#)

Apr 29 2025 Brief amici curiae of Professor Gabriel J. Chin, et al. filed. VIDED.
[Main Document Proof of Service](#)

Apr 29 2025 Brief amicus curiae of West Virginia filed. VIDED.
[Main Document Proof of Service](#)

Apr 29 2025 Brief amicus curiae of Common Cause filed. VIDED.
[Main Document Proof of Service](#)

Apr 29 2025 Brief amicus curiae of Professor James E. Pfander supporting neither party filed. VIDED.
[Main Document Proof of Service](#)

Apr 29 2025 Brief amici curiae of Restaurant Law Center, et al. filed. VIDED.
[Main Document Proof of Service](#)

Apr 29 2025 Brief amicus curiae of B.A.M.N. (The Coalition to Defend Affirmative Action, Integration and Immigrant Rights and Fight for Equality By Any Means Necessary) filed. VIDED.
[Main Document Proof of Service](#)

Apr 29 2025 Brief amici curiae of Legal Historians filed. (as to 24A884)
[Main Document Proof of Service](#)

Apr 29 2025 Brief amici curiae of Members of the United States Congress filed. VIDED.
[Main Document Proof of Service](#)

Apr 29 2025 Brief amici curiae of Professor Suzette Malveaux, et al. filed. VIDED.
[Main Document Proof of Service](#)

Apr 29 2025 Brief amicus curiae of National Immigrant Justice Center filed. VIDED.
[Main Document Proof of Service](#)

Apr 29 2025 Brief amici curiae of Local Governments and Local Government Officials filed. VIDED.
[Main Document Proof of Service](#)

Apr 29 2025 Brief amicus curiae of G. Antaeus B. Edelsohn filed. VIDED.
[Main Document Proof of Service](#)

Apr 29 2025 Brief amicus curiae of Claremont Institute's Center for Constitutional Jurisprudence filed. VIDED.
[Main Document Proof of Service](#)

Apr 30 2025 Record requested from the United States Court of Appeals for the Fourth Circuit.

Apr 30 2025 Record received from the United States Court of Appeals for the Fourth Circuit. The record is electronic and is available on PACER.

May 05 2025 Motion for divided argument filed by respondents GRANTED. VIDED.

May 15 2025 Argued. For applicants: D. John Sauer, Solicitor General, Department of Justice, Washington, D. C. For state and city respondents: Jeremy M. Feigenbaum, Solicitor General, Trenton, N. J. For private respondents: Kelsi B. Corkran, Washington, D. C. VIDED.

Jun 27 2025 Applications for partial stays (24A884, 24A885, and 24A886) granted by the Court. Barrett, J., delivered the [opinion](#) of the Court, in which Roberts, C. J., and Thomas, Alito, Gorsuch, and Kavanaugh, JJ., joined. Thomas, J., filed a concurring opinion, in which Gorsuch, J., joined. Alito, J., filed a concurring opinion, in which Thomas, J., joined. Kavanaugh, J., filed a concurring opinion. Sotomayor, J., filed a dissenting opinion, in which Kagan and Jackson, JJ., joined. Jackson, J., filed a dissenting opinion. VIDED.

No. 24A885

Title: **Donald J. Trump, President of the United States, et al., Applicants
v.
Washington, et al.**

Docketed: March 13, 2025

Lower Ct: United States Court of Appeals for the Ninth Circuit

Case Numbers: (25-807)

Proceedings and Orders

Mar 13 2025 Application (24A885) for a partial stay, submitted to Justice Kagan.
[Main Document](#) [Proof of Service](#)

Mar 14 2025 Response to application (24A885) requested by Justice Kagan, due by 4 p.m. (EDT), on April 4, 2025.

Mar 14 2025 Brief amicus curiae of Former National Security Official Joshua Steinman filed. VIDED.
[Main Document](#) [Proof of Service](#)

Mar 14 2025 Brief amici curiae of Members of Congress filed. VIDED.
[Main Document](#) [Proof of Service](#)

Mar 17 2025 Brief amicus curiae of David Boyle supporting neither party filed. VIDED.
[Main Document](#) [Proof of Service](#) [Certificate of Word Count](#)

Mar 19 2025 Brief amicus curiae of Immigration Reform Law Institute filed. VIDED.
[Main Document](#) [Proof of Service](#)

Mar 21 2025 Brief amicus curiae of Tennessee filed. VIDED.
[Main Document](#) [Proof of Service](#)

Mar 24 2025 Brief amicus curiae of Former United States Attorney General Edwin Meese III filed. VIDED.
[Main Document](#) [Proof of Service](#)

Mar 25 2025 Brief amicus curiae of William T. Dickson filed. VIDED.
[Main Document](#) [Main Document](#)

Mar 28 2025 Brief amici curiae of America's Future, et al. filed. VIDED.
[Main Document](#) [Proof of Service](#)

Mar 28 2025 Brief amici curiae of Iowa, et al. filed. VIDED.
[Main Document](#) [Proof of Service](#)

Apr 02 2025 Brief amici curiae of Student Political Research Initiative for New Governance, et al. filed. VIDED.
[Main Document](#) [Proof of Service](#) [Certificate of Word Count](#)

Apr 04 2025 Response to application from respondents Washington, et al. filed.
[Main Document](#) [Main Document](#) [Proof of Service](#)

Apr 04 2025 Response to application from respondents Cherly Norales Castillo and Alicia Chavarria Lopez filed.
[Main Document](#) [Proof of Service](#)

Apr 07 2025 Reply of applicants Donald J. Trump, President of the United States, et al. filed.
[Reply](#) [Proof of Service](#)

Apr 07 2025 Brief amicus curiae of Professor Mila Sohoni filed. VIDED.
[Main Document](#) [Proof of Service](#)

Apr 17 2025 Application (24A885) referred to the Court.

Apr 17 2025 Consideration of the application (24A884) for partial stay presented to The Chief Justice and by him referred to the Court is deferred pending oral argument. Consideration of the application (24A885) for partial stay presented to Justice Kagan and by her referred to the Court is deferred pending oral argument. Consideration of the application (24A886) for partial stay presented to Justice Jackson and by her referred to the Court is deferred pending oral argument. The applications are consolidated, and a total of one hour is allotted for oral argument. The applications are set for oral argument at 10 a.m. on Thursday, May 15, 2025.

Apr 17 2025 SET FOR ARGUMENT at 10 a.m. on Thursday, May 15, 2025. VIDED.

Apr 17 2025 Amicus brief of Corey J. Biazzo, Esq. submitted.
[Main Document](#) [Proof of Service](#)

Apr 22 2025 Any brief of an amicus curiae must be filed on or before Tuesday, April 29, 2025.

Apr 22 2025	Any motion pertaining to the oral argument in 24A884, 24A885 and 24A886 shall be filed on or before Tuesday, April 29, 2025.
Apr 22 2025	Brief amici curiae of Scholars of Constitutional Law and Immigration filed. VIDED. <u>Main Document Proof of Service</u>
Apr 25 2025	Brief amicus curiae of Alan B. Morrison filed. VIDED. <u>Main Document Proof of Service</u>
Apr 28 2025	Motion for divided argument filed by respondents in 24A884, 24A885 and 24A886. VIDED. <u>Main Document Proof of Service</u>
Apr 29 2025	Brief amici curiae of Professor Gabriel J. Chin, et al. filed. VIDED. <u>Main Document Proof of Service</u>
Apr 29 2025	Brief amicus curiae of West Virginia filed. VIDED. <u>Main Document Proof of Service</u>
Apr 29 2025	Brief amicus curiae of Common Cause filed. VIDED. <u>Main Document Proof of Service</u>
Apr 29 2025	Brief amicus curiae of Professor James E. Pfander supporting neither party filed. VIDED. <u>Main Document Proof of Service</u>
Apr 29 2025	Brief amici curiae of Restaurant Law Center, et al. filed. VIDED. <u>Main Document Proof of Service</u>
Apr 29 2025	Brief amicus curiae of B.A.M.N. (The Coalition to Defend Affirmative Action, Integration and Immigrant Rights and Fight for Equality By Any Means Necessary) filed. VIDED. <u>Main Document Proof of Service</u>
Apr 29 2025	Brief amici curiae of Members of the United States Congress filed. VIDED. <u>Main Document Proof of Service</u>
Apr 29 2025	Brief amici curiae of Professor Suzette Malveaux, et al. filed. VIDED. <u>Main Document Proof of Service</u>
Apr 29 2025	Brief amicus curiae of National Immigrant Justice Center filed. VIDED. <u>Main Document Proof of Service</u>
Apr 29 2025	Brief amici curiae of Local Governments and Local Government Officials filed. VIDED. <u>Main Document Proof of Service</u>
Apr 29 2025	Brief amicus curiae of G. Antaeus B. Edelsohn filed. VIDED. <u>Main Document Proof of Service</u>
Apr 29 2025	Brief amicus curiae of Claremont Institute's Center for Constitutional Jurisprudence filed. VIDED. <u>Main Document Proof of Service</u>
Apr 30 2025	Record requested from the United States Court of Appeals for the Ninth Circuit.
May 02 2025	Record received from the United States Court of Appeals for the Ninth Circuit. The record is electronic and is available on PACER.
May 05 2025	Motion for divided argument filed by respondents GRANTED. VIDED.

May 15 2025 Argued. For applicants: D. John Sauer, Solicitor General, Department of Justice, Washington, D. C. For state and city respondents: Jeremy M. Feigenbaum, Solicitor General, Trenton, N. J. For private respondents: Kelsi B. Corkran, Washington, D. C. VIDED.

Jun 27 2025 Applications for partial stays (24A884, 24A885, and 24A886) granted by the Court. Barrett, J., delivered the [opinion](#) of the Court, in which Roberts, C. J., and Thomas, Alito, Gorsuch, and Kavanaugh, JJ., joined. Thomas, J., filed a concurring opinion, in which Gorsuch, J., joined. Alito, J., filed a concurring opinion, in which Thomas, J., joined. Kavanaugh, J., filed a concurring opinion. Sotomayor, J., filed a dissenting opinion, in which Kagan and Jackson, JJ., joined. Jackson, J., filed a dissenting opinion. VIDED.

No. 24A886

Title: **Donald J. Trump, President of the United States, et al., Applicants
v.
New Jersey, et al.**

Docketed: March 13, 2025

Lower Ct: United States Court of Appeals for the First Circuit

Case Numbers: (25-1170)

Proceedings and Orders

Mar 13 2025 Application (24A886) for a partial stay, submitted to Justice Jackson.
[Main Document](#) [Proof of Service](#)

Mar 14 2025 Response to application (24A886) requested by Justice Jackson, due by 4 p.m. (EDT), on April 4, 2025.

Mar 14 2025 Brief amicus curiae of Former National Security Official Joshua Steinman filed. VIDED.
[Main Document](#) [Proof of Service](#)

Mar 14 2025 Brief amici curiae of Members of Congress filed. VIDED.
[Main Document](#) [Proof of Service](#)

Mar 17 2025 Brief amicus curiae of David Boyle supporting neither party filed. VIDED.
[Main Document](#) [Proof of Service](#) [Certificate of Word Count](#)

Mar 19 2025 Brief amicus curiae of Immigration Reform Law Institute filed. VIDED.
[Main Document](#) [Proof of Service](#)

Mar 21 2025 Brief amicus curiae of Tennessee filed. VIDED.
[Main Document](#) [Proof of Service](#)

Mar 24 2025 Brief amicus curiae of Former United States Attorney General Edwin Meese III filed. VIDED.
[Main Document](#) [Proof of Service](#)

Mar 25 2025 Brief amicus curiae of William T. Dickson filed. VIDED.
[Main Document](#) [Proof of Service](#)

Mar 28 2025 Brief amici curiae of America's Future, et al. filed. VIDED.
[Main Document](#) [Proof of Service](#)

Mar 28 2025 Brief amici curiae of Iowa, et al. filed. VIDED.
[Main Document](#) [Proof of Service](#)

Apr 02 2025 Brief amici curiae of Student Political Research Initiative for New Governance, et al. filed. VIDED.
[Main Document](#) [Proof of Service](#) [Certificate of Word Count](#)

Apr 04 2025 Response to application from respondents New Jersey, et al. filed.
[Main Document](#) [Main Document](#) [Proof of Service](#)

Apr 07 2025 Reply of applicants Donald J. Trump, President of the United States, et al. filed.
[Reply](#) [Proof of Service](#)

Apr 07 2025 Brief amicus curiae of Professor Mila Sohoni filed. VIDED.
[Main Document](#) [Proof of Service](#)

Apr 17 2025 Application (24A886) referred to the Court.

Apr 17 2025 Consideration of the application (24A884) for partial stay presented to The Chief Justice and by him referred to the Court is deferred pending oral argument. Consideration of the application (24A885) for partial stay presented to Justice Kagan and by her referred to the Court is deferred pending oral argument. Consideration of the application (24A886) for partial stay presented to Justice Jackson and by her referred to the Court is deferred pending oral argument. The applications are consolidated, and a total of one hour is allotted for oral argument. The applications are set for oral argument at 10 a.m. on Thursday, May 15, 2025.

Apr 17 2025 SET FOR ARGUMENT at 10 a.m. on Thursday, May 15, 2025. VIDED.

Apr 17 2025 Amicus brief of Corey J. Biazzo submitted.
[Main Document](#) [Main Document](#)

Apr 22 2025 Any brief of an amicus curiae must be filed on or before Tuesday, April 29, 2025.

Apr 22 2025 Any motion pertaining to the oral argument in 24A884, 24A885 and 24A886 shall be filed on or before Tuesday, April 29, 2025.

Apr 22 2025 Brief amici curiae of Scholars of Constitutional Law and Immigration filed. VIDED.
[Main Document](#) [Proof of Service](#)

Apr 25 2025	Brief amicus curiae of Alan B. Morrison filed. VIDED. <u>Main Document Proof of Service</u>
Apr 28 2025	Motion for divided argument filed by respondents in 24A884, 24A885 and 24A886. VIDED. <u>Main Document Proof of Service</u>
Apr 29 2025	Brief amicus curiae of Professor Gabriel J. Chin, et al. filed. VIDED. <u>Main Document Proof of Service</u>
Apr 29 2025	Brief amicus curiae of West Virginia filed. VIDED. <u>Main Document Proof of Service</u>
Apr 29 2025	Brief amicus curiae of Common Cause filed. VIDED. <u>Main Document Proof of Service</u>
Apr 29 2025	Brief amicus curiae of Professor James E. Pfander supporting neither party filed. VIDED. <u>Main Document Proof of Service</u>
Apr 29 2025	Brief amicus curiae of Restaurant Law Center, et al. filed. VIDED. <u>Main Document Proof of Service</u>
Apr 29 2025	Brief amicus curiae of B.A.M.N. (The Coalition to Defend Affirmative Action, Integration and Immigrant Rights and Fight for Equality By Any Means Necessary) filed. VIDED. <u>Main Document Proof of Service</u>
Apr 29 2025	Brief amicus curiae of Members of the United States Congress filed. VIDED. <u>Main Document Proof of Service</u>
Apr 29 2025	Brief amicus curiae of Professor Suzette Malveaux, et al. filed. VIDED. <u>Main Document Proof of Service</u>
Apr 29 2025	Brief amicus curiae of National Immigrant Justice Center filed. VIDED. <u>Main Document Proof of Service</u>
Apr 29 2025	Brief amicus curiae of Local Governments and Local Government Officials filed. VIDED. <u>Main Document Proof of Service</u>
Apr 29 2025	Brief amicus curiae of G. Antaeus B. Edelsohn filed. VIDED. <u>Main Document Proof of Service</u>
Apr 29 2025	Brief amicus curiae of Claremont Institute's Center for Constitutional Jurisprudence filed. VIDED. <u>Main Document Proof of Service</u>
Apr 30 2025	Record requested from the United States Court of Appeals for the First Circuit.
Apr 30 2025	Record received from the United States Court of Appeals for the First Circuit. The record is electronic and is available on PACER.
May 05 2025	Motion for divided argument filed by respondents GRANTED. VIDED.
May 15 2025	Argued. For applicants: D. John Sauer, Solicitor General, Department of Justice, Washington, D. C. For state and city respondents: Jeremy M. Feigenbaum, Solicitor General, Trenton, N. J. For private respondents: Kelsi B. Corkran, Washington, D. C. VIDED.

Jun 27 2025 Applications for partial stays (24A884, 24A885, and 24A886) granted by the Court. Barrett, J., delivered the [opinion](#) of the Court, in which Roberts, C. J., and Thomas, Alito, Gorsuch, and Kavanaugh, JJ., joined. Thomas, J., filed a concurring opinion, in which Gorsuch, J., joined. Alito, J., filed a concurring opinion, in which Thomas, J., joined. Kavanaugh, J., filed a concurring opinion. Sotomayor, J., filed a dissenting opinion, in which Kagan and Jackson, JJ., joined. Jackson, J., filed a dissenting opinion. VIDE.

No. 24A1174

Title: **Donald J. Trump, President of the United States, et al., Applicants
v.
American Federation of Government Employees, et al.**

Docketed: June 2, 2025

Lower Ct: United States Court of Appeals for the Ninth Circuit

Case Numbers: (25-3293)

Proceedings and Orders

Jun 02 2025 Application (24A1174) for a stay, submitted to Justice Kagan.
[Main Document](#) [Proof of Service](#)

Jun 02 2025 Response to application (24A1174) requested by Justice Kagan, due by 12 p.m. (EDT), on June 9, 2025.

Jun 06 2025 Brief amici curiae of Former Government Officials and Advisors filed.
[Main Document](#) [Proof of Service](#)

Jun 06 2025 Brief amicus curiae of Constitutional Accountability Center filed.
[Main Document](#) [Proof of Service](#)

Jun 09 2025 Response to application from respondents American Federation of Government Employees, et al. filed.
[Main Document](#) [Main Document](#) [Proof of Service](#)

Jun 09 2025 Brief amici curiae of America's Future, et al. filed.
[Main Document](#) [Proof of Service](#)

Jun 10 2025 Reply of applicants Donald J. Trump, President of the United States, et al. filed.
[Reply Proof of Service](#)

Jul 08 2025 Application (24A1174) referred to the Court.

Jul 08 2025 Application (24A1174) for stay presented to Justice Kagan and by her referred to the Court is granted. The May 22, 2025 preliminary injunction entered by the United States District Court for the Northern District of California, case No. 3:25-cv-3698, is stayed pending the disposition of the appeal in the United States Court of Appeals for the Ninth Circuit and disposition of a petition for a writ of certiorari, if such a writ is timely sought. Should certiorari be denied, this stay shall terminate automatically. In the event certiorari is granted, the stay shall terminate upon the sending down of the judgment of this Court. The District Court's injunction was based on its view that Executive Order No. 14210, 90 Fed. Reg. 9669 (2025), and a joint memorandum from the Office of Management and Budget and Office of Personnel Management implementing that Executive Order are unlawful. Because the Government is likely to succeed on its argument that the Executive Order and Memorandum are lawful—and because the other factors bearing on whether to grant a stay are satisfied— we grant the application. We express no view on the legality of any Agency RIF and Reorganization Plan produced or approved pursuant to the Executive Order and Memorandum. The District Court enjoined further implementation or approval of the plans based on its view about the illegality of the Executive Order and Memorandum, not on any assessment of the plans themselves. Those plans are not before this Court. Justice Sotomayor concurs. (Detached [Opinion](#)) Justice Jackson dissents. (Detached [Opinion](#))

No. 16A1190

Title: **Donald J. Trump, President of the United States, et al., Applicants
v.
International Refugee Assistance Project, et al.**

Docketed:

Linked with: 16-1436

Lower Ct: United States Court of Appeals for the Fourth Circuit

Case Numbers: (17-1351)

Proceedings and Orders

Jun 01 2017 Application (16A1190) for a stay pending the disposition of the petition for a writ of certiorari, submitted to The Chief Justice.

Jun 02 2017 Response to application due on or before 3 p.m., Monday, June 12, 2017.

Jun 02 2017 Application (16A1190) referred to the Court.

Jun 09 2017 Motion (16A1190, 16A1191) for leave to file amici brief filed by Association of American Medical Colleges and Others in support of respondents.

Jun 09 2017 Motion (16A1190, 16A1191) for leave to file amici brief filed by American Center for Law and Justice in support of petitioners.

Jun 12 2017 Response to application from respondents International Refugee Assistance Project, et al. filed.

Jun 12 2017 Motion for leave to file amicus brief filed by The Becket Fund for Religious Liberty in support of neither party.

Jun 12 2017 Motion for leave to file amici brief filed by Constitutional Law Scholars in support of respondents.

Jun 12 2017 Motion (16A1190, 16A1191) for leave to file amicus brief filed by Eagle Forum Education & Legal Defense Fund, Inc. in support of petitioners.

Jun 12 2017 Motion (16A1190, 16A1191) for leave to file amici brief filed by The States of Virginia, et al. in opposition to the stay applications.

Jun 12 2017 Motion (16A1190) for leave to file amici brief filed by Citizens United, et al.

Jun 12 2017 Motion (16A1190, 16A1191) for leave to file amici brief filed by Interfaith Group of Religious and Interreligious Organizations.

Jun 12 2017 Motion (16A1190, 16A1191) for leave to file amici brief by Former National Security Officials in support of respondents.

Jun 14 2017 Reply of applicants Donald J. Trump, President of the United States, et al. filed.

Jun 20 2017 Supplemental brief of respondents International Refugee Assistance Project, et al. filed.

Jun 26 2017 Application (16A1190) and application (16A1191) are GRANTED IN PART. In addition, application (16A1191) is treated as a petition for a writ of certiorari. The petitions for writs of certiorari in 16-1436 and 16-1540 are GRANTED and the cases are consolidated for argument. In addition to the issues identified in the petitions, the parties are directed to address the following question: "Whether the challenges to Sec. 2(c) became moot on June 14, 2017." Justice Thomas, with whom Justice Alito and Justice Gorsuch join, concurring in part and dissenting in part. Opinion per curiam. (Detached Opinion). VIDE.

16-1540 TRUMP V. HAWAII

DECISION BELOW: 2017 WL 2529640

LOWER COURT CASE NUMBER: 17-15589

QUESTION PRESENTED:

Application (16A1191) is treated as a petition for a writ of certiorari.

[Question Presented added from U.S. Brief for the Petitioners]

The Constitution and Acts of Congress confer on the President broad authority to prohibit or restrict the entry of aliens outside the United States when he deems it in the Nation's interest. Exercising that authority, the President issued Executive Order No. 13,780, 82 Fed. Reg. 13,209 (Mar. 9, 2017). Section 2(c) of that Order suspends for 90 days the entry of certain foreign nationals of six countries that Congress or the Executive previously designated as presenting heightened terrorism-related risks, pending a review of screening and vetting procedures to assess what information is needed from foreign governments. Section 6 (a) suspends for 120 days decisions on refugee applications and travel under the U.S. Refugee Admission Program for aliens from any country, pending a similar review of that program, and Section 6(b) reduces to 50,000 the maximum number of refugees who may be admitted in Fiscal Year 2017. The court of appeals in No. 16-1436 held that Section 2(c) likely violates the Establishment Clause and affirmed a preliminary injunction barring its enforcement against any person worldwide. The court of appeals in No. 16-1540 held that Sections 2(c), 6(a), and 6(b) likely exceed the President's authority under the Immigration and Nationality Act (INA), 8 U.S.C. 1101 et seq., and affirmed a preliminary injunction barring their enforcement against any person worldwide.

The questions presented are:

1. Whether respondents' challenges to Section 2(c)'s temporary entry suspension, Section 6 (a)'s temporary refugee suspension, and Section 6(b)'s refugee cap are justiciable.
2. Whether respondents' challenges to Section 2(c) became moot on June 14, 2017.
3. Whether Sections 2(c), 6(a), and 6(b) exceed the President's statutory authority under the INA.
4. Whether Sections 2(c), 6(a), and 6(b) violate the Establishment Clause.
5. Whether the global injunctions are impermissibly overbroad.

OPINION OF 6/26/2017:

CONSOLIDATED WITH 16-1536 FOR ARGUMENT.

IN ADDITION TO THE ISSUES IDENTIFIED IN THE PETITIONS, THE PARTIES ARE DIRECTED TO ADDRESS THE FOLLOWING QUESTION: "WHETHER THE CHALLENGES TO §2(c) BECAME MOOT ON JUNE 14, 2017."

ORDER OF AUGUST 24, 2017: FURTHER CONSIDERATION OF THE MOTION OF RESPONDENTS HAWAII, ET AL. TO ADD JOHN DOE AS A PARTY TO NO. 16-1540 IS DEFERRED TO THE HEARING OF THE CASE ON THE MERITS.

ORDER OF SEPTEMBER 25, 2017:

THE PARTIES ARE DIRECTED TO FILE LETTER BRIEFS ADDRESSING WHETHER, OR TO WHAT EXTENT, THE PROCLAMATION ISSUED ON SEPTEMBER 24, 2017, MAY RENDER CASES NO. 16-1436 AND 16-1540 MOOT. THE PARTIES SHOULD ALSO ADDRESS WHETHER, OR TO WHAT EXTENT, THE SCHEDULED EXPIRATION OF SECTIONS 6(a) AND 6(b) OF EXECUTIVE ORDER NO. 13780 MAY RENDER THOSE ASPECTS OF CASE NO. 16-1540 MOOT. THE BRIEFS, LIMITED TO 10 PAGES, ARE TO BE FILED SIMULTANEOUSLY WITH THE CLERK AND SERVED UPON OPPOSING COUNSEL ON OR BEFORE NOON, THURSDAY, OCTOBER 5, 2017. THE CASES ARE REMOVED FROM THE ORAL ARGUMENT CALENDAR, PENDING FURTHER ORDER OF THE COURT.

ORDER OF OCTOBER 24, 2017

... THE JUDGMENT IS THEREFORE VACATED, AND THE CASE IS REMANDED TO THE UNITED STATES COURT OF APPEALS FOR THE NINTH CIRCUIT WITH INSTRUCTIONS TO DISMISS AS MOOT THE CHALLENGE TO EXECUTIVE ORDER NO. 13,780.

CERT. GRANTED 6/26/2017

No. 17A550

Title: **Donald J. Trump, President of the United States, et al., Applicants
v.
Hawaii, et al.**

Docketed: November 20, 2017

Linked with: 17-965

Lower Ct: United States Court of Appeals for the Ninth Circuit

Case Numbers: (17-17168)

Proceedings and Orders

Nov 20 2017 Application (17A550) for a stay pending appeal, submitted to Justice Kennedy.
[Proof of Service Main Document](#)

Nov 21 2017 Response to application due on or before 12 p.m., Tuesday, November 28, 2017.

Nov 22 2017 Motion (17A550) for leave to file amici brief and motion for leave to file brief in compliance with Rule 33.2 filed by the State of Texas, et al.
[Main Document Other](#)

Nov 28 2017 Response to application from respondents Hawaii, et al. filed.
[Main Document](#)

Nov 28 2017 Motion (17A550) for leave to file amici brief and motion for leave to file brief in compliance with Rule 33.2 filed by the State of New York, et al.
[Main Document Proof of Service Certificate of Word Count](#)

Nov 30 2017 Reply of applicants Donald J. Trump, President of the United States, et al. filed.
[Proof of Service Reply](#)

Dec 04 2017 Application (17A550) referred to the Court.

Dec 04 2017

Application (17A550) granted by the Court. The application for a stay presented to Justice Kennedy and by him referred to the Court is granted, and the District Court's October 20, 2017 order granting a preliminary injunction is stayed pending disposition of the Government's appeal in the United States Court of Appeals for the Ninth Circuit and disposition of the Government's petition for a writ of certiorari, if such writ is sought. If a writ of certiorari is sought and the Court denies the petition, this order shall terminate automatically. If the Court grants the petition for a writ of certiorari, this order shall terminate when the Court enters its judgment. In light of its decision to consider the case on an expedited basis, we expect

that the Court of Appeals will render its decision with appropriate dispatch. Justice Ginsburg and Justice Sotomayor would deny the application.

No. 18A615

Title:	Donald J. Trump, President of the United States, et al., Applicants v. East Bay Sanctuary Covenant, et al.
Docketed:	December 11, 2018
Lower Ct:	United States Court of Appeals for the Ninth Circuit
Case Numbers:	(18-17274)

Proceedings and Orders

Dec 11 2018	Application (18A615) for a stay pending appeal, submitted to Justice Kagan. Proof of Service Lower Court Orders/Opinions Main Document
Dec 11 2018	Response to application (18A615) requested by Justice Kagan, due Monday, December 17, 2018, by noon.
Dec 14 2018	Motion for leave to file amicus brief and motion for leave to file brief in compliance with Rule 33.2 filed by Immigration Reform Law Institute. Main Document
Dec 17 2018	Response to application from respondents East Bay Sanctuary Covenant, et al. filed. Main Document
Dec 17 2018	Motion for leave to file amicus brief filed by Peter Keisler, et al. Main Document Proof of Service Certificate of Word Count

Dec 19 2018	Reply of applicant Donald J. Trump, President of the United States, et al. filed. Reply
Dec 20 2018	Letter of applicant Donald J. Trump, President of the United States, et al., with attached copy of the district court's December 19, 2018 order, filed. Reply
Dec 21 2018	Application (18A615) referred to the Court.
Dec 21 2018	Application (18A615) denied by the Court. Justice Thomas, Justice Alito, Justice Gorsuch, and Justice Kavanaugh would grant the application for stay.

No. 18A625

Title:	Donald J. Trump, President of the United States, et al., Applicants v. Ryan Karnoski, et al.
Docketed:	
Linked with:	18-676
Lower Ct:	United States Court of Appeals for the Ninth Circuit
Case Numbers:	(18-35347)

Proceedings and Orders

Dec 13 2018	Application (18A625) for a stay, submitted to Justice Kagan.
Dec 13 2018	Response to application (18A625) requested by Justice Kagan, due Friday, December 28, 2018, by noon ET.
Dec 28 2018	Joint response to application from respondents filed.
Jan 04 2019	Reply of applicant Donald J. Trump, President of the United States, et al. filed.
Jan 22 2019	Application (18A625) referred to the Court.
Jan 22 2019	Application (18A625) granted by the Court. The application for stay presented to Justice Kagan and by her referred to the Court is granted, and the District Court's December 11, 2017 order granting a preliminary injunction is stayed pending disposition of the Government's appeal in the United States Court of Appeals for the Ninth Circuit and disposition of the Government's petition for

a writ of certiorari, if such writ is sought. If a writ of certiorari is sought and the Court denies the petition, this order shall terminate automatically. If the Court grants the petition for a writ of certiorari, this order shall terminate when the Court enters its judgment. Justice Ginsburg, Justice Breyer, Justice Sotomayor, and Justice Kagan would deny the application.

Cite as: 588 U. S. ____ (2019)

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Opinion of BREYER, J.

SUPREME COURT OF THE UNITED STATES

No. 19A60

DONALD J. TRUMP, PRESIDENT OF THE UNITED STATES, ET AL. v. SIERRA CLUB, ET AL.
ON APPLICATION FOR STAY

[July 26, 2019]

The application for stay presented to JUSTICE KAGAN and by her referred to the Court is granted. Among the reasons is that the Government has made a sufficient showing at this stage that the plaintiffs have no cause of action to obtain review of the Acting Secretary’s compliance with Section 8005. The District Court’s June 28, 2019 order granting a permanent injunction is stayed pending disposition of the Government’s appeal in the United States Court of Appeals for the Ninth Circuit and disposition of the Government’s petition for a writ of certiorari, if such writ is timely sought. Should the petition for a writ of certiorari be denied, this stay shall terminate automatically. In the event the petition for a writ of certiorari is granted, the stay shall terminate when the Court enters its judgment.

JUSTICE GINSBURG, JUSTICE SOTOMAYOR, and JUSTICE KAGAN would deny the application.

JUSTICE BREYER, concurring in part and dissenting in part from grant of stay.

To warrant this stay, the Government must show not just (1) a reasonable probability that the Court will grant certiorari and (2) a fair prospect that the Court will reverse, but also (3) “a likelihood that irreparable harm will result from the denial of a stay.” *Maryland v. King*, 567 U. S. 1301, 1302 (2012) (ROBERTS, C. J., in chambers). This case raises novel and important questions about the ability of private parties to enforce Congress’ appropriations power. I would express no other view now on the merits of those questions. Before granting a stay, however, we must still assess the competing claims of harm and balance the equities. *Barnes v. E-Systems, Inc. Group Hospital Medical & Surgical Ins. Plan*, 501 U. S. 1301, 1305 (1991) (Scalia, J., in chambers). This Court may, and sometimes does, “tailor a stay so that it operates with respect to only ‘some portion of the proceeding.’” *Trump v. International Refugee Assistance Project*, 582 U. S. ___, ___ (2017) (*per curiam*) (slip op., at 10) (quoting *Nken v. Holder*, 556 U. S. 418, 428 (2009)). In my view, this is an appropriate case to do so.

If we grant the stay, the Government may begin construction of a border barrier that would cause irreparable harm to the environment and to respondents, according to both respondents and the District Court. The Government’s only response to this claim of irreparable harm is that, if re-

spondents ultimately prevail, the border barrier may be taken down (with what funding, the Government does not say). But this is little comfort because it is not just the barrier, but the construction itself (and presumably its later destruction) that contributes to respondents' injury. If we instead deny the stay, however, it is the Government that may be irreparably harmed. The Government has represented that, if it is unable to finalize the contracts by September 30, then the funds at issue will be returned to the Treasury and the injunction will have operated, in effect, as a final judgment. Respondents suggest a court could still award the Government relief after an appropriation lapses, though that proposition has yet to be endorsed by this Court.

But there is a straightforward way to avoid harm to both the Government and respondents while allowing the litigation to proceed. Allowing the Government to finalize the contracts at issue, but not to begin construction, would alleviate the most pressing harm claimed by the GovernmentCite as: 588 U. S. ____ (2019)

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Opinion of BREYER, J.

without risking irreparable harm to respondents. Respondents do not suggest that they will be harmed by finalization of the contracts alone, and there is reason to believe they would not be. See, e.g., 36 Opinion of Office of Legal Counsel 11 (2012) (noting that, because of the Anti-Deficiency Act, “the government [is] legally incapable of incurring a contractual obligation to pay more money than Congress had appropriated”), online at <https://www.justice.gov/file/20596/download> (as last visited July 26, 2019); see also *Leiter v. United States*, 271 U. S. 204, 206–207 (1926); *Sutton v. United States*, 256 U. S. 575, 580–581 (1921); *Hooe v. United States*, 218 U. S. 322, 332–334 (1910); *Bradley v. United States*, 98 U. S. 104, 116–117 (1878).

I can therefore find no justification for granting the stay in full, as the majority does. I would grant the Government's application to stay the injunction only to the extent that the injunction prevents the Government from finalizing the contracts or taking other preparatory administrative action, but leave it in place insofar as it precludes the Government from disbursing those funds or beginning construction. I accordingly would grant the stay in part and deny it in part.

No. 19A545

Title:

**Donald J. Trump, et al., Applicants
v.
Mazars USA, LLP, et al.**

Docketed:

November 15, 2019

Linked with:	19-715
Lower Ct:	United States Court of Appeals for the District of Columbia Circuit
Case Numbers:	(19-5142)

Proceedings and Orders

- Nov 15 2019 Application (19A545) for a stay of mandate pending the filing and disposition of a petition for a writ of certiorari, submitted to The Chief Justice.
[Main Document Proof of Service](#)
- Nov 18 2019 Letter of respondent Committee on Oversight and Reform of the U.S. House of Representatives received.
[Main Document](#)
- Nov 18 2019 UPON CONSIDERATION of the application of counsel for the applicants and the November 18, 2019 letter received from counsel for respondent the Committee on Oversight and Reform of the U.S. House of Representatives, IT IS ORDERED that the mandate of the United States Court of Appeals for the District of Columbia Circuit, case No. 19-5142, is hereby stayed pending receipt of a response, due on or before Thursday, November 21, 2019, by 3 p.m. ET, and further order of the undersigned or of the Court.
- Nov 21 2019 Response to application from respondent Committee on Oversight and Reform of the U.S. House of Representatives filed.
[Main Document Proof of Service](#)
- Nov 22 2019 Reply of applicant Donald Trump, et al. filed.
[Reply Proof of Service](#)
- Nov 25 2019 Application (19A545) referred to the Court.
- Nov 25 2019 Application (19A545) granted by the Court. The application for stay of the mandate presented to The Chief Justice and by him referred to the Court is granted. The issuance of the mandate of the United States Court of Appeals for the District of Columbia Circuit, case No. 19-5142, is stayed pending the filing and disposition of a petition for a writ of certiorari, if such petition is filed on or before December 5, 2019, by noon. Should the petition for a writ of certiorari be denied, this stay shall terminate automatically. In the event the petition for a writ of certiorari is granted, the stay shall terminate upon the issuance of the judgment of this Court. If no petition for a writ of certiorari is filed on or before December 5, 2019, by noon, the stay shall terminate.

Title:	Donald J. Trump, et al., Applicants v. Deutsche Bank AG, et al.
Docketed:	December 6, 2019
Linked with:	19-760
Lower Ct:	United States Court of Appeals for the Second Circuit
Case Numbers:	(19-1540)

Proceedings and Orders

- Dec 06 2019 Application (19A640) to recall and stay mandate pending the filing and disposition of a petition for a writ of certiorari, submitted to Justice Ginsburg.
[Main Document](#) [Proof of Service](#)
- Dec 06 2019 UPON CONSIDERATION of the application of counsel for the applicants, IT IS ORDERED that the mandate of the United States Court of Appeals for the Second Circuit, case No. 19-1540, issued December 3, 2019, is hereby recalled and stayed until 5 p.m. on December 13, 2019. It is further ordered that a response be filed on or before December 11, 2019, by 11 a.m.
- Dec 11 2019 Response to application from respondents Committee on Financial Services of the U.S. House of Representatives, et al. filed.
[Main Document](#) [Proof of Service](#)
- Dec 12 2019 Reply of applicants Trump, Donald J., et al. filed.
[Proof of Service](#) [Reply](#)
- Dec 13 2019 Application (19A640) referred to the Court.
- Dec 13 2019 Application (19A640) granted by the Court.
- Dec 13 2019 The application (19A640) for stay presented to Justice Ginsburg and by her referred to the Court is granted, and it is ordered that the mandate of the United States Court of Appeals for the Second Circuit, case No. 19-1540, is hereby stayed pending further order of the Court. In addition, the application is treated as a petition for a writ of certiorari, and the petition is granted. The petition for a writ of certiorari in No. 19-715 is granted. The cases are

consolidated, and a total of one hour is allotted for oral argument. The cases will be set for argument in the March 2020 argument session.

No. 20A63

Title:	Donald J. Trump, Applicant v. Cyrus R. Vance, Jr., in His Official Capacity as District Attorney of the County of New York, et al.
Docketed:	October 13, 2020
Lower Ct:	United States Court of Appeals for the Second Circuit
Case Numbers:	(20-2766)

Proceedings and Orders

Oct 13 2020	Application (20A63) for a stay pending the filing and disposition of a petition for writ of certiorari, submitted to Justice Breyer. Main Document Lower Court Orders/Opinions Proof of Service
Oct 16 2020	Response to application from respondent Cyrus R. Vance, Jr. filed. Main Document Proof of Service
Oct 19 2020	Reply of applicant Donald J. Trump filed. Reply Proof of Service
Feb 22 2021	Application (20A63) referred to the Court.
Feb 22 2021	Application (20A63) denied by the Court.

Emergency stays granted (no cert granted in the same order) and aimed at preliminary injunctions or comparable interlocutory orders (not final judgments/decrees):

1. **17A550** — *Trump v. Hawaii* (stay of PI pending appeal).
2. **17A560** — *Trump v. IRAP* (stay of PI pending appeal).
3. **18A625** — *Trump v. Karnoski* (stay of PI pending appeal).
4. **24A884** — *Trump v. CASA, Inc.* (**VIDED**) (partial stay).
5. **24A885** — *Trump v. Washington* (**VIDED**) (partial stay).
6. **24A886** — *Trump v. New Jersey* (**VIDED**) (partial stay).
7. **24A1174** — *Trump v. AFGE* (stay of PI pending appeal).
8. **25A11** — *Trump v. Boyle* (district-court order stayed pending appeal).
9. **25A319** — *Trump v. Ashton Orr* (district-court order stayed pending appeal).

Why others weren't counted (for clarity):

- **16A1190/16A1191, 19A640, 23A745, 24A1007** – the Court **granted certiorari** in the same order.
- **19A60** — *Sierra Club* – stayed a **permanent** injunction (final judgment).
- **19A545** – stayed issuance of the **mandate** (not a PI/final-judgment stay).
- **24A931** – **vacated TROs**, not a stay.
- **24A666** – **denied**.
- **24A1106** – **withdrawn**.